

Pols 110 Unconventional Civics

Numbered Transcript

POLS 110 • Dan Crenshaw

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Lecture 1: Why Government Exists

At a glance — Crenshaw on why government exists.

- 1.1 I appreciate you guys being here. I think this is a civics lecture. They asked me to do a civics lecture, and I'm, like, "What do you—give me an outline!" You know, I don't, I've never, I'm not an academic and so this will not be an academic course. This is a practitioner's course.
- 1.2 I've never been an academic. I'm not going to reference a lot of materials and I'm not going to reference a lot of theories like a normal college professor would. I'm just pretty much giving it to you as I see it. So I hope you enjoy. It's kind of a, it's a wild ride of eight different lectures, all over the place. And it's not really self-evident where you might actually start a course on civics. Civics 101. I like to call it Unconventional Civics, just because it sounds cooler.
- 1.3 So, I figured I would start with the most fundamental of questions, and the fundamental question with civics is, why do we even have a government? If we had to restart civilization, where would we even begin? What questions would we even ask? And so, I think some definitions might help.
- 1.4 The Columbia Encyclopedia defines government as "a system of social control under which the right to make laws, and the right to enforce them, is vested in a particular group in society." Merriam-Webster defines government in the following way. "The body of persons that constitutes the governing authority of a political unit or organization."
- 1.5 OK, so these are slightly different definitions. I like the Columbia definition because it's as broad as possible. The Merriam-Webster definition defines government sort of, but it defines it within a modern context of political units. It defines who the government is, but not really what a government is.
- 1.6 OK, so that leaves us with some additional, and pretty fundamental, questions. What's a political unit? Why do we even need one? What do we mean by the word politics? That's where we start this course. We start with the need to organize ourselves and partake in disagreements without killing each other. That's politics, basically. It's also sometimes referred to as marriage.
- 1.7 So, Oxford defines politics as "the activities associated with the governance of a country or other area, especially the debate or conflict among individuals or parties having or hoping to achieve power." I'll put it another way. Politics is the competition between competing interest groups or individuals for power and leadership, usually within the context of government. Now we're getting somewhere.
- 1.8 You take any group of people, even a small group of people, and eventually you will be confronted with the need for self-organization. And let's bring this concept right home

to this classroom, whether it's you all right here or virtually. Let's imagine that you're stranded on a desert island after a plane crash, where, amazingly, you have all emerged unscathed.

- 1.9 Now, you've got to solve some basic problems, don't you? Survival being the most important one. You have to gather food, you have to build shelters, you have to obtain water, all of the basics. Now to do any of these things, you have to organize yourselves. And no matter how small the group, a leader emerges, doesn't it?
- 1.10 So let's talk a little history. In the grand saga of human existence, that leader was usually the family elder. The authority was derived from their age, really nothing else. In larger tribes, it may have been the priest class that assumed authority. For our purposes here, learning about American civics, and thus Western civilization that spawned our great experiment, we have to mention the role of Christianity in this.
- 1.11 Christianity upended this long-standing tradition of automatic leadership by empowering every man, woman, and child with access to the Holy Spirit. "All men are created in God's image," Jesus preached. This paved the way for our modern notions of equality. We'll talk a lot about that more later. Before the arrival of Jesus Christ, spiritual authority was retained within the elder of the family and their access to the spiritual authorities of their elders.
- 1.12 The priest class was solely endowed with access to the great power and authority of whatever they called God. This concept wasn't dependent on a particular religion or a particular society. There was almost always a hierarchy of sorts. In any case, a leader always emerges. Within a small family unit with less complex issues, less disagreements, that single leader structure is pretty sustainable. But the population starts to increase, more families emerge.
- 1.13 In the case of your class, stranded on the island, well, there's different groups of friends, there's different needs, there's different strengths and weaknesses with each individual, and your leader soon becomes pretty overwhelmed with the complaints of the group, the needs of the group. One person simply can't manage who should grow food, who should be the hunter, who should get water, who should build the shelters, who should decide what and how much of whatever it is that anybody gets.
- 1.14 This is to say nothing, by the way, of how the leader remains the leader. I mean, is there a vote? Is the leader simply the strongest of the group? Lest we forget, it was not that long ago where disputes were settled by duels. Maybe we should bring those back.
- 1.15 It shouldn't surprise you that the warlord governing structure was a pretty popular one throughout human history. Think of the Viking cultures in Scandinavia where the kings or warlords were called drottinns. They were endowed with authority through their merits as warriors. Not due to any inheritance, not a popular vote, and so that merit could be challenged through combat, of course.

- 1.16** One might say that modern politics is the art of governing through laws as opposed to power structures. At least it's supposed to be. So, back to your island of lost students. Maybe you vote on your leader. Maybe a leader just emerges and everyone seems pretty much OK with that.
- 1.17** Maybe the second thing you do is write down a set of rules on how that leader may be deposed of, should he or she lose the trust of the group. Maybe it's a duel, maybe it's an election, maybe it's a breath-holding contest. I don't know. So at least you've gotten that far.
- 1.18** Now, onto other problems any group of people might face. How are disputes actually settled? Now surely there will be arguments. Jennifer is pissed because Jack is sitting around by the beach while she collects coconuts for the group. Not only that, but Jack is taking more than his fair share of the coconuts. And what if the leader that you chose is powerless or unwilling to intervene?
- 1.19** What if someone in your group hurts another person in your group? What if everyone wants to fish, but no one wants to build huts to live in? How do you resolve these basic problems of survival, but also the disputes between the members of the community? So, rules begin to get written down, or at least verbally agreed upon. That probably keeps everything peaceful for a little while.
- 1.20** But eventually, the norms defined by custom or tradition eventually turn into formal laws. Why? Well, because your community grows. You've got a problem of scale eventually. Size actually matters. You know, the physical laws governing elementary particles and their behavior called quantum mechanics, they don't actually apply to the physical laws and behaviors of larger bodies, which are better described by Newtonian physics and Einstein's theory of special relativity.
- 1.21** But that's science stuff. This is a civics course. But I can't help but be fascinated by the fact that the laws of physics and the laws of governing seemingly change when the size scale changes. That's some spooky stuff. Size matters. And more specifically, scale matters. Family bonds, trust, and customs—they only work insofar as they are respected. And adding more people to any equation inevitably allows for less scrupulous individuals to ignore the norms that everyone had already mostly agreed upon.
- 1.22** A tribe that consists of one ethnicity, one origin, one religion, won't have too much trouble maintaining a somewhat informal order. You see this even in modern times. Tribes still thrive in the Amazon. This was how hunters and gatherers survived for thousands of years, because their groups never really got that big. The need for written laws was actually not an imperative for them.
- 1.23** But that's not the island you live on now. Your classmates are diverse and always, the larger any society becomes, the more likely this is to be the case. It may have long been the custom that hard work was rewarded proportionately and that communal goods

were shared fairly. But that arrangement simply cannot last as the group becomes larger and more socially diverse.

- 1.24 Freeloaders, and you know who you are, unencumbered by the stuffy customs, will seek to take advantage of those who are more productive. Thieves will find it easier to steal instead of work. Now, of course, we see this in modern America. A small town always knows who the troublemakers are. Everyone knows everyone. In a big city, you can hide in the crowd.
- 1.25 So on your island, you begin to write down some rules. But this leads to even more questions. Who decides what the rules should be? Who gets to write them? Given your class's propensity for Western civilization, you may decide to hold some elections. But elect who? And elect them to what exactly? And what are the rules of the election itself? So the first question isn't even the election itself, but what they might even be elected to and the mechanism by which the election takes place.
- 1.26 Before too long, you actually have something resembling the Continental Congress. More to follow on what that is in a minute. So maybe in your case, your different cliques in the class get together and you choose someone to represent their interests. Maybe it's based on male and female blocks. Maybe it's based on beach dwellers versus cave dwellers. Maybe it's fishermen versus farmers.
- 1.27 In any case, it becomes necessary to get a group of trusted individuals that represent diverse interests in a room together and decide what anyone might actually be elected to. What are you elected to? Is it a board? Is it like a city council, a council of elders, a parliament? And so your class makes a decision, and you write down that decision.
- 1.28 Your community isn't all that large yet, so maybe you just start with a board— like a school board, like a city council. But what does each city council member actually represent? Different age groups, different genders, different trades, geographic areas? Now, obviously in modern times, the answer's geography. We represent different geographic areas.
- 1.29 But in an early government on a small island that you just crashed on, maybe that doesn't make sense. Who knows? And once you have an elected body, is there even still a leader overall? You might decide that, yeah, there should be. You have a leader, and you have a council. You decide the council will be an odd number so that a majority can emerge when they vote. You also make some decisions on how the powers of the leader are checked against the powers of the council, and how that might be resolved.
- 1.30 So these are the first rules established on your little island, and you haven't even really started making rules yet. So you have a government, kind of. A little time passes, and the council comes up with some basic rules and the punishments for breaking those rules. They approve such rules by taking a vote. The leader signs off on those rules, too, but can also reject the rule being proposed. That rejection is today known as a veto.

- 1.31** Perhaps the council can override the veto through an overwhelming majority. I don't know. It's up to you and your fellow island dwellers what that veto threshold might be or whether it even exists. So we're on our way back to civilization, post-plane crash, but still left with a lot of serious questions. Among them, who's going to enforce these rules and how? The bigger your community gets, the greater the need for what we call institutions.
- 1.32** Your council of representatives was your first such institution. Eventually they might even have a building they meet in, something to formalize the institution in a physical structure. Your next institution becomes law enforcement. There isn't much point to having rules if they're not respected and not enforced. The institution after that may be a defense force, then maybe a water authority or an electric grid operator. I think you get the point there.
- 1.33** Problems become more complex and require more complex institutions to manage the resolution of said problems. For the institutions to carry out their functions, they must have authority and then some ability to enforce that authority.
- 1.34** Now, importantly, the authority of the institutions must be sustainable. This is an important point. This means they must have the trust of the people. And so this becomes a more modern question. What form of government is most likely to maintain the trust of the people, and therefore, most likely to endure?
- 1.35** Human history holds within it plenty of examples of revolution. Whatever the merits, whatever revolution we choose to examine, it's safe to say that each one represents a situation wherein the existing governing body was no longer trusted by a large enough faction of the rest of that society, resulting in a successful overthrow.
- 1.36** Our founders considered these historical examples with great care. They wanted their American experiment to endure. They understood that, in order for rules to be followed willingly, those rules must make sense on a basic moral and ethical level to the vast majority of citizens expected to follow them. Should those rules be unjust, it would only be a matter of time before citizens revolted. And thus you have your Declaration of Independence. So, I think now would be a really good time to examine it.
- 1.37** It starts right out with it—and I am skipping the preamble here. We're going right to the complaints. "When in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another," what does that mean? We're breaking up with you. You've lost our trust. We don't like your laws. We don't like how you have enforced them. And we don't like the way you came up with them in the first place. We never agreed to any of this crap, basically.
- 1.38** And they had specifics too. They listed them. Here's one. "He has forbidden his governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and when so suspended, he has utterly neglected to attend them."

- 1.39 So, their complaint was quite basic and, of course, hilariously written in the politest, colonialist English prose possible. They understood that, for a community or society to survive, the governments in place must be able to act and pass laws, but the king of England wouldn't allow it. Many of the complaints listed were of this nature.
- 1.40 "For taking away our charters, abolishing our most valuable laws, and altering fundamentally the forms of our government." And this, "for suspending our own legislatures, and declaring themselves invested with power to legislate for us in all cases whatsoever." The American revolutionaries were telling the king of England, "You are not letting us govern properly."
- 1.41 That wasn't all. It got worse. They said, "for imposing taxes on us without our consent, for depriving us in many cases of the benefit of trial by jury." So they're saying, "You're taxing us without us having any say in it. You're not adhering to basic due process when disputes do occur."
- 1.42 And the worst of it, well, he says in a few instances, "He has kept among us, in times of peace, standing armies without the consent of our legislatures. He has affected to render the military independent of and superior to the civil power." That's not good. King George, you're overtaxing us. You're not adhering to even your own English common law practices, and you're not letting us govern locally. And you are enforcing all of these terrible practices with a military that is not subject to the will of the citizens.
- 1.43 So, guess what? We're going to war. And that's what they did. But these were not wild-eyed revolutionaries. These weren't uneducated miscreants who just wanted anarchy and CHAZ autonomous zones in Seattle. These were statesmen, intellectuals, businessmen, historians. They were very serious people.
- 1.44 But the Declaration of Independence was a lot more than just a list of injustices committed by the British. The Declaration of Independence was a clear and concise reasoning for why government should exist in the first place. And it's the preamble of the Declaration that is so important for our purposes here.
- 1.45 "We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed."
- 1.46 You have to sometimes appreciate the ability of great thinkers to imbue so few words with such great meaning. These two sentences, that's only two sentences, are the most important of the American founding. There's three concepts laid out here that are unique in human history.
- 1.47 First, that there are unalienable rights endowed by our creator. Now, this idea came from Scottish philosopher John Locke, but never before had it been institutionalized into a governing document. This was revolutionary. People had rights, no matter who

they were, what family they came from. And since all men are created equal, well, those rights apply uniformly and universally, full stop.

- 1.48** Those basic rights could be summed up as life, liberty, and property, as it was originally expressed by Locke himself. Now, when Thomas Jefferson drafted the Declaration, with some help from his friends John Adams and Benjamin Franklin, they changed the word property for pursuit of happiness.
- 1.49** There's a little interesting history behind that. They wanted to avoid the interpretation that this sacred document may imply an inalienable right to own a person as property. This small change was instrumental later in American history when abolitionists commonly referenced the Declaration of Independence as proof that slavery was indeed incompatible with the founding principles of America.
- 1.50** There's a really historic Independence Day speech. It's called, "What to the slave is the Fourth of July?" It was given in 1852 by Frederick Douglass, a famous former slave and leading abolitionist of the time. He declared that the Constitution was not pro-slavery, but indeed a glorious liberty document. He made the case that America was not living up to its own principles, a view which is now commonplace. We weren't.
- 1.51** Second thing. "That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed." Packed inside that sentence are two concepts. First, that the role of government is actually to secure those rights. That's the whole point. Not rule the people for the sake of a powerful king, not to enrich a particular class. None of that. The foundational reason for the existence of government shall be to protect the rights of citizens.
- 1.52** Well, from who? Well, from each other, for starters. Someone who has authority to stop and settle disputes and injustices, whether in a large country or your small island of stranded classmates. But also protection of your rights from the government itself. And that gets to the third concept. The authority and power given to the government must be derived by the consent of the governed. In other words, you need a democracy. Sort of.
- 1.53** Democracy is kind of an overused word these days. Too many people wrongly apply the term to literally everything. "Protect democracy," they say. "You're a threat to democracy," they say. They usually mean a threat to the rule of law, depending on how you choose to interpret the rule of law. So, let's take a step back. Let's get an official definition from our friend Google. "A system of government by the whole population or all the eligible members of a state, typically through elected representatives." OK, seems about right.
- 1.54** But what about a republic? That's the words our founders used. What do they mean by it? Let's ask Google. "A state in which supreme power is held by the people and their elected representatives, and which has an elected or nominated president rather than a monarch." OK, so slightly different, but not, but not all that different.

- 1.55** It would be accurate to say that America is a republic with democratically elected representatives operating as the leadership of that republic. Another thing you often hear is the casually expressed declaration that "America is a republic, not a democracy." All right, so what do they mean by that?
- 1.56** They're likely trying to reinforce the point that our system does not allow for a simple majority of the people to trample over the rest of the people, and then just call it democracy. Democracy in its purest and simplest form would be just that. 51% of this classroom would vote to pass a law that makes the other 49% pay them a monthly stipend. That's democracy. Must be justified.
- 1.57** Let me read you a quote by famed Colombian philosopher Nicolas Gomez Dávila. " Rulers who represent only a minority have to invent civilization in order not to perish. The delegates of a majority, on the other hand, can be vulgar, rude, cruel with impunity. The greater the majority that supports him, the less cautious the ruler is, the less tolerant, the less respectful of human diversity. When rulers deem themselves governors of all humanity, terror is near."
- 1.58** That's a, that's a profound insight. To our founders, however, it was actually pretty self-evident. Implicit in that statement is the idea that a more just government evolves when the rights of the minority are protected. Furthermore, a majority and its leaders have an incentive, if left unchecked, to trample on the rights of the minority when a democratic majority gives it the green light to do so.
- 1.59** Human nature is human nature, after all. If a government was as simple as one ruler elected by a majority, you might imagine how quickly such a scenario might deteriorate. Voters can be emotional. I know this is a shock. Information, accurate or not, it spreads quickly, even back then, and resentment in politics runs very deep. Again, I know this is a shock.
- 1.60** A king elected by a slim majority will do whatever it takes to keep that majority. Now, of course, that's not how we do things, nor should we. We created a republic because a republic implies a series of checks and balances among different branches of government, sharing of power between states and the federal government, and very explicit protection of inalienable individual rights, whether those individuals are in the majority or in the minority.
- 1.61** Our founders took great care to study governments throughout history and apply those lessons to the American experiment. They were particularly interested in confederations for obvious reasons, because they found themselves with, you know, 13 distinct colonies. They studied confederacies like the Greek Amphictyonic league and, to a lesser extent, the Dutch Republic.
- 1.62** James Madison, Alexander Hamilton, John Jay, these were the primary architects of the Constitution that was finally passed as the law of the land in 1789. Their thoughts leading up to the formation of the Constitution are found in the Federalist Papers.

These are a series of essays or, in modern parlance, op-eds, that were written and distributed in local newspapers throughout the period leading up to the constitutional debate.

- 1.63 They were making their argument for a federal system, contrary to the opposing anti-federalist view that there should be a very weak central government, if any central government at all. This was the ultimate debate during the '80s, the 1780s, that is. There was some agreement on a loose confederation of states because that already existed under the Articles of Confederation, adopted by the Continental Congress in 1777, although not fully ratified until 1781, when Maryland finally got around to ratifying it.
- 1.64 There was less agreement, though, about what sort of federal governing structure might exist and then how much power it should even have. So let's examine a few of these Federalist Papers because they're eventually the ones that won out. So they're the ones we're studying.
- 1.65 We don't know for sure who wrote each one of them. They were always written anonymously. But historians, from their writing style, have inferred the author of each. Federalist 10 was likely written by James Madison. It's considered one of the most important Federalist Papers because it outlines the core arguments for a republic versus a democracy, and how a republic might deal with competing factions in a society. Madison was only 36 years old when he wrote that, by the way. Let that sink in.
- 1.66 Now he starts right out with an essential problem that any government will face, especially a federal government overseeing 13 diverse colonies with their own interests and preferences. He wrote, "Among the numerous advantages promised by a well-constructed union, none deserves to be more accurately developed than its tendency to break and control the violence of faction.
- 1.67 "The friend of popular governments never finds himself so much alarmed for their character and fate, as when he contemplates their propensity to this dangerous vice. He will not fail, therefore, to set due value on any plan which, without violating the principles to which he is attached, provides a proper cure for it.
- 1.68 "The instability, injustice, and confusion introduced into the public councils have, in truth, been the mortal diseases under which popular governments have everywhere perished as they continue to be the favorite and fruitful topics from which the adversaries to liberty derive their most specious declamations."
- 1.69 It's almost hard to not read that with a little bit of an English accent, right? OK, so what's he saying here? Let's summarize this in, like, normal modern human language. Madison was simply observing that governments crumbled throughout history when the infighting between different interest groups became too great and too intractable.

- 1.70** A well-constructed union, as he put it, would be able to provide the necessary frameworks for civilized disagreements, along with the necessary protections for the minority. This last sentence really rang true for me as I observe our modern politics. I want to read it again.
- 1.71** "The instability, injustice, and confusion introduced into the public councils have, in truth, been the mortal diseases under which popular governments have everywhere perished as they continue to be the favorite and fruitful topics from which the adversaries to liberty derive their most specious declamations."
- 1.72** I interpret that in the following way, again, in normal human language. If you don't get your governing structure right, the best intentions of those in charge cannot withstand these specious declamations of dishonest opponents who wish to tear it all down. I actually want to repeat that statement one more time because it's so important, and it's so important for our modern politics.
- 1.73** If you don't get your governing structure right, the best intentions of those in charge cannot withstand the specious declamations of dishonest opponents who wish to tear it all down. Modern politics is filled with such specious arguments. You are told you're committing an injustice against the vulnerable members of society if you're not willing to vote for tax increases on yourself or your fellow productive citizens. You're told you must sacrifice to the gods of climate change.
- 1.74** On the right, you're told that your fellow Republicans are RINOs out to betray you to the globalists. Most of it is usually bullshit from both sides. So how do you solve for this intractable factional disagreement? That's the question Madison posed in Federalist 10.
- 1.75** He said you can either control for the causes of factions or control for their effects. You've got two options. But controlling the causes are impossible, he concluded, because the only way to do that would be to make everyone simply agree. He rightfully noted that you're never going to get mass consensus in a free society. So just remove that thought from your silly little head. "Leave such utopian thoughts to the bloodthirsty communists," he would have said, if he had known what communists were back then.
- 1.76** So that leaves us to consider how we might manage the effects of factions. Critical to Madison's analysis was the fact that even a democracy could quickly devolve into a dictatorship. Plenty of dictators have been elected. Nicolas Maduro in Venezuela, Vladimir Putin in Russia, Hitler in Nazi Germany.
- 1.77** Madison wrote, "When a majority is included in a faction, the form of popular government, on the other hand, enables it to sacrifice to its ruling passion or interest both the public good and the rights of other citizens. To secure the public good and private rights against the danger of such a faction, and at the same time to preserve the spirit in the form of popular government, is then the great object to which our inquiries are directed."

- 1.78** So, back to our previous example. I could get elected dictator in this very classroom by promising 51% of your wealth and property to the other 49%. Now, you may think that you're such a good person that you'd never vote for such a thing, but human history would prove you wrong. Human nature can turn dark rather quickly.
- 1.79** And so Madison concluded that, "By a pure democracy, by which I mean a society consisting of a small number of citizens, who assemble and administer the government in person, can admit of no cure for the mischiefs of faction. A common passion or interest will, in almost every case, be felt by a majority of the whole; a communication and concert result from the form of government itself; there is nothing to check the inducements to sacrifice the weaker party or an obnoxious individual.
- 1.80** "Hence it is that such democracies have ever been spectacles of turbulence and contention; have ever been found incompatible with personal security or the rights of property; and have, in general, been as short in their lives as they have been violent in their deaths."
- 1.81** Some good writing, first of all. It's a damning indictment of pure forms of democracy. Hence, he argued for a republic, which he defined as a government led by representatives over a large enough group of citizens that the various factions would have effectively canceled one another out, and cancel out each other's overbearing quest for power. He goes on.
- 1.82** He writes, "The two great points of difference between a democracy and a republic are, first, the delegation of the government; in the latter, to a small number of citizens elected by the rest. Second, the greater number of citizens, and the greater sphere of country, over which the latter may be extended."
- 1.83** So again, he's distinguishing between pure democracy and a republic. He defined pure democracy in this case to mean a simple majority rule on all questions, whether it's the leader of the country or the laws passed. A republic would offer a sort of filter for the temporary passions of the people by empowering a small group of representatives to represent the different factions of the people.
- 1.84** He ponders a lot of other questions as well. How many representatives are appropriate? How many people should be represented by each? And to the first question, he noted that, if you have too few representatives, you run the risk of empowering the cabals of a few. With too many representatives, you run the risk of the chaos of the multitudes. Not much difference from the pure democracy that he actually feared.
- 1.85** So, today we have, I mean, somewhat arbitrarily, decided that these numbers would be 435 congressmen, 100 senators, 9 Supreme Court justices. There's not an exact formula to these numbers. They just kind of feel right until they don't.

- 1.86** Now there's the question of how many people a representative should represent. Madison noted that representing too few would make the representative's interests too narrow and potentially corrupt. But too many, and it would not be possible to properly represent the true interests of so many.
- 1.87** So these days, a congressman like myself represents about 750,000 people. Every congressman does. Is that the right number? I don't know. There's no doubt that it's impossible to get 750,000 people to agree on something. But then again, I bet I can't get your own family to agree on an issue when you all get together for Thanksgiving. So, 750,000 it is. Why not?
- 1.88** It begs another question. I mean, should we have more than 435 congressmen in the House of Representatives? We could change it. The Constitution does not dictate the number. It only dictates that the number of representatives shall not exceed one for every 30,000. So, technically, that means we could have just over 11,000 representatives in the House, if we wanted to. I don't think we want that.
- 1.89** Is 435 the magic number? I mean, look, it's been that way since the Apportionment Act passed in 1911. The smallest it has ever been is 65, and that was back in 1787. We haven't increased the number for over 100 years. And look, my opinion, that's probably right. First of all, we just can't fit anyone else in the building, so there's that. We don't have enough offices. We'd have to build more. And then taxpayers would be like, "Why are we building more offices for these stupid congressmen?"
- 1.90** The other thing is, look, man, it's hard to get to know each other. Well, it's already hard, right? 435 people, and that's not ideal since we're expected to work closely together to pass important legislation. Should there be less than 435? Now, some might say that's a good idea, but I'll tell you what, it'll never happen.
- 1.91** Why? Because if you ever reduce the number of representatives, well, then people will feel as though they are losing their representation. The fewer representatives you have, the more diffused your vote becomes amongst the rest. So there's a balancing act. For now, everyone pretty much seems happy with the current balance, and so we're going to keep it that way.
- 1.92** All right, so let's take a breath and examine where we are now. OK? We need a government. We need a way to organize ourselves. We need a way to settle disputes and make decisions. We need a way to organize a defense against outside threats. We need to define some underlying principles for why that government should even exist in the first place.
- 1.93** This is what made America unique, that small passage in the beginning of the Declaration of Independence. The Declaration provided the foundation for the Constitution. The former told us why we had a government. The Constitution became the instruction manual telling us how to govern. Key questions arose about the nature of democracy and the subsequent preference for a republic.

- 1.94** OK, so you might be wondering. So, we prefer a government that consists of a group of representatives making decisions on our behalf, as opposed to a popular election of a dictator, right? Yes. But who's to say that the same tendencies toward infringement of rights of the minority would be totally mitigated by a body of representatives?
- 1.95** After all, just look at our current Congress. It's a two-party system, shows no signs of changing. It's red versus blue. The whims of public opinion can easily overtake a Congress or a Parliament, just as they overtake a dictator. So, our founders examined that problem as well. They examined the parliamentary system and found that it did not sufficiently correct for this problem.
- 1.96** Now, in England, there's a House of Lords, which in theory serves as a check on the Parliament, sort of. The monarch also serves as a check. But—here's the thing—neither the monarch nor the House of Lords was elected, and therefore runs contrary to the Declaration's promise that a government derives its authority from the consent of the governed.
- 1.97** So, from these observations, Madison drew the conclusions that he wrote out in Federalist 51. The problem, as Madison saw it, was that even if a diverse Congress had sufficient size and scope to mitigate the tyranny of a majority, it still wouldn't. Whether a pure democracy elects a dictator or elects a majority in Congress, it's still a majority, subject to the temptations of infringing on the minority.
- 1.98** Now, let's go back to your newly founded city council on your island, and let's assume that some years into your hapless plane crash have now passed. Your population size has increased quite a bit, and with it, the complexity of the problems you face. With a growing population, people are now disconnected. It's easy to vilify one another when you're disconnected. It's easier to lose sight of each other's humanity.
- 1.99** The beach dwellers, they don't really interact with the cave dwellers anymore. And there's an animosity that's started to grow. Alliances have started to form, resembling what we might call political parties. Elections are held and majorities are made in the tiny council. Votes are taken, and according to the rules, those votes result in laws that must be enforced.
- 1.100** What if the majority decides that cave dwellers shall no longer have access to food? War. War. That's what happens. And so Madison considered what might prevent such a disaster, or at least slow it down considerably. His answer, federalism, which was defined as a series of checks and balances on each power structure of government.
- 1.101** Again, he drew inspiration from the English, but then perfected it because we do everything better than the English. But his inspiration was from the House of Lords, the rather pretentious House of Lords, and an even more pretentious monarch, except for one significant difference. He noted that these bodies never answer to the people.

- 1.102** Self-governing did not necessarily mean govern yourself. That's just anarchy. It means that every body of government answers to an electorate. So that's where the Senate came from. It's a House of Lords, but without their hereditary roots, hence the pretentiousness. An elected body that answered to the power of the individual state government which elected it.
- 1.103** Now, quick side note here for Civics 101. Until 1913, the Senate was not popularly elected by the people, but chosen by state legislatures. That's how it was originally written into the Constitution. It was designed as a federalist check on the whims of the majority that would inevitably rise from the popular and very frequent elections in the House of Representatives. So, one might say that the House is a democratic institution, while the Senate is a federalist one.
- 1.104** Now, the 17th Amendment changed this in 1913, effectively turning the Senate into simply another democratic institution. Today we actually see those dynamics play out. The culture of the House and Senate are still different, but increasingly similar.
- 1.105** Senators are elected statewide and therefore must consider more diverse constituencies, so there's that. Their terms are six years instead of two, and so they have more leeway to make tough decisions without immediate political blowback. And of course they have the 60-vote threshold for a filibuster, which forces some kind of consensus.
- 1.106** But from my observations, those factors alone have not been enough to prevent the Senate from simply becoming another House. The incentives are the same because the electoral process is the same. In all but a few states, one political party, Democrat or Republican, is practically guaranteed victory. Very few states have a Democrat and Republican senator. In 2023, there were only five—Maine, Wisconsin, Ohio, West Virginia, Montana. By 2024, there will be less.
- 1.107** This means that the real race is the primary election, which means that even senators are required to partake in the emotional lightning rod issues of the moment, as opposed to focusing on the long-term problem solving required of a serious government.
- 1.108** This might shock many people, but the original intent of the Founders was, in fact, some form of elitism. A Senator was supposed to be chosen by a body of state lawmakers whose profession was in government. When you move toward a popular election, you can get some interesting results. Emotions, false promises—they become the currency of popularity, as opposed to objective merit-based qualifications. In short, democracy is terribly imperfect.
- 1.109** The republic is about as close as we can get to perfect, since it serves as a check on the negative outcomes that are implicit in a democracy. It's why America has the oldest constitution in the world, despite being one of the youngest nations. Our experiment has actually proven to be remarkably stable.

- 1.110** Now, nevertheless, your experiment with government will still run into problems, even with all of these guardrails. Human nature runs amok. So, let's review what the guardrails are so far. Number one, a federalist structure that encompasses a large enough population so that no single faction can gain too much influence. Madison outlined this in Federalist 10.
- 1.111** Number two, a bicameral system, meaning both a House and a Senate, that serves as a check on the passions of a very excitable public. Number three, democratic elections that force leaders to answer to the people. All of those are great guardrails; and yet, human nature can overcome even the most perfect of systems. So it's at this point that we must begin the discussion of rights.
- 1.112** Up until now, we have been examining how governments naturally and inevitably come to exist. There's a basic need to organize an ever-growing population and a need to create rules to live by. As civilization progresses, you come up with clever ways to stop a bunch of selfish sociopaths from taking over. But selfish sociopaths always exist.
- 1.113** And mobs of people can be easily lied to. You may not think it's easy to lie to you, but it is. After this lecture series, you will be less easy to lie to. So that's good. So when your checks and balances fail, and they eventually will, you will need another backstop. You will need a fail-safe.
- 1.114** So let me ask you, what if your government made it legal to execute you for your religion? Made it legal to take your children if they needed workers? Made it legal to take your property and give it to someone else? These are pretty absurd notions in America, though let's not forget that slavery itself was in fact legal, even with our Constitution and Bill of Rights.
- 1.115** But absurd examples such as these have been legalized time and time again throughout human history. Human nature is still pretty capable of evil. Always will be, will never change. And so our founders delivered a novel idea: that the purpose of government was not only to organize effectively, but to protect our inalienable rights.
- 1.116** The word "rights" gets misused a lot. Some people say you have a right to health care, or to housing, or to food and water. But this cannot be true, philosophically. One cannot have a right to something that someone else must provide. So you might say that we as a government have an interest in providing all of these things to our citizens. That's a noble goal, when talking about basic needs such as food and shelter and medicine. That's a good goal to have.
- 1.117** But to say it's a right is to misunderstand the meaning of the word. To have a right is to have something that cannot be taken away. Jefferson placed this concept front and center in the Declaration of Independence, speaking of life and liberty and the pursuit of happiness. But the Declaration was only the beginning of that conversation. It laid the foundation, but the question still remained. Exactly what rights would be deemed most sacred?

- 1.118** Now, much of the debate was actually over whether or not the rights needed to be written down at all. Wasn't it obvious, many argued, that one has a right to own property, to be given due process, to own a firearm, and to practice one's religion without persecution? Wasn't that the whole point of the whole revolution? And so, actually, the Constitution was written without these rights explicitly stated. It was believed by many to be unnecessary because the rights were implied, they argued.
- 1.119** By who? By God, of course, because Genesis 1 states very clearly that man is made in the image of God. And with that comes a sense of dignity and responsibility to one another. But thankfully, there were skeptics of this Pollyannaish belief that rights would be automatically respected. And soon, we had the Bill of Rights.
- 1.120** The Bill of Rights were simply the first amendments to the Constitution, explicitly stating what should have been obvious already. You're likely already familiar with the gist of these rights—you know, freedom of speech, religion, right to bear arms, right to privacy, due process, all of that. We don't need to examine the whole list here. We don't have time.
- 1.121** The point to be made is that these rights stated explicitly, in our highest laws of the land, they cannot be broken, and most importantly, cannot be changed without a massive majority. Again, side note, on Civics 101, it's quite difficult to amend the Constitution. You need two-thirds vote in the House and Senate; it has to be ratified by three-fourths of the state legislatures.
- 1.122** The Bill of Rights is the ultimate fail-safe, and you'd better thank God for it every day. While many of these rights may have seemed obvious to our founders, they're not so obvious now. Many leaders throughout our history have consistently called for draconian infringements on our freedoms that have only been thwarted because of America's remarkably strong constitutional framework.
- 1.123** And in cases where those misguided tyrants have succeeded, and there there are cases, the system has mostly corrected itself, even if war was necessary. It's not perfect, but it's certainly better than anywhere else. Just ask the British or the Canadians what it's like to get arrested when you post on social media.
- 1.124** So here we are. We've barely scratched the surface. At this point, I think we understand what the point of government is. You've got your island of classmates, you've settled into a republic of sorts, and you've agreed to protect certain rights. This keeps things relatively stable.
- 1.125** But the devil is always in the details. And in America, those details have been getting worked out for quite some time. We still debate them, which is a good thing. Those details are worked out primarily via the process of lawmaking. So I'm going to touch briefly on how laws are made, just the basics. It's an intro course. We're going to do more on this later.

- 1.126** We talked about the Congress. When we say Congress, we mean both the House and the Senate. This is the legislative branch. Why is it called that? Because they, well, I guess "I"—we are members of the House and we legislate. What is legislating? It means we write the laws.
- 1.127** In America, the law starts out as a bill. It must originate in either the House or the Senate. It doesn't really matter which. The important part is that both chambers must agree to it. Once they agree to it, vote on it, it goes to the President for his signature. The President either signs it or vetoes it. If the President signs it, it becomes a law. Congratulations.
- 1.128** The President leads what is called the executive branch. It's called the executive branch because its purpose is to execute the laws. In fact, this is one of the primary constitutional duties of the President. Now in practice, the President can propose bills also, but the process can never start with the President. The proposal is merely adopted by some of the President's allies in either the Senate or the House, and they actually have to write it. Only in the Congress can the process actually begin.
- 1.129** Now the veto is a pretty important check on power. The President is endowed with a single vote, in essence, and that single vote matches the collective vote in the entire Congress, kind of. Vetoes are not rare, actually. In modern times, when party lines dictate most policy preferences, vetoes happen all the time. If the Congress is controlled by the opposing party, which it often is, it is likely that the vast majority of legislation passed will be vetoed by the President.
- 1.130** This doesn't necessarily stop the legislation, it just raises the bar for passage of the legislation. In the event of a veto, the legislation is returned to the Congress for an additional vote. But instead of a simple majority, the legislation must be passed with a two-third majority. At that point, the President is forced to accept the legislation, and it becomes law. Now this is rare, since it's so unlikely that a two-third majority exists, especially in today's politics.
- 1.131** Those are the first two branches of government, by the way, the executive and the legislative. But our founders created a third branch called the judicial branch. The roots of the judicial branch go back to Exodus. Moses was visited in the desert by his father-in-law, Jethro. Jethro was a priest and a wise man. He saw that his son-in-law was trying to be the entire government for hundreds of thousands of slaves who just escaped the tyranny of the Pharaoh, and had yet to discover their promised land.
- 1.132** Does this sound familiar yet, about how we talked about leaders and scale? Here's what it says in Exodus, Chapter 18. This is the English Standard Version. "Moses' father-in-law said to him, 'What you are doing is not good. You and the people with you will certainly wear yourselves out, for the thing is too heavy for you. You are not able to do it alone. Now obey my voice. I will give you advice, and God be with you.

- 1.133** "You shall represent the people before God and bring their cases to God, and you shall warn them about the statutes and the laws, and make them know the way in which they must walk and what they must do. Moreover, look for able men from all the people, men who fear God, who are trustworthy and hate a bribe, and place such men over the people as chiefs of thousands, of hundreds, of fifties, and of tens. And let them judge the people at all times. Every great matter they shall bring to you, but any small matter they shall decide themselves, so it will be easier for you, and they will bear the burden with you."
- 1.134** Basically saying, "Dude, you got to delegate some authority." That's what he's saying. This formed the basis of their court system and ours. The judicial branch is the court system, with the Supreme Court at the top of the hierarchy. The role of the judicial branch is to interpret the laws. Now, this is a necessary role because it's not always clear what a law's intent may have been, especially regarding really specific, unique, and unforeseen circumstances. Those are the mechanics of lawmaking.
- 1.135** But that's also like thinking you know, a car works because you know the skinny pedal makes it go and the fat pedal makes it stop. There's a lot more under that hood, and there's a lot more history behind what created that stuff under the hood. But we'll get into a lot more detail on how bills are passed, in reality, in a later lecture.
- 1.136** For now, there's a more important principle to establish first. So let me ask you, what makes a good law? What makes it just? And how is it that different societies can impose such vastly different sets of laws? Like, what are the philosophical underpinnings of our modern understanding of these questions?
- 1.137** Now, to answer this, I'm going to take you on an imaginary tour inside the Capitol itself, specifically where I work in the House of Representatives, because us lowly congressmen, we barely get to visit the Senate. The U.S. Capitol, it's a cool place, man. It's filled with history. It's filled with this incredibly thoughtful symbology. It is truly a remarkable place. I've been around the world, I've seen a lot of Capitols. I really, really love ours.
- 1.138** Most people are fully aware of the grandiose architecture and the artwork and the statues that fill the halls. And everyone rushes to visit that majestic dome that towers over Washington, D.C., but few get to see inside the House of Representatives itself. And those who do likely don't even notice what I'm about to show you.
- 1.139** So, on our tour, we're going to meet in my office. It's in the Cannon Building. It's an office building, but it's a beautiful one that evokes to the mind the grandeur of Parisian and Roman architecture. It's one of three office buildings for members of the House. From there, we're going to take a walk outside and cross Independence Avenue toward the Capitol. It's only a five-minute walk, so don't freak out.
- 1.140** As we approach the south side entrance of the Capitol, you might mistake the entrance of the House with images of the Pantheon in ancient Rome, with Corinthian columns

towering 50 feet above, holding in place a beautiful triangular pediment. It's called the Peace Protecting Genius. I'm going to describe it for you. It consists of two figures.

- 1.141** An armed female figure representing Peace stands erect, draped [by] a mantle that almost completely hides her breastplate and coat of mail. Her left arm rests on her buckler, which is supported by the altar at her side, and the background is the olive tree of Peace. Her right arm is extended in a gesture of protection over the youthful winged figure of Genius, who nestles confidently at her feet and holds in his right hand a torch symbolizing immortality.
- 1.142** I kind of love this symbology as it's quite fitting for the House, being a place where many fools have tried to tear down the genius of our founding. Maybe I'm a cynic. Luckily, they have mostly failed. Now, when you're done taking pictures here, from this very perfect spot on the steps that I will point you to, I'll take you to the security checkpoint, and you're going to go through this airport-like security. The only difference is, you can keep water with you.
- 1.143** Now we're going to take a right, and then another right, up a beautiful marble staircase that still has blood stains on it from the year 1890, when a former member-turned-lobbyist was murdered by a journalist. A statue of Thomas Jefferson will greet us at the top of those stairs, and we will continue up one more flight to get to the gallery. You'll turn in your cell phones and your cameras to the security desks because there's no pictures allowed. And I'll escort you to a seat where you can watch democracy play out in real time.
- 1.144** You'll have front-row seats to the House chamber and all of its magic and characters. Sometimes it's quite boring, sometimes it's quite exhilarating, mirroring a reality TV show. It really depends on what day and time you choose to visit and what's going on. But if you avert your gaze from the performance below on the floor and you look up, you're going to see portrait reliefs lining the chamber. There's 23 in total. These are called the portraits of lawgivers.
- 1.145** There's a diverse bunch. They hail from all corners of history. The only thing they have in common is that each one contributed greatly to our modern understanding of the law. So you'll see names like Gaius, Hammurabi, Lord William Blackstone, Thomas Jefferson, Justinian, Napoleon. But one in particular stands out.
- 1.146** As we take in these portrait reliefs, I'll point out to you that all of them are profile pieces, you know, like, from the side. Only one actually looks directly down at the Speaker of the House's chair. This portrait relief is displayed prominently in the center of all the others. Any guesses who it might be?
- 1.147** I heard Moses. It's Moses. Now you may recall Moses, he received the Ten Commandments. He's kind of a big deal. Whether you're a Christian or a Jew or none of the above, he's a big deal. And what are the Ten Commandments? Well, you guessed it,

they're laws. They're not just any laws, they're divine laws. Not the laws of man, but the laws of God.

- 1.148** So what does that mean? Fundamentally, it means they are true. In the ultimate sense, they're true. They're not things to be voted on or changed. They cannot be argued with. They are unwavering. They're a moral anchor by which all other laws remain tethered to.
- 1.149** Now, whether you're a believer or not, the fact remains that America, and the West more generally, derives from moral frameworks from this Judeo-Christian tradition. An atheist can still admit to this. It's just true. In the West, we have an innate sense of right and wrong. Religious people have a more defined playbook for their own morals, but the non-religious abide by them as well, save for a few outlaws here and there.
- 1.150** But no laws exist without a primary lawgiver. And so those Ten Commandments cascade down into our daily lives and responsibilities to one another. In Talmudic Judaism, the stones on which the Ten Commandments were written, forged from blue sapphire, they serve as a celestial symbol, a reflection of the sky, the boundless heavens, and at their heart, the very throne of God. That's why this symbology matters.
- 1.151** Our laws derive their power, their validity, not from imperfect men, but from God. Why else do you think we write, "In God we trust," on everything? And this is really the answer to the question posed above. How do we know if a law is just? Well, the first test might be whether or not it adheres to the most basic truths that began with the Ten Commandments and were expanded upon by the teachings of Jesus Christ.
- 1.152** I'll leave you with something that I wrote down some years back. You can't have freedom without order. You can't have order without law, law without morality, morality without religion, and religion without God. We accept laws willingly as a free society. Most of us stop at red lights, pay for groceries instead of stealing them. We pay our taxes.
- 1.153** Our society could not survive very long if the government had to violently enforce literally every law. We'd be a police state; and the evidence suggests that tyrannical police states can't last forever. And even if they could, well, they'd violate the very principles of freedom we care so much about.
- 1.154** The laws have to make sense to the people, on some level, intellectually and morally, for them to be followed willingly. And citizens have to feel as though they have some say in those laws through their representation. The threat of punishment alone cannot be the sole mechanism for order, or at least not in a free society like ours. That's the why.
- 1.155** We don't have a government for the sake of coercion. We have a government to protect God-given rights and the American principles of ordered liberty and justice. And that wraps up lecture one. Thank you.

Lecture 2: Government in Action

At a glance — Government in action.

- 2.1 Civics is about a lot more than just governments. It's about knowing how the world works, how the economy works, and a little history on how we got here in the first place. How does the food get from the farm to the grocery store shelf? How many farms were involved? Who built the grocery store and who gave them the permit to build the grocery store? How do they keep the lights on and the freezers going?
- 2.2 Who built the roads to get there? And who decided where those roads would even be located? What came first, the road or the grocery store? It's hard to be a good policymaker on complex policy issues without some basic understanding of the society we live in. The task actually starts to become pretty overwhelming.
- 2.3 It requires an understanding of how local government interacts with state government, which interacts with the federal government. It also requires a basic understanding of economics and the local and international supply chains that have evolved over literally hundreds of years to create the modern way of life that we so casually take for granted.
- 2.4 So I want to take you on a walk with an average guy named Bob, about as average as you can get. Bob works for a local petrochemical plant in the Houston area. But let's not get ahead of ourselves. Let's start in Bob's home. It's a planned community, the suburbs that sprawl beyond Houston. Now, who built this neighborhood? The government? No, not exactly. Developers built the neighborhood.
- 2.5 People who pool money together, maybe through private equity, maybe their own money, maybe just a big loan from a bank. So they buy the land, they draw out some plans to build a bunch of single family homes. And there's other companies that build the homes. We call them builders. And so they're just hired to do that. Sometimes the developers and the builders are the same companies, sometimes they aren't.
- 2.6 You need a permit to build pretty much anything in this country, and they get permits from the local government, both from the city, if it's in a city, or the county. Bob lives in Houston, so he votes for a mayor and a city council member. But Bob is also a citizen of a county, in this case, Harris County. So Bob also votes for a county commissioner and a county judge. In some states, the county judge is called the county executive. Every state does things a little different just to make your task in learning civics all the more daunting.
- 2.7 Now, the city of Houston and the county surrounding it have distinct but sometimes overlapping roles and responsibilities. There's law enforcement at all levels, for starters. There's the Houston police department, but also a county sheriff. There's also the state police, which in Texas is called the Department of Public Safety, or DPS, or the infamous Texas Rangers. Now that's just scratching the surface.

- 2.8** The county commissioner is in charge of building and maintaining the roads that Bob actually drives on. For a while, Bob would call his local congressman to complain about the poor condition of a particular stretch of road. But he soon learned the federal government only maintains federal roads, namely interstate highways. He also learned that the congressman only deals with federal laws, the kind that are passed in Washington, D.C., that apply to the entire country.
- 2.9** The federal government actually has very little to do with the policy or governing of the middle school that Bob's son attends, for instance. That's a combination of local and state policy. The county is also in charge of making sure that the developers building Bob's neighborhood follow certain guidelines. For instance, a new law was passed at the county level that requires homes to be built at a certain height in case it floods, which happens a lot in flat, wet Houston.
- 2.10** Additionally, the county ensures that if land or forests are cleared and replaced with concrete, that additional detention basins are built to collect and disperse water in case of, you know, a lot of rain. Throughout Houston, you'll actually see these basins next to large buildings, shopping malls, schools, neighborhoods. Most people really don't even notice them. They're simply large fields that are sunk in maybe 10 to 15 feet below the surrounding area, and then there's a big drain somewhere in them. That's what keeps Bob's house from flooding.
- 2.11** Now, it's not as if the federal government has completely removed itself from Bob's flooding problems. His local congressman takes the issue pretty seriously. For starters, it's the federal government that runs the National Flood Insurance Program, which insures people around the country in case their homes are flooded. This government intervention dates back to 1968, and it turned out to be necessary because there are places in America, namely the ones that flood a lot, Florida, Texas, Gulf coast, that are uninsurable by private insurance companies. Why? Because they can't make a profit.
- 2.12** The federal government also runs an agency called FEMA, the Federal Emergency Management Agency. It's designed to step into action when natural disasters are too great and too costly for any local county to manage by themselves. There's quite a bit of federal money allocated to this task. The US Congress is tasked with ensuring this program is managed and reauthorized and funded.
- 2.13** Bob's local congressman also has some limited powers to direct federal money to local projects. Some might refer to this as an earmark. In fact, every day Bob drives to work and he notices that he passes a bunch of bulldozers and dump trucks and cement mixers. He's not sure why, but what he doesn't know is that they're working on the Lake Houston dam, improving its ability to quickly disperse water by building new gates underneath the water's surface. It was Bob's congressman that pushed for \$50 million to be allocated to that construction, which then opened up more money from the state and local level. It's always a mix.

- 2.14** Now let's press pause real quick on Bob's extraordinary life, because earmarks are worth addressing. After all, the term does evoke an immediate visceral reaction from many concerned citizens. So first, let's do the basic definition. An earmark is a congressional directive that funds should be spent on a specific project. It is the Congress, after all, that holds the power of the purse, as per the Constitution. Article 1, Section 9, Clause 7 reads, "No money shall be drawn from the treasury, but by consequence of appropriations made by law."
- 2.15** It's a key power given to the legislative branch, not the President. And we went over briefly before, the role of the President is to execute the laws passed by Congress. Those laws include federal government spending as well, as sometimes Congress writes budgets that allow pretty broad discretion by the President, say, you know, allocating \$10 million for maintenance and operations of a specific agency like the EPA. It's up to the president then who he hires and how exactly he does that kind of maintenance, because it's a broad law.
- 2.16** But Congress can also be very specific in how it allocates money. The practice of earmarks is exactly that, and it has created quite the controversy. So I'm going to give you the arguments for and against earmarks. Now, technically, these are called community-funded projects in actual legislative parlance, but we're just going to call them earmarks.
- 2.17** Let's start with the arguments against. These arguments have been going on since the time of our founders, actually. Remember who we met at the top of the bloodstained stairs in lecture one? Thomas Jefferson. Back in 1796, Thomas Jefferson wrote a letter to James Madison after he proposed an idea of using federal funds to build roads for the purpose of national mail delivery.
- 2.18** Jefferson wrote, "Have you considered all the consequences of your proposition respecting post roads? I view it as a source of boundless patronage to the executive, jobbing to members of Congress and their friends in a bottomless abyss of public money. You will begin by only appropriating the surplus of the post office revenues, but the other revenues will soon be called to their aid, and it will be a scene of eternal scramble among the members who can get the most money wasted in their state, and they will always get most who are meanest."
- 2.19** Sound familiar? These are the exact same arguments made today. They haven't changed much since Jefferson wrote that. No one trusts politicians will act with pure selflessness, with the greatest interest in mind. And so they hate the idea that a single member might have the power to direct funds to a specific project, which is, of course, contracted to a specific company, which may or may not be run by a specific friend of a specific congressman, or just, I mean, just forget about blatant corruption.
- 2.20** There's a real question as to whether a politician should be able to use public funds as a way to gain favor with his constituents. I mean, it's quite the campaign slogan, isn't it?

"Elect me, and I'll make sure that your school, every school, gets \$5 million for a new football stadium." Democracy can easily devolve into the art of bribing voters for their support. Some say at least half of politicians already have.

- 2.21 Constitutionalists will also point to the 10th Amendment, which clearly states that the federal government only has the power specifically enumerated to it in the Constitution. That leaves all the other powers to the states. Since the Constitution never mentions a congressman directing funds to a specific project in their district, it means they can't do it. Case closed, it's over.
- 2.22 Now, the Constitution does allow the federal government to provide for, quote, "the general welfare" of the country. But the counterargument there, James Monroe made it back in 1822, that federal money should be limited to great national works only, since if it were unlimited, it would be liable to abuse. It might be productive of evil. Earmark critics will also point to the terrible abuses that occurred mostly after the 1980s, when use of earmarks became pretty commonplace and absolutely brazen.
- 2.23 By 2006, there was a record-breaking \$29 billion in earmarks, numbering in the thousands. And guess what? It was the most powerful congressmen, of course, that got the most earmarks. Now, while most citizens probably wouldn't mind such money being spent, you know, repairing a highway, it was, it was the frivolous ones that really got under their skin.
- 2.24 For instance, a little over \$15,000 of earmark stimulus funds were given to Florida Atlantic University in Boca Raton to study how alcohol affects a mouse's motor function. A turtle crossing project cost \$3.4 million to construct a tunnel under Highway 27 north of Tallahassee, so wildlife could safely cross. I'm not trying to pick on Florida here, just examples. But surely the founders never intended for taxpayers in Texas to fund a turtle crossing tunnel in Florida.
- 2.25 So, after salacious stories such as these and the predictable outcry from the public that ensued, Congress banned the use of earmarks from 2010 to 2021. But there's another side to this argument. A constituent asked me recently—they often do— why Republicans allowed the return of earmarks in 2021. I answered him bluntly, as I always do. I supported them because it's the only power that I have to help my constituents, which, last I checked, is my actual job.
- 2.26 So here's the thing. The budget is the budget. Last year's budget was around \$6.2 trillion. Keep in mind, that is a top-line number that is agreed upon beforehand. Everything that goes under that is agreed afterwards. The top-line number doesn't change. So the question becomes, who gets to decide what projects are worthy of attention? The bureaucrats and the executive branch, or the representatives who know and care about their district?
- 2.27 Prior to the widespread use of earmarks, federal money still made it down to the local level in the form of grants. There's countless grant programs. They're meant to deliver

money to states and local governments for specific purposes. A grant's purpose can range from health care to farming to infrastructure. It's an enormous part of the federal role in local affairs, because with money comes influence and a lot of red strings.

- 2.28** Now, to be fair, those grants are formula-based and therefore, in theory, maybe more objective than the subjective will of a congressman. But the question still begs, why should an unelected bureaucrat have such enormous power? Wasn't Congress supposed to hold the power of the purse? Doesn't that local congressman know and understand the needs of their people better than the administrators in Washington? Are those same federal employees not subject to the same biases as everyone else? Some might call that the deep state.
- 2.29** So perhaps it's not the concept of earmarks that is so devilish, but the abuse of them. Lucky for us, recent reforms to earmarks have made them far more transparent, and safeguards have actually been put in place that prevent frivolous projects from being undertaken or personal benefits to be derived.
- 2.30** And as to the argument about saving money, that's just, it's just nonsense. As I said before, the top-line budget is the same. It's a question about who gets to actually spend the money. And frankly, when we total the average cost of earmarks these days, we're talking about a fraction of a percent of the total federal budget. Our budget problems are vast, but for very different reasons.
- 2.31** Now back to Bob. Today, he gets to work. He's driving on a road that was built with money from a local bond sale and also some federal grant money that the county applied for with the help of their local congressman. Bob receives his monthly paycheck today. And he likes getting paychecks, of course. And being from Texas, he sees no state taxes removed from his paycheck. Bob likes that, too.
- 2.32** Texas doesn't have an income tax. Many states do. But no matter what state you're from, every citizen sees their federal taxes withheld from their paycheck. They see a percentage taken out for their personal income tax, which ranges from 0 to 38%, depending on how much money you make. They also see a little section called FICA, which is the money taken out for Social Security and Medicare. Bob likes this a lot less because he doesn't think he'll ever see that money again. And he might be right. But that's a whole other lecture.
- 2.33** Bob continues driving, and he feels like he needs some coffee to make this drive. So, he pops open the sealed lid from his travel mug. He ponders about the thousands of years of human ingenuity it took to create something as simple as this little mug. It's made of stainless steel, or at least part of it is. Steel is not a naturally occurring metal. It's created using iron ore and blast furnaces. He can't even imagine what it takes to build a blast furnace. And how does one even mine ore? Would you get a pickaxe? Like, where do you find it?

- 2.34** He's a simple guy, but he ponders a rather interesting thought experiment. If a man were given eternal life, and total and complete omniscience, so you know everything, and you're also invincible, so you don't have to worry about survival, you're invincible and you know everything, and you're placed on Earth a billion years ago, how long would it take you to build an iPhone?
- 2.35** The man is nearly a god in this scenario. He's invincible. He possesses all knowledge. He doesn't need to worry about basic survival like our ancestors did. But still, how long would it take to build an iPhone? Well, he'd have to first make basic tools. He would have to use those basic tools to dig up the right minerals and materials to make more advanced tools. He would have to find those minerals and figure out ways to travel the globe to get all the ones he needs. He would need to make increasingly more sophisticated tools, one by one.
- 2.36** Eventually, he'd actually have to create a wireless network. How long would that take? A decade? A hundred years? A thousand? Is it even possible without a small army to help him? Even the mug that Bob drinks his coffee from is well beyond the reach of a single individual in modern times. No one can make a homemade travel mug, even if you manage to forge steel into a drinkable shape, which implies that you found iron ore somewhere. What about the laser engraving on the side? How many thousands of years of innovation led to laser engraving technology?
- 2.37** But the most interesting thing for Bob is actually the plastic lid. Why? Well, because that's why Bob's going to work today. Bob works in the petrochemical industry. And this industry does a lot of things that most people have no clue about. Most people think it's just gasoline, but it's more than that. It's electricity production and petroleum-based materials and chemicals, which include everything from tires to synthetic fabrics that you're wearing, to paint.
- 2.38** But one of the most important is the creation of polymer resins. This resin is a petroleum-derived material and it's made into millions of little round plasticky-looking pieces. Why? To make other things out of plastic. That polymer resin is shipped across oceans, mostly to China. It's in China that the resin is melted into little shapes, also known as plastic mold injection. And then they're shipped right back here to the United States.
- 2.39** Bob's plastic lid has more travel experience around the world than most people do, he thinks, especially when you consider that the plastic is derived from oil deep beneath the surface. That oil used to be carbon life forms, maybe plants, maybe dinosaurs. I wonder what kind of stories these molecules tell. A lot of these molecules from ancient dinosaurs probably were then plastic-molded into a plastic dinosaur, ironically.
- 2.40** And it's only recently that humans managed to turn that enormously complex system of creation into an object that maybe costs a few cents to produce. That's kind of mind-blowing. I mean, it is, isn't it? Bob's mug doesn't cost more than 10 bucks. These days,

it's not hard to find a job that requires little to no skills that pays \$10 an hour. So, for one hour of labor in our modern world, the least skilled humans in America can afford to buy a travel mug. And that may not seem like a big deal to people, but it should. It's a huge deal.

2.41 That travel mug is the product of thousands of years of innovation and experimentation and failures. It's the product of miners that mine iron ore; deckhands and captains that ship the iron ore across the world; crane operators that remove it from the ships at port; truckers who drive the material to a steel plant; steel workers who make and mold the steel; oil field roughnecks that drill for the oil; midstream workers that transport the oil; and the petrochemical engineers that turn the oil into polymer resins.

2.42 And we haven't even gotten to the plastic injection molding yet. Or the creation of the company that actually sells the travel mug. Or the Internet that was created so you could buy the mug online. All of that work, all of those supply chains, all of that economic cooperation between different people that have never met, all of it is worth less than \$10 to the consumer. That's a mind-blowing concept.

2.43 The global economy is easily taken for granted. Hell, it's even derided by many people these days. The word globalization has become a dirty word associated with stolen jobs and decaying towns in the Midwest. Now don't get me wrong, some of these complaints are perfectly justified, sort of. The facts in every case are complicated combinations of unfair trade practices, innovation that replaces men with machines, and good old-fashioned comparative advantage of economies.

2.44 But one must be careful. Do not throw the baby out with the bathwater, as they say. Reliable, cheap supply chains are a relatively recent phenomenon. Sure, civilizations have been trading for thousands of years, on and off, depends on the conflict at the time. But the past 70 years have been particularly unique. Only in recent memory have we created a world where a product can be delivered to your doorstep in a matter of hours.

2.45 Only in recent memory can a human spend hours of their day deciding between which ultra 4k, HD, bazillion pixel, whatever flat screen they want because there's just too many options to choose from. Only in recent memory do we get frustrated when the Wi-Fi stops working while we're barreling through the sky at 30,000 feet.

2.46 What's so special about the last 70 years? It's the post-World War II era. What's so special about that? It's the period of American dominance. It's the period of the nuclear age, where major warfare between nations just became too costly to bear. It's the period where global trade was allowed to flourish under the blue and gold security umbrella of the United States Navy.

2.47 Now, we all take this period for granted because most of us didn't live in the period before that. And some even bemoan the seemingly unfair role that America must play as the world police. But we really, really shouldn't take it for granted. Civilization over

the last 70 years has changed quite a bit, but human nature has not. The complex system of global supply chains that took decades to materialize are easily broken apart by foolish human intervention.

- 2.48 Want some examples? Just look at the havoc caused by the COVID pandemic and the subsequent overreaction by many governments around the world. And now it can get a lot worse. As I said, human nature doesn't change. People still want to take things that aren't theirs. They still want control over weaker people. They'll still default to short-term gains, even if it means long-term pain.
- 2.49 Not too long ago, the US Navy intervened and stopped a few Iranian ships from overtaking a couple cargo vessels in the Straits of Hormuz. This is right in Iran's backyard and well outside of America's. This situation can be interpreted two ways. Some Americans bemoan the fact that our tax dollars are used to save some foreign flag cargo ship from Iranian sequestration. But more informed Americans know better. They're thankful for the US Navy and the power that it projects.
- 2.50 These Americans know that when the practice of states intervening in international shipping becomes normalized, the global economy that we all benefit from begins to unravel. They know that maritime insurance will begin to increase, even skyrocket, because of increased risks of shipping across oceans that may be patrolled by bad actors, whether pirates or the Iranians. This will make shipping costs higher, perhaps much higher.
- 2.51 Supply chains will become more expensive, but in reality, many might just disappear. Because for certain products, the price consumers are willing to pay will just not match the production cost. The consumer's only going to pay so much for a plastic lid, and past that point, there's no point in even trying to sell them anymore. And just like that, Bob's coffee lid disappears.
- 2.52 So that's supply chains and international relations in less than 10 minutes. If you want to know more, take an econ course. Let's go back to how basic things work and who governs them. And by basic things, we should talk about what humans need for survival. That's a good place to start. Food, water, shelter, energy. Let's do a crash course on food. OK. Agriculture and farming.
- 2.53 Agriculture and farming are the roots, no pun intended, of civilization. Why? Well, because the ability to grow your own food allows you to stay in one place. Staying in one place allows you to focus on multiple tasks other than survival. Nomadic existence is one that's entirely characterized by finding that next meal, finding that next sip of water. There's no time for anything else. It's just survival. And for thousands of years, that's how humans lived, until farming came along.
- 2.54 So when you can focus on other tasks, you start to invent other stuff. New tools, new designs, new ideas, maybe even write some poetry. Food also happens to be important because caloric intake is a necessary part of human existence. I don't need to tell you

that. And the great thing about today, innovative farming techniques have allowed humans to grow far more food for far more people than was ever thought possible.

- 2.55** If there are food shortages, it's because of bad governance, broken supply chains, or some extraneous event like a war. It's not because we lack actual food. Now, only in modern America can we fathom the idea that obesity rates are higher among poorer people. That is very much a modern problem and, of course, a nutritional, educational one as well. But that's another class, maybe taught by RFK Jr. So you can laugh at that. Come on.
- 2.56** So, food comes from everywhere. It comes from every corner of the country and every corner of the world. America is very lucky in this regard, with various climates, large swaths of fertile land. So we're a major ag producer. But even then, we still import food. We import avocados from Mexico, bananas from the Caribbean, beef from Brazil and Argentina. We also export a lot.
- 2.57** Every five years, Congress authorizes what is referred to as the farm bill. One of the basic functions of this authorization is the crop insurance program. This is important, well, because farming outputs are not always predictable. Sometimes Mother Nature has a say in the matter. You know, if it doesn't rain for a long time; maybe it floods too much.
- 2.58** Global markets also have a say. It's a commodity, after all. It's a global one. Sometimes global prices for a good will drop below what covers the cost for an American farmer. Government-backed crop insurance, much like the flood insurance we mentioned before, is meant to provide economic security to farmers in case prices are too low or crop yields suffer.
- 2.59** Now, you might be wondering, like, you've bought insurance before. You buy insurance for your car, you buy insurance for your home. Like, why does the government need to provide crop or flood insurance? Well, here's the answer. The government needs to because it's not profitable for any private insurer to take on that risk. Car insurance is different. An accident happens rarely and it happens to a single individual. Insurance companies can largely predict those numbers.
- 2.60** Crops and floods are affected by Mother Nature, and it's definitely not one individual affected; it's many. So an insurance company would go broke after one big drought or one big flood. That's why the government has to step in and back up those potential claims. Economists call these market failures, because these are cases where a purely free market cannot provide the desired outcome. And there is a case to be made for government intervention. The military is another obvious example of that.
- 2.61** But why not just import more of our food then, if it's too expensive for our own farmers to produce it? I mean, we have a lot of regulations on them. Let the free market decide who makes the best and cheapest meat and potatoes, and just trade. That's the classical libertarian argument. I'm not a libertarian, I'm a conservative. But I

respect libertarianism as a decent theory about markets in a utopian world. They would be correct that the most efficient thing to do, from a purely utilitarian perspective, is just let the global markets compete and see who comes up with the best products and just trade.

- 2.62** A couple problems with that. International politics is fraught with other considerations outside of just economic trade. There are security disputes, differences in domestic economic policy, differences in labor costs, differences in government subsidies. The list goes on.
- 2.63** Another key thing to remember, most would agree that we as a country have a pretty serious interest in keeping our agricultural industry alive and well. Why? Well, food production is more than just a livelihood for our farmers. It's a life-sustaining necessity for any society. Right, because, look, I mean, I don't know, what if aliens invade and fry up the entire world except the USA? What if we have no more people to trade with?
- 2.64** It's just good common sense to have some ability to make and do basic things that people need to survive. We do not want to be totally dependent on foreign countries for food, full stop. And the thing is, that uncomfortable state of dependence would likely happen if we just let the free market handle it. In the case of our farmers, they do face higher environmental standards. They face higher labor standards than most other countries do. So their costs are always higher.
- 2.65** This is one reason, by the way, that conservatives argue for less government regulation because it makes us more competitive with other countries. We'd rather increase our efficiency, lower our own costs, than increase the need to subsidize industries we like. Both the left and the right want farmers to survive. But you're going to see different approaches in how we do that.
- 2.66** There's obviously a lot more to food production, but at least that's enough to explain how some coffee and some milk got into Bob's mug. The coffee was surely imported, unless it came from Hawaii. In Bob's case, it came from Honduras, and the milk was likely from a nearby dairy farm because Texas has a lot of those. And so far, Bob's mug is a product of Texas, China, Honduras, and Delaware, because that's where the coffee mug business decided to officially locate its corporate headquarters, because a lot do, because Delaware has particularly friendly laws regarding corporate registration.
- 2.67** OK, so Bob arrives to work and he walks into an office. Not surprisingly, this office is filled with these glass tubes fixed to the ceiling. These are known as lights, and they brighten up every room when you flip on a switch. They're powered by electrons that flow through copper wires. In layman's terms, this is electricity.
- 2.68** Copper is a pretty important player here. We need a lot of it. It is used in every wire in every house that has electricity. It's used in our transmission lines that span across America. Running out of copper would be really, really bad. Luckily, there's plenty of it. Unluckily, there's a constant debate as to whether we should even mine it ourselves

here in the United States of America, or import it and be dependent on other countries. Recently, various copper mines throughout the US have been shut down due to environmental concerns.

- 2.69** So there's a constant debate when considering human development. Policy is about trade-offs. Many might believe that simply writing a law to make things better or safer will work like magic, but that is never true. Every decision has consequences, both good and bad. The art of policy-making is assessing those trade-offs and making a decision. So the question in our example here, is the copper mine so bad for the environment that we decide not to have copper at all?
- 2.70** Sometimes there isn't a right or wrong answer to these questions because political differences are often differences in values and preferences. This doesn't mean there's never a right or wrong answer. For instance, if both sides actually agree and make the argument that they want the same end result, well, there has to be a superior way to achieve that result, right? And that should be the heart of the debate.
- 2.71** But with some topics, it may just be that one side has a preference for electricity and one side simply believes we should sacrifice electricity for the preservation of a small patch of land in Arizona or Minnesota, which is where those copper mines are, by the way. That's an honest difference in preferences and that cannot be reconciled. One side will simply win, based on their ability to garner support and win elections that result in majorities in Congress.
- 2.72** Now, in reality, the debate over what should be built or not built is not so simple. No serious constituency actually claims they don't want electricity. They would claim that we can have our cake and eat it too. Shutting down a coal plant, shutting down a copper mine, maybe another refinery, and still have a reliable electrical grid. Now, others would disagree, say that you're eventually going to die by a thousand cuts. You may say you still want the lights on, but your overzealous protection of environmental concerns eventually force the lights off.
- 2.73** Now, this is an honest debate. Building things indeed does have an effect on the environment. Producing electricity creates emissions into the air. Driving cars creates emissions. All human activity undoubtedly has externalities. The proper debate for policymakers and the public at large is always, at what point do the costs outweigh the benefits? That question will never stop being asked. An agreement will never be reached on many issues.
- 2.74** It's simply true that some people believe that we should sacrifice modern comforts if it means less emissions in the air or less land dug up. There are others who believe that modern comforts and the prosperity that comes with them are worth another hole drilled into the ground and a little bit more emissions and carbon dioxide in the air. After all, every breath of oxygen you take in, you're breathing out CO₂, you polluter.

- 2.75** So, while that debate rages on, we are where we are. Americans have largely agreed upon the idea that we should have electricity and the wonders of heating and cooling that come with it. It certainly makes sense to Bob because, you know, he lives in Houston. It's 100-degree summers. So when Bob walks into that office, and it's a nice 70 degrees and the lights are on, he's like, "Man, that's awesome." Because Americans who lived only a hundred years ago would think this is mind-blowing. Air conditioning, like, what? Like, everywhere? Wait until they see the toilet.
- 2.76** Now, at the risk of blowing your mind again, electricity doesn't actually come from the wall. I know. That's just the end point. The starting point of electricity is mostly the same, actually, regardless of whether it comes from a gas plant, a coal plant, a wind turbine. Solar is a unique one. Electricity is produced when a copper wire and a magnet revolve around each other. That's basic electromagnetism, Physics 101. I'll teach that later.
- 2.77** This was discovered by Nikola Tesla back in 1882. So, that means you need to create something that spins. That's literally all you need to do to make electricity—spin magnets around copper wires. Now, you could have a bunch of people run on hamster wheels. You could have them pedal a bike. But this is pretty labor intensive, not very efficient.
- 2.78** You could create a dam, let water run through the gates in the dam that spin giant turbines. Now, this works quite well for producing electricity, and it does so without any emissions. But you need a river and you need to alter the flow of the river, which pisses some people off, so it doesn't work everywhere. You could build a giant wind turbine that spins when the wind blows. Now, many people think this is a great idea, and it can be for a lot of areas, I mean, West Texas, enormous.
- 2.79** But there's drawbacks. You need a lot of space to fit a bunch of enormous turbines. And those turbines are made of a lot of steel and plastics. By the way, that requires a lot of digging, both for oil and for iron. Another way to make something spin is to make heat. The heat will turn water into steam, and the steam will be highly pressurized and flow through a pipe, which will spin a turbine. Boom. You've got electricity continuously flowing as long as the heat keeps coming.
- 2.80** So how do you do that? Well, you set something on fire. There's a lot of things you can set on fire. You can use wood, you can use coal. You can ignite gas or oil. You can create a controlled nuclear reaction which produces heat. The concept behind all of these is basically the same, and there are drawbacks and advantages to each of them. For our purposes here, you just have to know that natural gas is by far the most popular option. Why?
- 2.81** Well, for starters, it's relatively clean from an emissions standpoint. It's cleaner than burning wood or coal. Clean, by clean, I mean carbon emissions. Over the last 20 years, the oil industry revolutionized American power production by doing what we call

fracking, which is a drilling technique to break apart rocks very deep beneath the surface and extract oil. Now, with that oil comes gas. So the concept of drilling for oil is interchangeable with drilling for gas.

- 2.82** There's plenty of natural gas in West Texas and in Pennsylvania to power America for hundreds of years, by some estimates. So some investors get together, hire a driller, drill for some oil in West Texas. It's mostly private land in West Texas, so they don't have to worry about leasing federal land, which is a real headache depending on who's in charge of the federal government at that time.
- 2.83** After multi-million-dollar investments and a few months of drilling, the well starts to produce some oil. That oil or gas is either put in a pipeline or a truck or a train, and it's shipped to a number of different places. Could be refineries where oil is turned into gasoline for your car. Could be a power plant where it's turned into electricity. That electricity flows out of the plant on transmission lines made of steel and copper, and eventually to your outlets in your wall.
- 2.84** Now, operating that electrical grid is a whole other story, and it's complicated, and it's different in every single state. In Texas, we're unique. We have one electrical grid. Bob's electrical grid is operated by an entity called ERCOT, which is the Electric Reliability Council of Texas. ERCOT's in charge of monitoring supply and demand of electrons and ensuring that the number of electrons being produced always matches what is demanded. That's really hard and really complicated.
- 2.85** It's especially hard because sometimes the wind doesn't blow all that much, and sometimes the sun stops shining. Like, literally every night it stops shining. And about 30% of our capacity for energy in Texas is from wind. So when the wind stops blowing, it's a concern to the operators of ERCOT. That means that other production sources have to ramp up energy at that time. The only ones capable of doing that are natural gas plants.
- 2.86** And the other thing is, demand also constantly changes. There's peak times when everyone wants to turn the AC on. I'm not going to go into too much detail here. Just know the electrical grid that you take for granted is a wonder of modern times.
- 2.87** But Bob doesn't pay his electric bill to ERCOT. He pays to a private company. A private company either produces the electrons because it owns actual power plants or it owns the wires that bring the electricity to you. It's different depending on where you are. Again, we're trying to make this as confusing as possible for you. In any case, somebody is monitoring how much electricity you use, and they kindly ask that you pay for it or else they stop sending it to you.
- 2.88** So now Bob's at his desk and he turns on his computer and he's connected to the Internet, which, let's be honest, no one understands. Technically, the Internet is simply the fact that many computers around the world are connected to each other. The Internet's main infrastructure used to physically exist somewhere in New York, but that

just isn't the case anymore. It's both everywhere and nowhere. "It's funky," Bob thinks to himself.

- 2.89** Bob thinks again about his paycheck. This is really eating him up. He loves reminding his friends in California that he doesn't have to pay state income taxes like they do. Ah, but there's a big but. Texas has to get its revenue from somewhere, right? So his California friends remind Bob that they only pay 1% in property taxes. Not only that, but their property tax rate is assessed at the time of purchase only. This is kind of a big deal. In Texas, property taxes are quite high compared to other states.
- 2.90** Now, don't get me wrong, the overall tax burden in Texas is still lower, but the vast majority of our taxes are on property. And what makes it worse, your property taxes go up as the value of your property goes up. Remember the show Yellowstone? It's kind of entirely about this. This means that because you bought your house for \$100,000 in 1995 doesn't mean you will keep paying taxes according to that value. Since your property is now worth \$400,000, that's what you pay. In California, your tax rate would actually still be based on the purchase price of \$100,000.
- 2.91** So now Bob wonders, talk to a financial advisor? Maybe he should buy property in sunny California while he continues working in Texas. So while Bob likes his paycheck, he's also expecting some serious bills to come in soon. He'll actually get three property tax bills, which is so annoying he has to drink a half bottle of Texas-made whiskey every time they come, just to dull the pain. He will get a bill from the county. That's the biggest one. He'll get a bill from the MUD, which is the municipal utility district. They deal with your water. And he will get a bill from the local school district.
- 2.92** He wonders why they can't just give him one bill. He wonders if he should run for office to change that. He wonders what office he should run for to change that. In this case, I'll just give you the answer. It's the state. You don't run for my office. You'd have to run for state office. The state government has authoritative control over its counties and cities. So Bob could be a state representative in the Texas House of Representatives, or he could run to be a state senator.
- 2.93** Not all states are the same, but Texas has a form of government similar to the federal model, with a bicameral Congress and an executive, which is the governor. Bob could file to run for office during an election year. He would have to pay about \$3,000, or he could do it for free, but he would have to get 500 verified signatures. Most people just pay the filing fee. In Texas, legislators don't get paid that much, hardly at all. It's not meant to be a job in Texas. It's meant to be a duty that you engage in while you live your normal life and work your normal career.
- 2.94** It's not a full-time duty. The Texas legislature is only in session every two years for a period of six months. During those six months, it's a full-blown sprint to get all the legislative priorities done. They almost never do. So the governor usually calls a special session and another couple months of session to get additional priorities done. Then

ideally, the legislators go back to their normal lives. Of course, that's not true. They're actually working a lot.

- 2.95** Now every state's different. Some are total full-time legislators, the way I am at the federal level. Now you can have a really interesting debate onto which one is better, but I will say this. There is this romantic, classically American idea that our politicians should be homegrown from the people themselves. Citizen legislators, as they say. In American folklore, we honor the idea of the Cincinnatus, which is the idea that you give up your power voluntarily for the good of the nation.
- 2.96** Lucius Quinctius Cincinnatus, born 519 BC, died in 430 BC, was a farmer, a statesman, and a military leader who served in early Rome. In the midst of a crisis, he was called to serve his country as Rome's dictator. Now he easily could have taken steps to retain that power even after the crisis had passed, but he chose not to. He stepped back and he went back to his farm. And thus he became a model of Roman virtue.
- 2.97** Now, in American mythology, President George Washington is our Cincinnatus. He was by far the most popular man in America, by a long shot. He was the heroic, brave general of a Revolutionary War. He was reluctant to even run for President, but was practically begged to do so. And by every indication he could have continued to serve as President until his death. There were no term limits back then. That amendment to the Constitution came a lot later, after FDR.
- 2.98** But Washington instead decided to step down after two terms. And that became orthodoxy, even though it wasn't written down. Nowadays it has become orthodoxy. It's been a Constitutional amendment, and two terms is the legal limit for President.
- 2.99** So Bob starts thinking about term limits now. He is not doing his job at the moment. He is just way too embroiled in civics. Bob and his friends are adamantly in support of term limits. Most people are. That's a pretty popular position. You got to kick those bums out of office, right? They've been corrupted by the system.
- 2.100** Now, look, my standard answer to Bob, when he asked me that, is, "Look, Bob, I do support reasonable term limits, but only because you and most of my voters do. But I'm also going to be honest with you because I can't help myself. And I'm going to tell you why term limits will never deliver to you the results you think you want."
- 2.101** So first of all, Bob was surprised to hear that Texas, a state he loves and likes the way it's governed, actually has no term limits. No campaign finance limits either. And yet, Bob seems to like how his life is in Texas. So that's interesting, he thinks to himself. The truth is, politicians are the only government workers that must actually earn the trust of the public and run for reelection every two years or four years or six years, depending on your seat. Is that not a form of term limits?
- 2.102** Sure, there's some advantages to incumbency. That would be the counterargument. But there's also a lot of liabilities to incumbency. Cuts both ways. You've got a record

now that opponents can pick apart. They twist the truth, they make TV ads about. And then we have to define, what does advantage actually mean? Because does it mean popularity with voters? And isn't that the point?

- 2.103** So I often hear voters bemoan the fact that politicians just want to get reelected. They mean it as a bad thing, of course. But you might ask yourself, why is it a bad thing? Of course we want to get reelected. And what does it mean to want to get reelected? It means that at least 50.1% of the voters think you should keep your job. If you've got a better set of incentive structures in mind for a politician, I'd love to hear them.
- 2.104** The funny thing about arguments from pro-term limit advocates is that they implicitly assume voters are too dumb to know what's good for them and incapable of independent thought. They don't like to admit that, but it is implicit in their argument. Here's the other hard truth. When a politician is on their last term, they're considered a lame duck. The bureaucrats know they can wait them out. And by the way, the most vocal groups want to limit terms for House of Representatives to three terms. So that's a total of six years.
- 2.105** So what are you getting then? You're getting a bunch of inexperienced politicians who will do whatever their very experienced staff tells them to do. You are literally institutionalizing inexperience. I'm going to repeat that. You are literally institutionalizing inexperience.
- 2.106** Is that empowering the people? No. It empowers professional staffers on Capitol Hill. It empowers bureaucrats in the executive branch. And these are the unelected bureaucrats who know the institutions inside and out. And they wield considerably more power, faced with fresh-faced elected politicians every few years.
- 2.107** The arguments for severe term limits can be traced back to this romantic idea of a citizen legislator. The idea of a career politician is an insult. It's not a compliment, as you all know, but here's my take. A lot of things in politics sound nice as sound bites, and they surely elicit eager nodding heads from voters.
- 2.108** Slogans like "career politician" have come to mean literally anyone who has served one term. If you actually stop and ask, "What is it we're nodding our heads about? What exactly is wrong with someone who has spent 20 years building experience and relationships in order to implement solutions for the complex problems that we face?" If they've been around that long, well, they've obviously built some kind of base of support.
- 2.109** Are some of these career politicians terrible? Yeah, of course. They're human. Politics is a human institution. But here's the thing. The word terrible is a subjective one. I might think someone is terrible because they want a government-run single-payer health insurance system. Another person might think that person is a hero. The thing about democracy is that it lends itself to a wide variety of preferences and those different opinions about what might be considered terrible.

- 2.110** Additionally, you might consider how times have changed. In the simpler times of our founding, the issues facing society were not nearly as complex as they are today. Back then there was plenty to fight about, sure, but the issues were not necessarily beyond the comprehension of a moderately educated citizen.
- 2.111** Now the situation is quite different. The world is amazingly complex. And for better or worse, we have an amazingly complex government to deal with an amazingly complex world. And for better or worse, it requires some serious expertise in very niche subjects, spanning from railroad policy to chemical regulations to sensitive intelligence operations. I can tell you from experience that there is a nearly impossible amount of policy to learn at any level of government. I spent my entire undergrad and postgrad specifically studying government policy.
- 2.112** You know, I recall a committee markup we did earlier this year, on the energy and commerce committee. We marked up 44 bills. In other lectures, I'll teach more about what a markup is. But the point here is that we marked up 44 bills. Every single one, I promise you, was extremely technical. A lot dealt with health insurance policy. Some dealt with consumer protection laws. Some dealt with Medicare drug pricing. You can get a four-year degree on any of those subjects and still never master it.
- 2.113** Learning the ins and outs of the centers for Medicare and Medicaid; learning how pharmacy benefit managers work and how they should be regulated; learning how spectrum frequency should be allocated by the government—did you even know that happened? All of this takes a lot of work to learn. It takes specialization by both members and the staff.
- 2.114** If the most popular voices on term limits got their way, the Speaker of the House would have a maximum of four years of experience before finishing out their last two years as Speaker. Third in line for President, by the way. His or her experience in policymaking would be dwarfed by the experience of the staff that he or she supposedly oversees. The Speaker and every member would be completely reliant on career staff to do anything.
- 2.115** I'm telling you, it takes time to learn these issues. It takes time to learn who you can trust. It takes time to learn what legislative tactics actually work, how to pass a bill. It takes experience to know what has been tried and what lessons might be learned from successes and failures. And guess what? None of that happens with term limits.
- 2.116** What does happen is this. The professional staff on Capitol Hill become the most powerful people; the lobbyists become more powerful; and the bureaucrats in the administration become more powerful. Why? Again, because it's easier to control a freshly minted congressman who doesn't know the ropes.
- 2.117** Now, Bob, being now convinced that term limits are a terrible idea, finishes up his last tasks of the day, and he makes his way to the parking lot to find his car. He thinks some

more about what it will eventually take to run for office. And that may very well be our next lecture. Thank you.

- 2.118** You spoke about the advantages and disadvantages of term limits. What happens when the bureaucracy gets blown up, which is what's being talked about now?
- 2.119** Yeah. So, look, this idea is not new. Every new member of Congress thinks they're going to come to—every new President comes to Washington and says, "OK, we're going to finally, you know, cut the waste, fraud, and abuse. We're going to make sure that appropriations bills match the authorization bills." And that's, that's a whole other subject.
- 2.120** And then they stick around and learn a few things and realize it's not quite as simple as that. It's not as if everybody has just, you know, ignored these problems or not thought of them before. So I view them as being a little bit late to a party. It doesn't mean somebody like Elon might do some great work, but he's going to have to have some people under him who truly understand the institutions that they're trying to, that they're trying to make more efficient.
- 2.121** You know, there's a romantic idea of an outsider coming in, but it is, indeed, that is romantic, because, look, I mean, I don't know what business you're from, but you're just telling me to just come run it better? I got to learn a lot about how your business works before I just figure out how to run it better. And government bureaucracies are no different.
- 2.122** So what I hope they do, and what I think they can be effective in, is just simply—they can identify a lot of redundancy, I would say, in many parts of government. There's a lot of parts of government that you would argue do the same thing and that we should stop doing that. That's just one example. So there could be some good things that come from it.
- 2.123** So you talk about how electing representatives helps buffer against that 51% majority. What do you say when there's people who decide not to vote? Because, well, what if the delegates just decide they're not going to vote the way the people say they're going to vote? Your vote doesn't actually matter.
- 2.124** Yeah, it's a huge problem. It's in lecture four, actually, we get to civic duty and the problem we have with actual voter participation rates. In my primary election recently, it was 14% voter participation. So that's pretty abysmal. When I have my own friends, a couple months later, like, "Hey, when is your election?" "It was two months ago. Thanks a lot, man." So, you know.
- 2.125** And that's the sign of, that could be a sign of a healthy society that feels like things are just fine and they don't really care, or it's a sign of an unhealthy society. And again, we're going to really dive into that in lecture four.

- 2.126** Look, in the end, whoever votes, votes. And that's why voter turnouts, why we spend so much money on voter turnout. We spend money on making you like us, and we're going to go over that in the next lecture. But also voter turnout, because we're trying to get the people we want to vote to vote.
- 2.127** I don't know if that answers your question, but it's, yeah, we are going to get to a lot of those answers in subsequent lectures, about how districts are drawn. We're going to have a discussion about, should a district be 100% blue or 100% red, or should it be 50-50? What's actually the better answer? That's a really interesting discussion to have. So we are going to get to a lot of that.

Lecture 3: How to Get Elected

At a glance — How to get elected.

- 3.1 OK, so you want to run for office because you've lost your mind or because you want to have an amazing effect on the world. I don't know which one it is, but I'm going to break it down for you in the simplest of terms. Here's what you need to win an election. You have to accomplish two things. First, you have to get a lot of people to remember who you are. Second, you have to get them to kind of like you, at least like you a little better than the other guy that you're running against.
- 3.2 I'm going to tell you about my story and how I ended up in Congress. Now, my story is the exception, not the rule. And by the way, everybody's story is different. You can find all sorts of stories from different members of Congress about how they got elected. There is, honestly, there's no obvious path. For me, it was a bit of a game time decision. I left the SEAL teams after 10 years of service, somewhat unwillingly.
- 3.3 I wanted to be a Navy SEAL since I was 11, and I probably would have made a career out of it. But in 2012, I had a rather unfortunate encounter with a rather large IED, an improvised explosive device, buried in some rather rocky ground in the rather dangerous place of Helmand Province, Afghanistan. So I was blinded by that blast, and my whole body riddled with rocks and metal from the bomb. Like, imagine a bunch of rednecks with shotguns with birdshot just blasting you, and then draping you in Tabasco sauce. That's sort of what it feels like to get blown up.
- 3.4 I survived, but I lost my right eye, and my left eye was permanently damaged. It's tough to do combat missions when you can't see all that well. So, I mean, even despite that, being a frogman, I fought pretty hard to get a waiver, a medical waiver, from the Navy. I even deployed two more times overseas, though not in combat roles. But I eventually lost that battle with the bureaucrats and I had to medically retire in 2016.
- 3.5 So I had to figure out what to do with my life. I went to the Harvard Kennedy School of Government, right, because I majored in international relations, minored in physics as an undergrad. I wanted to continue my work in policy and public service. It was always my area of interest. But the question was how? Like, it wasn't, wasn't obvious to me how to do that, and I wasn't sure where to start.
- 3.6 I wasn't considering running for office at the time. It was maybe in the back of my mind, like maybe, I don't know, 10, 15 years from now, maybe we'll think about it. And so when you're looking for a new job in a mid-career kind of transition, you do what one does, which is, you network. And I took meetings in Washington, D.C. with staff and members who had some connection to national security issues, which is of course my background.

- 3.7** And in one of those meetings, I met with a Senate staffer named John. He took one look at my resume and he asked me, "Why are you looking for a job up here? Why don't you just run for Congress?" I said, "Oh, just like that, huh? You just run for Congress?" And he goes, he goes, "Yeah, actually." And he responded that way, with this sort of like matter-of-fact look, like, "Yeah, just do it." And he goes, "OK, what district are you from?" And I said, "My hometown district is the second district of Texas, near Houston."
- 3.8** So he does what one would do in that situation, if you're trying to assess, you know, the, the possibility of running for a particular district. He pulls out his phone and he's looking for a couple things. He's looking for what kind of district it is. Is it deep red or is it deep blue, or is it more of a purple shade? Does a Democrat represent it? Does a Republican represent it? If it's a Democrat, could I flip it? If it's a solid Republican district, what's the member currently doing? Are they planning on retiring or are they vulnerable to a primary challenger?
- 3.9** You'll get an idea of the answers to those questions if you know the political landscape a bit, which I did not. And you can look up who currently represents it and how much they won by. So he was looking at what's called a PVI. I don't even know what that stands for, doesn't really matter, which indicates whether it's deep red, deep blue, or purple. You've probably heard these numbers before. If it's an R+20, a Democrat can never win it. If it's a D+20, a Republican can never win it. If it's a D+5, maybe I've got a chance.
- 3.10** So he looked it up and what he found was actually a bunch of news stories about the current Congressman, Ted Poe, who at the time was representing the second congressional district in Texas. Worth mentioning just because it's kind of interesting that the predecessor and the predecessor before him was none other than Charlie Wilson.
- 3.11** So, the thing about the news stories about Ted Poe, nothing bad, nothing bad, but he just announced retirement. He announced retirement the day before that meeting. Funny, because I was supposed to have that meeting a week before, but it got canceled, so we had to reschedule. So a week before, he would have looked up that, my district, and he would have said, "You're not going to run against Ted Poe. Everyone loves Ted Poe. You're not going to run against Ted Poe, so forget about it."
- 3.12** And then we would have moved on. And honestly, I would have never looked back because I wasn't following politics. This opportunity never would have happened. So it was very serendipitous. And so there I was in this career transition period and now faced with this rather interesting opportunity to take the political track instead of the policy track. It's worth spending a moment on this difference. Policy and politics are obviously related, but they're different.

- 3.13** Policy experts want to focus on one area of policy. They might want to work for a think tank, they work in journalism or work on Capitol Hill, maybe the executive branch. They don't want to be in the public eye and suffer all the downsides that come with that. But there's downsides to just the policy track as well. To maybe state the obvious, you just aren't as influential as you'd like to be. You don't get a vote in Congress, and your best bet at influencing policy is influencing someone who does have a vote, along with the ability to introduce legislation.
- 3.14** If you're a politician, you're a true policymaker. Not only do you get that vote, but you get to contribute to writing the actual laws. And you're not necessarily stuck, either, with one policy issue. You can choose to effect any number of policy issues and you have a platform to communicate and advocate for those issues.
- 3.15** And so, there I was. I was faced with that question, "Why not run?" John told me he had a good friend who ran a campaign consulting firm and he'd give him a call and see if he'd help me get started for a reasonable fee. I said OK. I went home that evening to talk to my wife. We were actually staying in my in-laws' house because they live just outside D.C., living in their basement—you know, just a great time for former Navy SEAL. And without skipping a beat, she said, "Let's do it."
- 3.16** That's important, by the way. If you don't have your family on your side on this, don't even bother. Three days later, moved back in with my parents. Again, what a, what a great former Navy SEAL story. I moved back in with my parents in Spring, Texas, and we started a pretty, let's say, below-standard campaign in my parents' game room. So what exactly did we do? Man, I wish I'd kept a journal because it's all a blur. I wish I still had access to my calendar at the time, but, like, Google deleted it. It's too old.
- 3.17** So what do you do? I mean, we desperately tried to start a campaign and compete with eight other very strong candidates. They all jumped into the race as soon as Ted Poe announced retirement. Now, this all happened in November of 2017. The primary election was only a few months away, on March 6, 2018. This is a Civics 101 course, not an advanced course. But I want to quickly explain then what a primary election is and what a general election is. It's also different in every state, so we're just going to stick with Texas as the example.
- 3.18** The primary election is party-based. You are running against other candidates in the same party who want to be the party nominee for the general election. In the US, there's really only two serious political parties, the Republican Party and the Democrat Party. Other parties can run candidates as well. And you almost always see a candidate from the Libertarian Party in the general election, and they might get 1 to 3% of the vote.
- 3.19** Texas has relatively early primaries, in March. Personally, I prefer that. It gets it over with quickly, and then it allows the nominee to then focus on the general election against the opposing party. In states like Florida, the one we're in right now, your

primary election isn't until August. This means you might spend a whole year battling it out with your primary opponents from the same party, spending all your money, spending all your time, leaving only a couple months to prepare for the general election in November.

- 3.20** So then you got to quickly raise more money and quickly recover from the vicious attacks and rumors that were spread about you during that primary election. Having more time in between these two elections makes it a lot easier to prepare for that next big one. So, in my case, my election would be classified as a sprint because, I mean, November to March, that's like nothing.
- 3.21** Generally speaking, if anybody's asking me about running for Congress, I would tell you that you need about 12 months to start planning. You need to start making calls to donors to raise money. You need to start calling your local party leaders and other influential people. You got to start walking from door to door, hoping for their support.
- 3.22** How do you even find donors? Well, you have to hire a fundraiser. They know the donors and they help set up calls and meetings. How do fundraisers find donors? Well, there's records of political donations. They're all public. You can find them on the FEC website. And so, actually, I want to pause now and just talk for a minute about campaign finance, because it's really a first step when running for office.
- 3.23** Even to just file to run, you need to pay a filing fee or scrounge, and this is in Texas, or scrounge up 500 verifiable signatures. Now, just about everyone pays the fee because even one mistake on the signatures could cost you your position on the ballot. You'll be kicked off. So it's just really just not worth it. Raising money to pay the approximately \$3,000 filing fee, that's the first thing you have to do.
- 3.24** Now, why do you even need to raise money? That's another good question not enough people ask why. Why do so many people say that elections can be bought? What does that even mean? Well, I'm going to give you an answer that sounds kind of cynical, but it's also really honest. And I think you've gotten that from me so far.
- 3.25** We have to raise money because we know you won't pay attention to the candidates or the election, and we know you won't take time to research who we are and what our positions are. So we have to raise boatloads of money so that we can send you flyers in the mail and make commercials on shows that you watch and radio ads on stations that you listen to. We do our best to grow our social media presence, which is sort of free, aside from the staff we have to hire to help us with it.
- 3.26** But we know you won't look too closely at that either. So we spend money traveling the district and planning events that we know most of the voters won't come to, but hopefully a few will, and hopefully they'll talk to their friends about it. We spend an enormous amount of time fundraising and campaigning because, if you recall, you need two things to win an election. You need people to remember who you are and kind of like you.

- 3.27** On average, it's accepted that a voter needs to be contacted about seven times to actually remember you. That's a lot. You might be able to lower that number if you come up with some catchy marketing—eyepatch. But you've also seen some really creative campaign ads go viral or sometimes get famous for some crazy moment that got recorded. But that's the exception. Most politicians have to work extra hard to be noticed by the public, and that's generally, it's the public that's generally not that interested. It's expensive to contact everyone seven times.
- 3.28** And for federal elections, we actually have a limit to how much each individual can even donate to us. That limits \$3,300. It's pretty low, actually. Now, you've probably heard of races costing millions of dollars. Yes, that's normal. When you consider hiring a full staff, it might be \$100,000 a month. And a TV commercial buy could cost anywhere from \$200,000 to \$800,000, depending on the market. And mailing a simple flyer to 50,000 people probably costs \$30-40,000.
- 3.29** And actually, by the way, to even realize who you need to mail it to, you have to hire data analysts to figure out who the right people are to mail it to. So it really starts to add up. You need a lot of people to donate if you're going to get the money you need. So, you know, I want to ask you the question, actually. You think limits to campaign donations are good or bad? What do you guys think? Limiting campaign donations, good or bad? In Texas, there's no limits. I don't know what they are in Florida. The federal level, there's limits. What are the pros and cons?
- 3.30** If you limit it, you need a whole lot of people to contribute. And so that's going to only add to the problem of trying to find people to contribute in the first place.
- 3.31** Yeah, and who does it help? The famous incumbent, that's who it helps. Because I already have access to a lot of people. I've got a big list. Somebody who wants to go up against me, they don't. But if there was no campaign finance limits, they could just get a couple billionaires to fund their campaign and just, you know, have at it. Pros and cons.
- 3.32** But do we like the idea that a billionaire can just fund somebody's campaign? We've decided we don't, which is why we have campaign finance limits. But again, we don't in Texas, and we actually have a pretty good government. So it's really hard to know what the actual right answer to this question is.
- 3.33** So, I did not have enough money to hire a fundraiser when I started. I do not come from wealth. I barely had a campaign team at all. A friend of mine who knew how to print out FEC data and sort Houston donors gave me a list. So, how I started, in my parents' game room, every single night, late into the night, I would email those donors personally and ask for a meeting, tell them who I was, why I was running, and I'd hope for a meeting. I did this late into the night and I woke up early to check for responses. And it worked OK. I got a few donors here and there.

- 3.34** In a more mature campaign, like a real one, which was not ours, we fundraise a variety of ways. Politicians try to get you to sign up for email lists, which means you're hooked, by the way, if you're signed up; sorry, just prepare for a lot of emails. And we also make hours of phone calls to donors all over the country, donors we know have donated in the past. Again, they're on a list.
- 3.35** We might sell merchandise. That's one of the things I did at first. Like, I came up with this. One of my friends helped create this sort of creative image of me that made for great T-shirts. Raised, like, a few thousand dollars off of that, which is nothing now in a big race. But back then it meant everything, because I was just trying to get something done. Politicians ask rich people to host fundraisers in their big houses, and they invite their friends and other politically active donors.
- 3.36** I say politically active because it's really hard for us politicians and their fundraisers to find potential donors if they've never donated before. The FEC's public list I told you about, it's a key part of fundraising. Without it, I think fundraisers would just have to mail entire high-income neighborhoods to get attention. That's an option. Now, I'm not sure there'd be another way to do it.
- 3.37** Now that data is made public, so that the public can actually see who donates to politicians. That sounds good, right? I mean, transparency is good, but sometimes it can not be so much fun for the donors, whether they're large or small. And you've of course seen that before, where people get canceled. But you can't escape the list. It's the law.
- 3.38** So, I raised some money. I paid for some basics. Now you hear about self-funders sometimes. I had one major self-funder against me; she is worth hundreds of millions of dollars. But only you or your spouse can actually self-fund. You can't, like, have somebody else, like, loan you money. They'll be able to trace it. It'll be illegal. And if they have a bunch of disposable income to throw away, well, then you don't even, you don't need to do any fundraising.
- 3.39** I dealt with one opponent who put \$6 million into her own race and that's over the span of, like, a month. That's a lot of money. When I saw her ads coming up during the Super Bowl and the Olympics, I was like, "We're done." You know, you can give your campaign a loan out of your own money and then use future donations to pay yourself back. Now I didn't do any of that. I just retired from the military. I don't come from money. I didn't have any money to lend to my campaign. I wasn't about to take that risk. So, not your typical self-funder.
- 3.40** So before you even get to talk to any voters, you've got to spend, like, 10,000 bucks. You know, you got to have a website. You got to have somebody who designs a website so that you can even take money in the first place. You got to have people who know how to create the proper bank accounts and FEC compliant accounts to even take the money. So that's usually hiring a general consultant. Now the website needs a donation

form, a place for volunteers to sign up, and tell the voters a little bit about myself and my policy positions.

- 3.41** OK, so you get a website, and it's a website that hardly anyone visits. You've at least got the basics by now. You've got a consulting firm hired, and by now you should have hired a campaign manager. The consulting firm's doing the bigger stuff, and the campaign manager is running your day-to-day activities. If you're really serious and you're well funded, you'll hire a communications staff to run your social media, draft statements, write speeches, just generally act as an advisor for things you should say publicly. Or you can do what I did, and do none of that and just do it all yourself.
- 3.42** Now, like I said, I wish I'd kept a journal. I viewed my campaign like a military operation. I needed to accomplish certain goals, get people to remember me, get people to like me. And to accomplish those goals within certain geographic areas, among certain demographics, I needed to build a team that would help me accomplish those goals. And I had to know which the, where the right areas were to go to. That gets to the data portion of it.
- 3.43** Now every action I took was related to this basic operational plan. I really, I really relied on, like, my military training to get this done. And based on data from previous elections, you can get a decent idea where your voters are concentrated. In Texas, voter data is collected by precincts. So you can see which precincts have the heaviest voter turnout and, therefore, which geographic areas are the best bang for your buck. These are the areas that you'll most likely send mail to and deploy volunteers to knock on doors. That's a practice known as block walking.
- 3.44** Now in Texas, you don't register as a Republican or Democrat, so you're guessing based on primary history. That part you do know. You ask people to block walk for you. They're either volunteers or they're paid. They go door to door, talking to voters, leaving your flyers there. Usually better to pay them because volunteers, you know, they get tired. They're just, you know, you usually want to pay them, but you don't have the money. So you have to ask people to help you.
- 3.45** As a candidate, you should also do some block walking, should go door to door. It shows that you're on the ground, in the trenches with the people. You're rolling up your sleeves. And look, if you have a whole year, in theory, like, you could block walk and hit every single neighborhood. But these are generally political platitudes. I'm going to give you some reality on block walking.
- 3.46** In reality, you're spending an enormous amount of time trying to talk to very few people. Like, you might hit 10 doors in, like, three hours, just because people aren't home, they don't answer the door. And you know how weird it is for a guy with an eyepatch to walk up to your door, like, tell me you like that. You don't. Even people who, like, like me would be, like, just, just like the dog's barking, the baby's crying. No

one likes it when you come up to their door. You don't. Especially not me. So choose your block walkers carefully.

- 3.47** Young, starry-eyed teenagers are the best. No one wants to be mean to them. Even if they don't want to talk to them, they'll at least take the flyer and be polite and wish them a nice day. With you, the candidate, it doesn't matter what your background is. Wounded veteran, doesn't matter. You're a politician now. "I don't like politicians." It's like, jeez. So my early days, look, again, I was in a sprint, not a 12-month campaign. This is a sprint. So I didn't have time to walk to every single house in the district.
- 3.48** I did run across the district. That was one thing I did to just, like, gain attention. I literally ran like 100 miles across the district and broke my knee. I think I was in better shape, at least running shape, back then, but I looked for more efficient ways to reach voters. I went to community events, I went to farmers' markets, I went to bars and restaurants. I especially liked going to biker bars because there was a lot of them in my neighborhood and I had a pretty good sense that they were going to vote in a Republican primary.
- 3.49** Also, bikers tend to think that a dude with an eyepatch and a war story is cool. So good place for me to be. So this kind of campaigning is called retail politics. Interacting with voters is an art. People don't want to be bothered for the most part. So there's a strategy to this, if you go up to them in public. And I would go up to them confidently, and I would say very quickly, "Hi, my name is Dan Crenshaw. I'm a former Navy SEAL, and I'm running for Congress to replace Ted Poe. He's retiring. Here's a little bit about myself. I'm happy to answer any questions you might have."
- 3.50** Leave it at that. I'd hand them my flyer, shake their hand. If they want to ask questions, they will. If they want to be left alone, I leave that option open for them, so you're not bothering them. There's nothing worse than someone who interrupts your conversation and overstays their welcome. It's basic social etiquette 101. And if you can't get social etiquette 101 down, then you probably shouldn't run for Congress. Remember, you need people to kind of like you.
- 3.51** Well, what if they do ask questions? And a lot do, and it'll usually go like this. A common one is, "OK, well, I mean, tell me what you're about. Like, what are you running on? What do you believe in?" The last very general question's like that. Class discussion. Who wants to take a stab at? Let's say you're the one running, and I just asked, and you just gave me that flyer, just like we discussed, how would you answer that question? What's the best strategy? You don't need to talk about your own political beliefs, but what's the best strategy to answering that question? This is a how-to-run-for-office class.
- 3.52** Probably something like, "Tell me what's most important to you, and I'll tell you what I think about it"?
- 3.53** Did you give her my lecture? It's exactly what you should do.

- 3.54** I'm a therapist. It's easy to know how to ask questions.
- 3.55** Exactly what you should do. Never just start rambling about your policy. You don't know who this person is. You don't know what's important to them. You want to just go rambling about your policy platform? That's crazy. People do it all the time. Should do exactly what you just said. And that's exactly what I would do. I would say, "Well, tell me what's important to you. Let me talk about that."
- 3.56** And based on how they answer that question, the words they use, it's really easy to quickly tell, first of all, which party they belong to and, of course, what's important to them, because they're telling you now. Yeah, I mean, a rookie candidate will, I mean, they'll try to answer it. They'll start rambling about every issue that comes to mind. They'll tell their life story, recite some annoying talking points that are already on the flyer that they just handed you. Don't do that. Instead, you ask the reverse question. What's important to you?
- 3.57** And like I said, it kind of tells you who they are. If they use words like equality and justice, well, I can tell you they're a Democrat, so you'd better adjust your answer accordingly, because you still want Democrats to vote for you eventually. If they start talking about how much they hate their high tax rates, they're probably a Republican.
- 3.58** It'll also tell you what issue you should talk about at that moment, right? You may have planned to ramble on about gun rights and infrastructure, but now, you know they just want to hear about health care costs. So maybe you should talk about that. Asking that simple question, putting it back on them, you can offer a focused answer that is just tailored for them, and that beats the hell out of trying to guess exactly what they want to hear.
- 3.59** I place a ton of value in retail politics, especially when you're just starting out. You're a new candidate; no one really knows or cares about you. And it's not like your day is packed with important meetings or events. You need to get out, and you need to talk to voters somehow. And retail politics is the simplest way to do it. It also is like your own, it's your own way of doing a focus group. You're learning through every conversation, and you're becoming a better candidate with every conversation.
- 3.60** And you're also talking to people—and this is maybe the most important thing—you're talking to people who wouldn't necessarily show up to political events, which is basically everybody. This is a good time to talk about political events. What kind of political events do we do? OK, so there's rallies, there's fundraisers, there's town halls, there's meet-and-greets. They're kind of all the same thing. And it's important that you have as many of these as possible scheduled for your campaign.
- 3.61** And all of them, you need a venue, for starters. Now, maybe you rent out a large space, but that costs money. But you can put a stage there and a microphone, maybe even a bar in the back. Maybe somebody in the neighborhood likes you and wants to invite their whole block and whole neighborhood and all their friends to come and hear from

you. We did a ton of those. Those are the best when you're starting out, and I was grateful for every single one of them.

- 3.62** I'm going to categorize these types of events for you, tell you what's good and bad about them. So let's start small. Meet-and-greet, kind of like what I'm talking about. Somebody, somebody hosts you at their house, and they invite all their, their neighbors. First, I call something a meet-and-greet if it's a simple venue at a house or restaurant or brewery or something like that, and we put out a public invite to just come meet me, hear what I have to say.
- 3.63** I might, I might say a few words. We'll take a bunch of questions. We'll mingle, we'll take pictures, we'll do that kind of thing, maybe 10, 20 minutes, but then stay, you know, drink a beer with people. Now, I'm not asking for money at these things. You know, we're always ready to take money if people want to give it, but it's not a fundraiser. You're just trying to talk to your voters. These are pretty casual events. They're relatively easy to plan. We like doing these, and we try to do them in all corners of the district during a campaign so that, like, everybody feels like they have a chance to meet you if they want to. That's important.
- 3.64** A step up from that might be a town hall. There's not really a difference, logistically speaking here. To be honest, the real difference is the name, and then that informs the type of people who show up. So if you call an event a meet-and-greet, you're going to get a mostly friendly crowd. If you call an event a town hall, you're going to get more people who don't like you or what you stand for, and they came there to yell at you. That's just the truth. There's really no difference between the two except those things.
- 3.65** Now there's a rally. A rally is a bigger event. It's meant to have more flair. It's meant to be more fun. You probably have some special guests that are known to the crowd, maybe a band playing. One of my first ever, I guess what I consider a rally, was with my friend and former Navy SEAL Marcus Luttrell. You might know him. He's the famous bestselling author of Lone Survivor. His presence, and he lives right outside of Houston, his presence was a huge draw to local voters. Everybody knows who Marcus Luttrell is. And so we rented out a large event space, and he gave a short speech to introduce me. And we were on. We were doing well by that point.
- 3.66** And then you have fundraisers. So a typical fundraiser, you need a host. That's usually how we do it. A host is typically wealthy or at least has a lot of wealthy friends that they can invite to their home or out to lunch or whatever. These kind of events are generally more private, more exclusive. Donors have a chance to get to know you better than they would at, like, a public event where you're just kind of quickly trying to shake hands and talk to everybody.
- 3.67** And in theory, all of these aforementioned events are pretty simple and straightforward. In practice, it's pretty difficult for a new candidate, like I was, to make any of these events happen because nobody knows you, nobody cares. It takes a lot of

work in convincing and networking. And by the way, like, I haven't even lived in Houston since eighth grade at this point. I was an oil and gas brat.

- 3.68** I had a good excuse, and you'd better have a good excuse in Texas. Florida's a little different, but if you're not from Texas, and I'm sixth-generation Texan, but my dad worked in the oil fields. So, you know, I was born abroad. I grew up in multiple countries, but I never lived anywhere in the US except Houston. And then I was in the military for 10 years, living in San Diego. So I had to tell people, "Look, I came back to Texas as quickly as I could." That's the right—"and I'm sixth-generation Texan." It's very important in Texas.
- 3.69** So I'm wandering through the political desert without a compass. And look, somehow I struck gold. Like I said, I'm the exception. I'm not the rule. Now let's talk about candidate forums. This is an important one. This is another kind of event that we did. If you watch political movies, you might get the impression that political debates are these, like, big productions that everyone's tuned into, and they're full of drama and excitement and punchy one-liners, and the whole town shows up and cheers and jeers.
- 3.70** In reality, the American people don't pay much attention to campaigns. Only rarely do elections—and they do happen, but only in competitive and important races do they really draw out the kind of flair that you see in the movies. If you don't watch this lecture, at least watch the movie *The Campaign*. It's an underrated comedy with Will Ferrell and Zach Galifianakis.
- 3.71** And there's this hilarious scene where there's a debate in, like, a high school gym, and the candidate, played by Zach Galifianakis, pulls out a coloring book that Will Ferrell's character had written when he was 8 years old. And it's about Rainbow Land, where everything is free. And so he brings it out and starts reading it, where you can go to Rainbow Land, where everything is free and chocolate and cookies and all this, and that's where you can live. And he's like, "That's a communist manifesto."
- 3.72** And Will Ferrell's, like, "I don't know. I wrote it when I was 8." There's people in the crowd, like, "You can't make me live in Rainbow Land. I will never live in Rainbow Land." Like, it is just mayhem. It's meant to be comedy. But I'll tell you what, if you talk to any politician about this movie, they're like, "That movie is exactly what my life is like running a campaign." The comedy is too close to reality. That's, it can be true.
- 3.73** But you know, for the most part, they're not that exciting. Most of these debates, most of these candidate forums, they're small-town affairs and they're attended mostly by local party activists. Now, in some parts of the country, there's dozens of political groups that meet regularly and they want to host these candidate forums. I think that's awesome. In other parts, there's none. It just depends on where you're from.
- 3.74** In my district, there was quite a few groups. I feel very lucky about this. There was Kingwood Tea Party, the Northwest Forest Republican Women, the Kingwood Republican Women, the Cypress Tea Party, the Harris County Republican Party. The list

went on and on. Our first forum was actually the Houston Pastors Council. So we had like nine forums, I think.

- 3.75** So, is this a good thing or a bad thing? Well, I mean, from a civic duty perspective, it's a great thing. But that's not really my question to you. My question to you is, is it a good thing for you and your campaign? Because we always welcome more civic engagement, but for you, well, that answer depends on you as a candidate. Are you good at outshining your opponents on stage? If not, well, you might hope for a district where there are no forums and no civic engagement, and you can just mail voters some information about yourself that makes you look good.
- 3.76** If you fail social etiquette 101, again, best to keep away from these social situations and politics in general. If you're a bad public speaker, you might not want to be at these forums. You also probably shouldn't be running for Congress. Then again, I know plenty of congressmen who can barely read a speech, so I'm telling you, the bar is not that high. You're more qualified than you think.
- 3.77** Now, like I said, I think we did about nine forums, and they were stressful. Like, I'd never, I'd never done these things before. I was never, ever involved in politics before the moment I ran for Congress. I was a policy guy. I was in the military and I was a policy wonk. I'd just completed my master's in public administration at the Harvard Kennedy School of Government. So I had no problem answering a wide variety of policy questions. But I'd never really debated anyone seriously.
- 3.78** That being said, again, I was extremely grateful that we had so many forums, so many people that just, that wanted to put all the candidates in front of them and make, like, a merit-based decision. It was awesome. It was an opportunity to showcase myself in front of the most politically active members of the community, because the room's filled with voters who are definitely voting in that primary.
- 3.79** And these are people who are definitely part of probably local Republican groups. They talk, they gossip, they post online, they make their opinions known. So it's a really good opportunity for you. And if they like you, they'll put the effort in to spread the word about you.
- 3.80** So how do you know if you're doing well? Because it's one thing to debate somebody from the opposite party where you disagree on everything, on every issue, and there's a real debate to be had, whose policy platform is better. But in a primary election, everyone pretty much agrees more or less on what the issues are. So what is there to debate? And I suppose that's why you might call it a forum and not a debate.
- 3.81** My strategy for winning the forum was pretty straightforward. I had to prove to the audience that I was their best option to fight for their beliefs and their values in Congress. I had to convince them that I knew more than my opponents did when it came to any issue that they cared about most. I'll give you an example.

- 3.82** If the question is, and this was the question a lot back then, you know, Houston had just come out of Hurricane Harvey, one of our more devastating hurricanes and flooding problems in a century. And so the question would be, "Our district was recently hit by Hurricane Harvey, one of the worst floods in our district's history. How are you going to make sure we're better prepared for the next big storm?"
- 3.83** And most political candidates aren't experts in flood mitigation policy. So, they'll start off with kind of a non-answer that mostly just repeats the severity of the problem. They'll say, "We all saw our neighbors suffer. They lost everything they owned in 7 feet of water," or something to that effect. They're trying to sow compassion and understanding, which is good; you got to start with that. They might go a layer deeper, talk about another reservoir that needs to be built, or drainage improvement, or additional dredging that needs to occur.
- 3.84** But if you really want to impress your audience, you have to balance talking points with some thoughtful details. If you're running for Congress, you should tell the audience what you know about the federal role in flood mitigation and what federal agencies are actually involved. Before I got to any of these forums, I met with local experts on flooding. I learned about the role of the Army Corps of Engineers and FEMA. I learned which flood mitigation projects had serious engineering plans behind them and which ones were just popular to talk about.
- 3.85** For instance, I'll give you an example. Almost everyone kept talking about this infamous third reservoir in northwest part of the county that was never built. And if we had just built it, then this wouldn't have happened. But you investigate that a little further, and it was not a realistic solution at all, for a variety of engineering reasons. And building it now just, it wouldn't have affected the flooding caused by Hurricane Harvey.
- 3.86** So, contrary to popular belief, I still believe that voters want truth more than anything else. They want competence and they want you to make realistic promises that you can actually keep. Maybe that makes me kind of idealistic in a world where politicians have built an extraordinary habit of telling voters exactly what they want to hear. Might make me naive, but I still think it works, at least in the long run.
- 3.87** It's easy to tell voters you're just going to fight harder than the other guy, but it's more substantive and certainly more truthful if you tell them how you are going to use your position to convene the right local and federal agencies together, identify the right funding mechanisms to actually get the outcomes they want. Screaming and yelling, it always sounds better on the campaign trail, and a lot of people do it, a lot of people like it. It's also a bit meaningless if the real goal is actually accomplishing policy wins on behalf of your constituents.
- 3.88** So demeanor matters quite a bit when you're debating publicly, too. You've got to add a little humor. You know when to smile, you know when to wave, when to show some righteous indignation. In one debate, when we were down to a runoff—so that's how it

works in Texas; if nobody makes the 50% threshold, it goes to a two-person runoff—my opponent remarked that I had no life experience. And I was, like, 33 at the time, so I guess younger. He said I had no life experience and was therefore unworthy of winning the seat in Congress.

- 3.89** I didn't react with anger. I didn't need to. I was a Navy SEAL with 10 years under my belt and multiple combat deployments. So no, I hadn't built a multi-billion-dollar business or anything. But then again, neither had he. But I certainly had some life experience and I just calmly responded that if 10 years serving my country in the most elite fighting force in the world doesn't count as life experience, then I don't know what does. And guess who took my side? The audience.
- 3.90** Does your vote even count? I mean a lot of people think it doesn't. Some people think it does. I have, I have some proof that it does. Look at my election. In Texas, you could request a mail-in ballot if you're disabled or over 65. Those ballots start coming in a full month before the election. So that was not good for me. Remember, I was in a sprint.
- 3.91** I hadn't raised enough money yet to even send out mail to senior citizen voters. So they have, like, no idea who I am. And they're, amazingly, shocker, they're not going to my website. So they had no idea when that, who I was when they started voting. So I lost that demographic pretty badly. Then, early voting starts in Texas two weeks before the election. I had a little bit more name recognition by then, but not much. And I didn't do all that well in the first week of early voting either.
- 3.92** Now, to be clear, we discover all of this data post-election. We don't know it at the time, but we have a pretty intuitive sense of what's going on. Like, I can feel what's, what's happening. By the middle of early voting, we had a lot better chances. Like, we'd caught fire finally. And I did really well in the debate forums. And so, like, I was, I was doing really well. And I, of course, had some good marketing techniques, i.e., the eye patch.
- 3.93** Now, just pause there, because I want to explain what the eye patch is. No, it's not a gimmick. But I did find early on that if I talk to voters who had never met me before and I wear my glass eye with a big gold trident in it, which is my, my kind of usual look that I would always have in the SEAL teams, it's very distracting to people who don't know you. And then they ask questions. I've gotten weird, like, "Is it a tattoo? What is going on?" You know, they, they, if you wear an eye patch, it tells the story.
- 3.94** It also looks better on camera. Glass eyes do not look, they just, mine at least don't look good on camera. So the eyepatch was a necessary kind of new part of my campaign. Even though in my normal life, like, I would wear eye patches, but I would wear them in very much formal settings, you know, like just because it looks good with my uniform or what have you. But, but you know, my gold trident eye was like my favorite thing to wear. Most military guys who've lost their eyes, they would tell you the same thing. They like to have, like, their unit symbol in their eye.

- 3.95** So that's the story of the eye patch. And it also helped me get remembered. OK, that's the Navy SEAL guy with the eyepatch. Remember him? They might not remember my name, but they remember that guy. I'm not the only one who understands this concept of having, like, a visible moniker that helps people remember you. I have a friend, my wild friend from Tennessee, Tim Burchett. He always has his Carhartt jacket on, always. Beto, not my friend, always wore the same outfit, a light blue button-down shirt, anytime you saw him.
- 3.96** Jim Jordan from Ohio always wears a light blue shirt and yellow tie without fail, and with no jacket. The only time he wears a jacket is on the House floor because those are the rules. And have you ever seen Donald Trump wear anything else but a black suit and a long red tie? No. Marketing is about consistency, and a good candidate figures out what that looks like. As long as it's authentic, it'll work. If it's not authentic, people will know.
- 3.97** If you're a soft-handed lawyer trying to convince rural voters that you're pro-gun rights, do not try to shoot a commercial acting tough with an AR15 that you barely know how to shoot. People see right through it, and they'll make fun of you. But I digress. The point of this section is about whether or not your vote counts.
- 3.98** By the time election day came around, I thought I was in pretty good shape. But again, many of the votes were not cast on election day. They're cast early. They're cast through mail-in ballots. So it was going to be close, like, really close. Votes are tallied by precinct. So when voting ends at 7pm on election day, again, this is just how Texas works, each precinct begins packing up their voting machines and prepping them for delivery to be officially counted.
- 3.99** Some do this quickly, some take an annoyingly long time. No one takes as long as Pennsylvania or Arizona or California. But that's generally why you don't know who the President is right away. In my case, as is always the case in Texas, we find out that night. Now, the first thing we find out right at 7pm is the early voting numbers, because we count those ahead. Luckily they count those ahead of time. So right away at 7pm they released the early voting numbers. That includes mail-in ballots and the two weeks of early voting before that.
- 3.100** And it was not good. I was not doing well. I was in third place, which I guess is better than last, but I was in third place with 19% of the vote. Kathaleen Wall, the lady who spent 6 million bucks, she was in second place with 27%. And Kevin Roberts, who is a current state legislator, was at 33% of the vote. So in Texas, you cannot win the primary unless you break 50% of the vote. Not all states are like that. Like, Ohio, for instance, is not like that. If you just—Kevin Roberts would have been the guy in Ohio.
- 3.101** In Texas, you got to break 50%. If you don't, the top two go to a runoff. But I wasn't the top two. I was third. So how the hell am I here? It meant I had to win so many new votes on election day to actually go from that 19% past Kathaleen Wall for second

place. And the thing is, I did. By around 2am when the last few precincts had finally reported their numbers, I'd managed to make up that massive difference and squeak into second place by a mere 155 votes. 155 votes.

- 3.102** So it was me and Kevin Roberts in the runoff election, and the rest is history. So if you say your vote doesn't count, think again. It does. I tell people all the time. And we called it Mission 155 in the general election. You can talk to 155 people. You can make 155 phone calls. You can change the course of the country, just with a little bit of effort. A lot of these races these days are hyper-close.
- 3.103** Now, the general election. The general election is just about always a contest between a Republican and a Democrat. There's some notable exceptions. The local mayor's race in Houston, for instance, there's no primary and therefore no party affiliation with the race. So it's a nonpartisan race. That being said, everyone kind of knows who the Democrat and Republican is.
- 3.104** In other cases, there's registered independents. You know, Bernie Sanders in Vermont, Kyrsten Sinema in Arizona. They both have very different reasons for choosing that path. Sanders is, like, too far left to be a mainstream Democrat, so he registers independent. And Sinema is too moderate to be a mainstream Democrat, so she registered independent. There's, there's tactics at play there, but for the most part it's Republican versus Democrat.
- 3.105** So in my recent general election, I face very little risk of being beaten by a Democrat. My district is very red, which simply means there's a lot more Republicans than Democrats. Now you move one district closer to Houston, and all of a sudden you've got an extremely blue district. It might seem strange to you that representatives can essentially represent the same area but have radically opposing views on just about everything.
- 3.106** If you're noticing that, you're not crazy. It is kind of strange. And I don't think it's what our founders thought would happen either. They figured that representatives in Congress would probably build coalitions around interests related to their geographic region. Some of that remains true, don't get me wrong, especially on key issues like, you know, for example, in Florida, pretty much all the members are against offshore drilling, even like the pro-energy Republicans.
- 3.107** But for the most part, our politics has bifurcated into two opposing ideologies, and we're doing a whole lecture on that later. We won't get into it right now. But why does this happen? Why do districts vary so wildly? Why are some considered swing districts and others not? And who makes these lines anyway?
- 3.108** According to our Constitution, it's up to the state legislatures to draw those lines. Article 1, Section 4 states, "The times, places, and manners of holding elections for Senators and Representatives shall be prescribed in each state by the legislature

thereof. But the Congress may at any time by law make or alter such regulations, except as to the place of choosing senators."

- 3.109** So this is a little vague, basically says it's up to the states, but we have a little bit of power, if we want to change how we do federal elections for the House. We choose not to do that because we play the shoe on the other foot game and realize that if we make a change, the other side is going to be in power, make another change. So we've all kind of stayed away from that.
- 3.110** Section 2 adds some other details, such as two-year terms for House members and six-year terms for Senators, and requires that each House member represents no less than 30,000 citizens. So the US Congress could change the manner in which House members are elected, but we haven't done so. Why? Probably because both political parties realize how contentious that would become and how a temporary advantage given to one party could swing wildly the other way when the other party gets control.
- 3.111** Different states draw their districts with different processes. 31 states use the literal interpretation of the Constitution and appoint state legislators to draw the maps. Every 10 years, after the constitutionally required census is completed, lines get redrawn so that each house member has an equal number of people in their district. Right now, that number is about 750,000.
- 3.112** Now, the process is inherently political. Some states seek to avoid this by appointing independent commissions to draw the lines for approval by the state legislature. Some even allow the commission to have final approval. But keep in mind, the state government could at any time just pass a law to reverse those decisions and the process altogether. In the end, it is up to the state legislature how this works, which means it's always political. You can never remove politics from this process.
- 3.113** So you've probably heard the word gerrymandering. It usually means people don't like the shape of the district. There's a bit of history of malice associated with the term. So let's go over it real quick. The term has its origins in the year 1812, when the Massachusetts state legislature drew congressional district lines to favor their own party. This was the Jeffersonians at the moment.
- 3.114** It was the Boston Gazette that coined the term when they ran this cartoon. They called it a new species of monster, the gerrymander. It was Governor Gerry that signed off on the district lines, hence the namesake, and the critique that these districts looked more like salamanders than a district. But it sort of begs the question, doesn't it, what's a district supposed to look like? A square? A circle? A rhomboid? What does an ethically objective district look like? Honestly, nobody can answer that question. Nobody. Because it's inherently political.
- 3.115** And what matters to the shape of the district? Remember, you've got to draw in 750,000 people. That's why some districts are enormous, with dozens of counties, and that's why some are in a major city and have only one county, because you have to

have equal number of representation from each representative. So you're going to have funny lines no matter what.

- 3.116** So what matters? Well, maybe it's the intent behind those lines. Maybe there was a racial component. Supreme Court agrees with that, of course; variety of districts have had to be redrawn in accordance with the Voting Rights Act of 1965. So there's indeed been cases of malevolence and bad intentions with drawing district lines, especially when those intentions were meant to disenfranchise black voters.
- 3.117** But I still want you to ask yourself, is it necessarily malevolent when drawing lines for political party reasons? How do you get around it? You might not like it, but is it malevolent? And more importantly, is it avoidable. So I'm going to show you a district, or a picture of my first district that I ran in. It's different now because we went through a census. So I have a totally different district than the one I first ran in, but that was my original one.
- 3.118** And what you can see there is exactly what you would think is a gerrymandered district. It looks like the salamander that everybody hates. Someone actually pointed out that it kind of looks like Bart Simpson taking a dump, and I can't unsee that now. It, like, wraps from, like, northeast Houston, Lake Houston area, all the way down to, like, southwest Houston. Wide variety of people there. So is it gerrymandered? Is it unethical? I didn't, I didn't do it. People yell at me about it, but I didn't, I didn't draw those lines. I just ran in the district as it was.
- 3.119** Now, the problem with this casual analysis, that there's some kind of foul play involved, is that everybody just looks to the shape to draw conclusions. And I would call that single variable analysis, and it's the opposite of critical thinking. Because here's the thing about that district. It was 33% white, 13% black, 27% Hispanic, 8% Asian, and more or less represented the ethnic makeup of Texas overall. It had very conservative rich, white neighborhoods, and it had very, very liberal, richer white neighborhoods.
- 3.120** Is that fair or not fair? I won the district by less than 5%. So it was a pretty competitive district. So what's the perfect district? Should it be randomly generated by a computer? Should race be a factor at all? Is there some inherent value to a purple swing district? Or is there value to having a district where 100% of the voters generally agree on values and policies? If you think there's a right answer to any of these questions, I'll sell you some beachfront property in Nebraska.
- 3.121** There's preferences to these questions, but there's no right answers. There's trade-offs, which is what I think we want to discuss here. But there can't be a right or wrong answer. The drawing of lines is always going to be a human endeavor, and therefore tainted by politics, and therefore preferences. Just got to deal with it. It's one of many factors you must consider in a general election, at least for Congress.
- 3.122** The circumstances of any election are dependent on far too many factors to go over here. The issues that voters care about change with the times and the headlines. We

spent a lot of money hiring professional polling companies to call voters and ask them questions. It helps us focus on what matters most to people; helps us gauge support for our candidacy and our message; and it tells us if we have a chance of winning or not. Bad polling might make a candidate drop out of a race.

3.123 Winning a general election is about a few basic things, though. I've gone over most of it, right. You need money; we established that. You need to buy advertising. You need to market yourself. You need to get in front of voters and you get them to kind of like you. In a general election, you have to convince the people who are in your corner to actually go out and vote. Remember, most people think their vote doesn't really matter because it's washed away by so many thousands of others.

3.124 We have pretty abysmal voter turnout numbers in this country for being the beacon of democracy and all. Only 14% of registered voters bothered to show up in my last primary. Local elections get way less, often decided by less than 20% of registered voters. Sometimes way less than that, just a few hundred people. So, a lot of the money we spend in a general election is actually not just on persuading voters to like us, but actually persuading them to come out and vote. A district with 51% Republicans can only be won if the Republicans come out and actually vote more than the Democrats and vice versa.

3.125 But the most important thing, and I think we should end on this, is to know why you're running. This is always my last piece of advice, or first piece of advice, really, to anyone who asks me if they should run for Congress. Because you'd be amazed, or maybe you wouldn't, how little thought many candidates put into their why. It's the first question I ask a candidate looking for advice.

3.126 Why are you even running? Is there some special skill set or knowledge you bring to the table? Is there a particular issue you are passionate about and knowledgeable about? I see plenty of passion in politics. I don't think there's any shortage of it. But I couldn't care less about your passion if you don't know jack about the issue you're passionate about.

3.127 You're passionate about fixing our open borders. Great. Tell me the difference between Border Patrol and ICE. Tell me what the Flores settlement is. Tell me what credible fear standard is for asylum claims. You can't? Then why are you running? You should step aside and let a serious person take the job. Now, maybe I'm cynical. I definitely am. But I think this is a real problem. People are running for Congress because they made their name with some snarky tweets and riled up a few people. People are running for Congress because they want a bigger platform to tweet snarky tweets.

3.128 And the worst part, sometimes voters vote them into office. So if you're going to be a serious lawmaker, you need to know why you're running. And there's not a right answer to that, but it should come from the heart. You should be able to tell someone in 30 seconds, like an elevator pitch. And it'd better be more than just, you know, "I feel

a call to serve" or "I'm tired of Washington being broken" or whatever cheap tagline we've all heard before.

- 3.129** You don't run because you want to be a congressman or a mayor or a president. You run because you want to do things. You run because that position, and only in that position, can you effect change. What kind of change? Well, we all disagree on what kind of change is the best change. That's the whole point of politics, disagreement without violence. That's civilization in a nutshell, the ability to disagree without killing each other.
- 3.130** What you want to do matters most. Maybe the voters won't like what you want to do, and so you won't win. That's not your fault. Preferences are preferences. Try again and work harder to persuade the voters next time that your idea of change is the best way. That would be the honest endeavor. That's enough about what it takes to be a politician.
- 3.131** The next question we must ask is about you, the voter. What about you, the citizen? What are your duties? What are your duties in an election? What are your duties in a democracy? What are the attributes of a good citizen that are necessary to keep our great American experiment on the right track? That's our next lecture. OK.
- 3.132** What did your SEAL buddies think when you decided to run?
- 3.133** That's a great question. Generally, pretty supportive. Not even generally. I would say 100% supportive. And that's not the case with all SEALs. So my, my anchor is, is the SEAL teams. Like, these are, these are the people I can trust with my life, and their opinion means everything to me. So when they tell me that they appreciate how I represent them, that means everything to me.
- 3.134** So I'm, you know, I've traveled to San Diego and Virginia Beach often, because our best friends are out, most of our best friends are still, still in the teams. And they're, yeah, I mean, I would, I would say I can, I can honestly say that I get, that I get very good feedback, which means a lot to me. And it drives my, it drives my actions. It does. So, because what ultimately good smart people want is some truth-telling. That's what they want. I feel like I give that, and they feel like I give that. And so, you know, it's important to me. And we still keep in very close contact.
- 3.135** So this might be a little bit into the next lecture, but my daughter's 10, and she asked me one day, "Mom, what's politics?" And I was like, "That's pretty complicated." And she said, "All the adults keep saying that, but I want to know what it is." And especially in today's times, do you have any advice on how adults can talk to kids without scaring them? Because I also see that a lot, that kids will get really involved on a certain thing, so.
- 3.136** Yeah, I mean, I mean, we did define politics in the first lecture, right? So that's the first thing. Political units that are engaging in disagreement without violence. That's the

official answer. It's a pretty good answer. And then my next advice for students, because I talk to students all the time, is, honestly, just chill out and don't worry about politics. You're not old enough yet. You don't have a lot of life experiences yet. Don't go attaching yourself to a political policy platform or a specific issue with all your heart just yet.

- 3.137** Because, trust me, like, whatever it is, I promise you I can debunk it. And it's going to, and that's going to psychologically destroy you. You're going to be angry because you haven't had time to think through this stuff. You haven't had time to build an education. Like, one of the biggest problems we have is, people are highly opinionated about things they have put very little thought into. That's not OK.
- 3.138** It's OK to be ignorant about an issue. It's OK to be, like, I don't know. I mean, some people are, like, "Look, I don't vote because I just, I honestly just don't know, like, what's going on." I respect that. What I don't respect is, people are like, "No, need to vote." Do you know what's going? "Nope, don't know. I have no clue. But I'm going to vote because I saw something I like." That's not a good civic duty either. And we'll go into that a lot in the next lecture.
- 3.139** You know, social media—we're going into this in multiple lectures, but you know, social media has changed this a lot, where it feels like the entire world is just on top of you all the time, and we're just, our kids aren't ready for that. I mean, adults are not even ready for it. And so, there's this unfortunate expectation for young people to be extremely involved in politics, and that's the opposite of what we should be teaching them. We should be teaching them to be critical thinkers, remain open-minded.
- 3.140** I didn't really get political until my late 20s, early 30s. I think that's a little bit more healthy. Have some life experiences under your belt, have some education. Know how to absorb new information within an intellectual framework, because a lot of people are absorbing information and they have no idea how to deal with it. And then they come up with kind of crazy conclusions as a result, that I have to deal with in crazy phone calls.
- 3.141** So, you know, my advice to kids is like, just stay out of it. I hope you eventually take my side, but just, I'm OK if you're just like, "I don't know, like, I want to keep learning." That's the best advice to give kids.
- 3.142** When you ran the first time, you said you had no experience in politics, but the way you described your story reflects either really good advice or a hell of a lot of common sense on your part. I mean, it's a sophisticated thing to do what you did. How much of it was stuff you think you had inside of you, and how much of it did you acquire through good advisors?
- 3.143** I mean, I had OK advice, but like, they didn't really—I need to be careful how I answer that because, like, the, the, the people who ended up staying with me definitely know what they're doing and they're great, but they didn't really come on and, like, even,

even bother with me until, like, months into it, to be honest. So I was kind of winging it. The special operations community actually prepares you better than you might think for politics for a couple reasons.

- 3.144** One, public speaking. We have to be very good public speakers and persuasive public speakers because, as leaders, and you know, you're running a platoon and you're briefing your guys on a dangerous mission that you're going to go on, or you might be debating what the tactics you're going to use on that dangerous mission are, or you have to sell that mission to your higher-ups because, you know, contrary to popular belief, the mission never comes from the President.
- 3.145** And they're like, "All right, get around, boys. Here's what you're going to do. And you're going to be here and there," and like, some intel officer's briefing you. That's all fake. All operations come from the bottom up. So you have to convince your higher-ups that this is a good operation, at least in our kind of regular wartime scenarios of the last 20 years. So I got pretty good at distilling very complicated issues into simple points. And that's pretty important for politics, communication.
- 3.146** I also just kind of under, like, I, like, I sort of mentioned, I understood basic, basic tactics. And you can apply what we call operational preparation of the environment with campaigning. It's the same thing. You know, operational preparation of the environment just means you're preparing the environment for an operation, whatever that operation might be. And that involves, that involves a lot of basic, basic principles.
- 3.147** It's like, look, like, delegate authority, focus on certain geographic areas, figure out how to change minds. Like, what's working for people? Just a very methodical thought process, which is very typical in special operations, turns out to be pretty useful in a campaign, also. So, and then, and then again, I actually had an education in policy, so if people had, like, questions on social security, I actually, I did whole papers on that at Harvard. I really did know things, which is—
- 3.148** And I thought even, you know, it's crazy. It's like, I thought I'd know enough. I was like, man, this is why I need to wait, like, 10, 15 years, get some, like, real, real hardcore experience in policy. Then you run for, then you run for office and you're like, oh, you're way ahead of the game. But I like, yeah, because, I mean, I did my undergrad and master's in these subjects, so I was very comfortable on the, on the, on the actual subject matter, and then being able to distill it, I think, in ways that, that was, that feels original.
- 3.149** It doesn't feel like a constructed talking point because I think voters usually see through that. I say usually; I wish they saw more through that. And that, but that works, you know. Be original, know what you're talking about, and you'll be OK.

Lecture 4: Being a Good Citizen

At a glance — Being a good citizen.

- 4.1 Welcome back, everyone. So this lecture is on civic duty. We talked a lot about what politicians are supposed to be, so let's talk about what citizens are supposed to be. We hear the word citizenship a lot, phrases like, "Do your civic duty." What does it mean? What is duty? What is citizenship?
- 4.2 And how do those concepts of citizenship and duty relate to our system of government, in particular? Is our constitutional system and the freedoms inherent within it predicated, in other words, does it rely upon, these concepts that necessarily began with the individual?
- 4.3 Now it's tempting to believe in a high-minded view of citizenship, a belief that every American carries within them a strong civic duty to be a productive cog in the American machine, pushing us ever further toward a more perfect civilization. Now, I'm not sure our founders were so optimistic about that. They weren't optimistic about human nature. A main premise underlying their great debates over how to structure a new government was that human nature would always be what it is.
- 4.4 Some people are great, don't get me wrong, probably most people. But in the end, you've got a near exact DNA-driven copy of the brain that some Roman had 2,000 years ago when they were feeding slaves to lions and cheering about it. Human nature doesn't change, we just get more civilized. But civilization can break down a lot quicker than most people think, and there are endless examples of this.
- 4.5 Nazi Germany was full of "good people" who succumbed rather quickly to pretty evil tendencies. War crimes you can't imagine are happening right now in places like Africa and Ukraine. Cartels in Mexico skin people alive for showing disrespect. You all think you're going to act decent and noble in the face of adversity or pressure, and next thing you know, you've bought a year's worth of toilet paper because a superflu from China started spreading. None of you shared your toilet paper. Not one of you.
- 4.6 Stable governments, stable governments matter quite a bit, I think, more than we often appreciate. It makes it harder for the worst tendencies of human nature to overtake civilization and destroy it. Now, despite being one of the youngest countries in the world, the United States has the oldest constitution, and that's a pretty remarkable fact. It speaks to the durability of our system, yes, but also the durability of our cultural fabric and, perhaps more importantly, the institutions that keep that fabric more or less intact.
- 4.7 Now, there is an idea of what it means to be a good citizen. And at least for now, there's enough people who believe in that idea in order to keep our grand experiment going. What does it mean to be an American? We've got buzzwords for it. Now we fall

back on those buzzwords when we ask the question. It's baseball and apple pie. It's fireworks on the 4th of July. It's the sound of an F16 piercing the night sky. Insert country music lyric song here and move along.

- 4.8 That's fine. There's nothing wrong with that. These are cultural markers. But your love of hot dogs grilled on a hot barrel of a freshly fired AR15 certainly doesn't make you any more American than George Washington. He never knew what a hot dog was, let alone an AR15. He was too busy fighting a war against tyranny with a single-shot musket, fueled on a diet of shitty whiskey and stale bread. Oh, and by the way, he'd never even seen the flag that you so proudly fly.
- 4.9 My point isn't that these symbols are cheap tricks or superficial. It's quite the opposite. They're not. They're actually important. They are cultural markers. They're symbolic of ideals that are woven into our national fabric. Now, if I have any complaints about the symbols that we rely on, it's actually that we just kind of stop there. And what I mean is, we don't talk enough about what these symbols represent.
- 4.10 Why? Well, because that takes some thought and thinking in the age of the Internet. Well, it's just not that popular, is it? But today we're going to try. And lucky for us, all the good ideas, they've pretty much been had; the good points have already been made. We fail often as a society for the simple reason that we forget old lessons, and that's OK. Civilization, it takes a long time to develop. It's one step forward, it's a couple back, it's a few more forward. And so the story goes.
- 4.11 And since this lecture is about American culture, I think it would be wise to begin with one of the first outside observers of early American culture, Alexis de Tocqueville. OK, so if you couldn't tell from the name, he was French. And he came to America, wondering, "What is going on here?" By the 1830s, America was no superpower, but it was interesting, especially to Europeans.
- 4.12 This makes sense, given the vast majority of Americans were of European descent, and they were engaged in this strange new experiment of government. A republic, they called it. All sorts of freedoms, all sorts of equalities. Europeans were impressed in their own, like, pretentious European sort of way. American commerce and trade had boomed, expansion westward continued, and more and more Europeans actually seemed to want to risk their lives to settle in the new world.
- 4.13 Why? And that's the question de Tocqueville eventually answered in his now infamous work, *Democracy in America*. So in 1831, he traveled to America. Now his primary task was actually to study the American penal system. Only later, in 1835, did he actually turn that nine months of observation into what we know today, *Democracy in America*.
- 4.14 Now, I guess you could say that his observations gave us Americans the words we needed to describe what we already knew. And I think that's why every good civics course references him. His initial assumption was that he would find a large,

sophisticated, central governing body here. How else might one explain the American successes since their revolution, aided by the French, of course?

- 4.15 But he didn't find much. I mean, back then Washington, D.C. was a sleepy town. The White House wasn't much to look at back then. The President had visiting hours. That's actually how de Tocqueville scheduled an interview with then-President Andrew Jackson. Can you even imagine that? Like, visiting hours?
- 4.16 De Tocqueville had a number of concerns about democracy, a lot of them similar to our founders. He worried about its unchecked excesses. He worried about the tyranny of the majority. He examined the American obsession with equality. It was just so different from the hierarchical traditions of Europe. In America, there was no aristocracy; there's no family names that set you apart. So he wanted to explore how this could work.
- 4.17 Because if everyone's opinion was equal, and democracy was the rule of the day, then wouldn't the best ideas potentially be sacrificed to the most popular ideas? That's a damn interesting question. It's one we're still asking today. And I actually will explore it more in a different lecture when we talk about modern politics and populist tendencies.
- 4.18 But he also worried about how equality fosters too much individualism and with it materialism. Now you might cock your head a little bit, like what's wrong with individualism? That's kind of what we're about. That's sort of the point of this whole freedom thing. But his worry was that individualism leads to selfish behavior and self-interested actions that ultimately harm the greater good.
- 4.19 Keep in mind, the word elites at that time was not a bad thing. It's a derogatory term now in modern politics. But de Tocqueville thought it was strange that consequential decisions might be made by an uneducated, uninformed majority. Of course he's not wrong. We should always be wary of mob rule and how quickly groupthink can accelerate really bad public policy decisions.
- 4.20 As I apply these concerns to my own experience in modern politics, it's why I often tell people that I don't see myself as a delegate, I see myself as a trustee. If I were a delegate, I'd simply take a poll of public opinion and then I'd vote accordingly. I mean, that's democracy, right? And on some of these issues, that might be OK. Some issues are indeed that simple and based on preference more than anything else.
- 4.21 I think an example, not an uncontroversial one, but an example might be abortion. People largely understand what it is. Now, they have different preferences accordingly. But what about tax law? Like, what about foreign policy? What about a bill that changes the rules governing spectrum auctions? How many voters even know what a spectrum auction is?

- 4.22 There's a quite a bit of nuance on most issues. And the point of having representatives is to elect an elite few who spend their time thoughtfully examining the trade-offs of policy-making. Well, that's the idea, anyway. We can argue whether it's played out that way.
- 4.23 So, back to de Tocqueville. He came to America with these concerns, but with an open mind on how the system seemed to work, despite of all these concerns—and by work, I think he likely meant prosper. It was pretty clear that America was doing well. Keep in mind the Civil War had not happened yet, so there's that. And so he examined the cultural attributes that effectively countered the dangers of equality, democracy, and individualism—again, as he defined them.
- 4.24 He noted that Americans were problem-solvers. Above all else, problem-solvers. We see a problem, we form a group, and we solve it. And he just marveled at this. He marveled at the American ability to build what he called associations, by which he meant groups and communities. So he theorized that it was this tendency towards building civic associations that blunted that potential dark side of too much freedom and equality and individualism.
- 4.25 The church was really important here. The church was especially important because he observed this rich and dedicated religious culture in America, which he credited for being that bulwark against the immorality that too much freedom could inevitably result in.
- 4.26 Remember, moral frameworks must come from somewhere concrete. We talked about the Ten Commandments at length. We make these laws and we assume they are just, but just based on what moral framework? Who wrote down what is wrong and what is right, and what gives the people writing them any sort of authority? This is why religion was so important and critical to our founding and why de Tocqueville places such importance on it.
- 4.27 It's why we still write "In God we Trust" on everything from our dollar bills to the walls of the Capitol. It's a lot more than just talk. There's real purpose behind it. Freedom left unchecked results in anarchy if it's not grounded in any kind of moral anchoring. In de Tocqueville's Europe, that responsibility was assumed to be left to the state. It was the government, of course, whose role it was to prescribe the duties of citizenry, to lay out the moral frameworks that would govern right versus wrong.
- 4.28 And de Tocqueville assumed he might find such a sophisticated governing apparatus in Washington, D.C., but of course only found a sleepy swamp town with the federal government still in its infancy. And so, as he made his way through our new wild civilization, he noted that churches in America, and the civic associations along with them, they seemed to sprout up at every corner.
- 4.29 And the more he traveled, the more he realized that these groups were the key to the stability of the nation. It kept people engaged, kept them grounded in shared moral

standards. And it kept the matters of governing close to the people. So the consequence of all this was an empowering effect on the citizenry, which in turn created civic-minded citizens with a sense of duty and a sense that it was up to them to improve their own lives and up to them to make their country a better place, not up to Washington, D.C.

- 4.30 They were invested in their country. It was patriotism in the truest sense. And in no place was this more obvious than in the townships that de Tocqueville observed. He noted that the true power of governance remained local, with the federal government and even the state government at arm's length from the day-to-day concerns of the people.
- 4.31 This actually fostered freedom because it gave people two things, agency and responsibility. This in turn cultivates patriotism, which along with religion, de Tocqueville deemed essential for the longevity of any society. For a society to survive, the state and the citizens must have a free agreement between them, like a, like a social contract, if you will. The citizens must care about their country and feel engaged in its well-being—patriotism—but also have the moral wherewithal to drive the country in the proper direction—religion.
- 4.32 In chapter eight of *Democracy in America*, de Tocqueville said something that really struck me. He said federalism can't work everywhere. Many large nations desire it because it combines the benefits of both small and large states, but it can't work everywhere, he said. He believed that federalism could only work in a population well educated in political science. This makes sense.
- 4.33 Federalism causes a tension between local, state, and federal powers. And an educated citizen understands which governments are in charge of what. An educated citizen knows who to blame and to whom to give credit. An educated citizen knows what is possible for government to do well and what it should have no part in at all. Uneducated citizens blame the most famous politician they know for all their problems.
- 4.34 These days, that's usually the President, even though the President is constitutionally the weaker branch of government. In practice, and over time, the President has become much more powerful, largely because the population has conditioned itself to believe that to be the case.
- 4.35 An uneducated citizen demands that the government fix all their problems. And so, with that, they're pretty susceptible to political bribery. "Vote for me, I'll give you what you think you are owed. Want me to blame another group for your problems? Sure, just give me your vote."
- 4.36 To wrap up our analysis of de Tocqueville, he focused on three attributes of American culture that make it a viable democracy—religion, patriotism, education. Remove any one of these, and the country crumbles. A society without God, without religion, but more specifically, without shared moral foundations, it can't survive. In America, this

moral foundation is the Judeo-Christian moral framework, its absolute truth from which we derive just laws. It's what allows for freedom without devolving into hedonism and anarchy.

- 4.37 Because the logical extreme of freedom is indeed anarchy, is it not? Patriotism means love of country. Because love of country is what keeps one engaged in civic society. An unengaged population, they become selfish, they become inward-looking. This is what concerned de Tocqueville about individualism, because he thought of the term differently than we do today. He thought of it as selfish parochialism.
- 4.38 Patriotism isn't just a cultural phenomenon. It's effectively institutionalized by a system of self-governance that is especially salient at that local township level. Engaged citizens, they feel they have agency; they feel that they can be part of the solution. This is what creates true patriotism, in America at least. Because let's do some counterarguments. Because I can't help but think about other countries that have a pretty high degree of patriotism, national pride, but about zero political freedoms.
- 4.39 Let's take the Soviet Union for instance. By most indicators, my assessment is that Russians are very patriotic, and yet they have never had any real agency, real ability, to affect their government's direction. I suppose you can foster patriotism in at least two other ways which might apply to the Russian story. I think one is simply age. Older cultures have a sense of identity, simply by nature of having existed for a really long time. America doesn't have this advantage and certainly didn't in the early days of de Tocqueville's time.
- 4.40 Number two, another way to foster patriotism, you know, propaganda works pretty well, too. If you control what a population sees and hears, you can create whatever sort of patriotism you want. Or fear, masquerading as patriotism. Just ask the Chinese Communist Party; they're really good at it. But in America, patriotism must be born from our own notions of self-governance.
- 4.41 We have a history, yeah, but it's pretty short compared to most other countries in Europe and Asia. And we effectively outlawed propaganda with the First Amendment, in the sense that all propaganda is allowed and therefore no single line of thinking can reign supreme. Therefore, we rely on adherence to the ideas of liberty and political equality to hold us together.
- 4.42 And we ensure that if you want to be involved in civic society, there's actually a pretty easy way for you to do so. Here's some shocking numbers for you. There's about 519,000 elected positions in America, so take your pick. I mean, you can get elected dog catcher in some towns. I'm not joking with you. And that doesn't even include all of the groups that you could join, whether those are activist groups, church groups, charities. There's an endless number of ways to be civically engaged in this country, should you choose to do so.

- 4.43 But none of this works without some level of basic civic education. That's why I'm giving this lecture. Because the number one problem I have come across in my very short time in politics is this. It's a lack of critical thinking and it's a lack of understanding of civics. It's short-term gain for long-term pain. As my friend Jordan Peterson says, "A properly critical mind separates the wheat from the chaff." To be properly critical is to separate what's truly valuable from what isn't valuable.
- 4.44 You subject your own ideas to critical analysis. That's the purpose of thinking, is to have your stupid ideas die instead of you. That's why your enemy can be your best friend, he says, because if someone can take out something you think by showing you how erroneous and counterproductive it is, well, then maybe you don't have to go through all the trouble of learning all of that in the real world. And that's a pretty good gift. End quote from Jordan Peterson.
- 4.45 The consequences of our lack of critical thinking are terrifying. It means we can't have advanced meaningful debates about complex problems. And I think you probably sense this to be true. Just watch our presidential debates. Are they packed with depth and nuance? Of course not. Political debates are in fourth grade terms because that's the baseline understanding of the issues writ large.
- 4.46 And I'm sorry if that's a cynical point of view, but it's true. And guess what? We all know it. Let's all just admit it and move on, and maybe we try and fix it, all right? It's worth doing a little self-critique in these three essential categories that de Tocqueville laid out. How are we doing? What kind of grade would he give us now? Are we still tightly bound to a strong moral and religious foundation? That's an open question.
- 4.47 I mean, I think we are objectively less religious of a country than in previous generations. Now, does that mean overall that we're crappier people? I don't know. I don't necessarily think so. I mean, we could debate it for hours. The point is, moral grounding, it's worth keeping an eye on. And whether you believe in the Christian God or not, one must acknowledge that even an atheist's sense of ethics is based in Western thought, which is based in Judeo-Christian morality.
- 4.48 Now, how are we doing on patriotism? Polling suggests that an unfortunate number of voters calibrate their sense of patriotism according to whether or not their preferred candidate is in charge. If the other guy's in the White House, my country sucks and it's going down the tubes. But when my guy is in there, we're kicking ass, America. These are pretty troubling trends. There's troubling trends in education too.
- 4.49 I have found that academics, untethered by any real sense of civic responsibility these days, tend to enjoy teaching the exceptions rather than the rules. So they teach the counternarratives instead of the mainstream, largely agreed-upon, peer-reviewed narratives. This would be fine, by the way, in, like, an advanced postgraduate program, I suppose, where students are expected to have an educational foundation by this point.

- 4.50 But instead, this counternarrative approach begins earlier and earlier and earlier in a student's career, before they've even heard of James Madison or George Washington. So as a result, there has been an increasing tendency to focus on America's faults and only her faults, without any context, without any explanation.
- 4.51 There's a common mantra that I keep hearing repeated, and it's that "history has been whitewashed." This is the idea that too much pro-America propaganda has been taught, and therefore the real academics need to balance the scales and teach a more holistic view of American history. Now this would be a totally noble idea if the claims of whitewashing were true. But they're not. They're bullshit.
- 4.52 First off, I have never seen any evidence that there's been a coordinated effort to teach fake whitewashed history. No one has ever gone through school without learning about the evils of slavery and the heroism of Harriet Tubman. But that being said, I think some teachers and academics, I think they gain a sense of self-worth and a sense of purpose by rebelling against the norms. So as a result, an increasing number of academics choose this particular straw man to battle against.
- 4.53 And again, as my friend Jordan Peterson would say, they want to slay a dragon. The problem is, the dragon's a fake. It's a facade. It's a straw man. This kind of thinking is creeping into our teaching of American foreign policy history, too. On both the far left and the populist right, there is a growing narrative that all American foreign policy has been bad. On the left, the narrative is usually about committing injustices against smaller, vulnerable nations.
- 4.54 Your typical story of a CIA-led coup that somehow caused decades of economic disarray. I always chuckle at this a little bit because I'm like, "What a powerful CIA." Amazes me every time a few CIA operatives can supposedly coerce entire societies down a radically different path. Wouldn't it be something if it were that easy?
- 4.55 Now, on the right, the narrative is usually more about wasted resources abroad and this kind of sense of hyper-isolationism. It's about endless wars and a nationalistic idea that we shouldn't spend a dime abroad until all of our problems at home are solved. "Don't send one more money abroad until we have no more homeless veterans." It's actually a confusing narrative coming from the right, since I was under the impression that conservatives believed in more limited government at home that can't and shouldn't solve every problem under the sun.
- 4.56 So I can't help but chuckle when some sanctimonious right-winger yells at me about sending us to endless wars. "Us?" I always ask. "Who is this us you speak of? Because I don't remember seeing you on any of my overseas deployments. Were you there?" So they gain a sense of moral superiority by being for peace, as if everyone else just loves war for the sake of war. It's a deeply stupid position to take. And yet many will casually nod their heads along to such sloganeering.

- 4.57 OK, but I digress. The real point is this. Both sides of the political spectrum slowly chip away at our sense of patriotism for the sake of short-term cheap political points, usually in the form of more clicks and likes on your favorite social media platform. And it's a dangerous trend. Even the flag gets politicized. The national anthem gets politicized. These aren't just silly culture wars to be ignored. They're important.
- 4.58 A country has to have a set of agreed-upon symbols and traditions that actually bind us together. That can be apple pie, baseball, hot dogs, sure, OK. But we do need stronger, more basic symbols as well. The flag is the most basic of such symbols. It's not trivial. And yet, it has not gone unnoticed that one might tell the political persuasion of a neighborhood based on how many American flags are hanging outside. That's a really scary move in the wrong direction, I think everyone would agree.
- 4.59 The issue of patriotism and what it means, that could be debated, again, for hours. I think different people can have well-meaning but different ideas of what patriotism actually means. I mean, you often hear the bumper sticker slogan, "I love my country, but I hate my government." I'm not, I'm not sure that's a productive sentiment or even a sensible one, but it does, it reflects the view of many nonetheless.
- 4.60 Now, if patriotism simply means civic engagement, which is something more of us could agree on, we aren't really doing well in that category either. Our most basic metric for civic engagement, well, it might be voter participation rates. News flash, they aren't high. Even with the 2020 presidential election having had some of the highest voter turnout in US history at 62%—that's the highest since 1900, actually—that still puts us at 31st in the world.
- 4.61 It's normal to have about 50% voter turnout in most big elections. In primaries and local elections, you're going to see way smaller turnout, maybe less than 20%. In primaries and local elections, you're going to see way smaller turnout, often less than 20%. Way less than that in many cases, and especially if the election is held on a date other than the major federal election in November.
- 4.62 Local politicians can easily get elected by 1% of the constituency these days. My recent primary election enjoyed a whopping 14% participation rate. My good friends asked me when my election was, weeks after my election. Made me feel real good.
- 4.63 So does this nation suffer from a lack of patriotism, a lack of civic duty? I don't know. I'm not making an assertion one way or the other. It is interesting that, according to Pew Research, 7 in 10 adults think that voting is, quote, "very important" to being a good member of society. And yet only about 80% of the people who answered it that way actually voted in an election.
- 4.64 Why? I don't know, man. Like, life gets in the way sometimes. I mean, people got things to do; you know, they got crying kids in the backseat. I don't know. It's not a great excuse, but it's an excuse. Maybe not voting, it could mean you're just comfortable with how things are going. I mean, life is good, maybe even really great, and so you just

don't feel the need to demand change. I mean, the truth about politics is, people vote against something or someone, rather than for them, usually.

- 4.65 So maybe our problems with civic engagement aren't as bad as we think. I mean, I don't know. Now, look, another, another honest reason that people might not go vote, even though they think it's actually important, is because, OK, you're a Republican, you live in California. You know that there's no chance your vote matters. Democrats are winning that up and down. Democrats feel the same way in a place like Texas. So I get it.
- 4.66 Now, another measure of patriotism. I know, it could be military recruitment, which has actually suffered a lot recently. People are asking why. People are freaking out about it, but I don't know. Let me ask you. Does anyone believe that if we were attacked again, like Pearl Harbor, 9/11, that kind of thing, don't you think military recruitment would skyrocket? I actually think it would. That's my opinion, but I think it would.
- 4.67 I think it's possible that a lack of civic engagement or even these trendy anti-American narratives, they—let's be optimistic here—they can be explained as symptoms of our success. Only, only in this wonderfully comfortable society can young people spend their days complaining about history classes being racist. I mean, their grandparents didn't have time for that crap because, you know, the whole World War II thing. So a little perspective is always in order. And sometimes all we can do is trust that when it's our generation's time, we will answer the call. We'll put those petty grievances aside.
- 4.68 OK, so what about education? How are we doing there? Just start rolling your eyes, get it over with. Because we all know the headlines, right? Like, we suck. We rank 28 out of 37 in the OECD countries in math. OECD is like the developed countries. We ranked 12th in science. I mean, yeah, we could be a lot better. That's true. We live in the age of free information, unlike this course. So, it's hard to fathom excuses for being so damn ignorant on basic matters of civics, math, history, literature, all of that.
- 4.69 I mean, somehow our founders, though, they managed to be incredibly well educated students of history and philosophy and civics, and yet all they had were these heavy leather-bound piles of dead trees. These are called books. Now imagine not being able to simply Google the answer. Imagine living in a world where Google isn't a verb. Imagine having to do research in these libraries, spending half the day searching for the book you needed using the Dewey Decimal System. It would take forever. It did take forever.
- 4.70 At 40 years old, I represent one of the last generations to actually do research in these places that we call school libraries. And that's just, that's how things were done until very recently. Now, being educated nowadays, it's really a choice more than anything else. Like, we can wring our hands all day long about education reform, whatever that

means. It means different things to different people. But in the end, our children's education, it's a matter of choice, dictated by the choices of parents mostly.

- 4.71 That's not an easy problem to solve, is it? Not an easy problem for government to solve. I don't know how to make more two-parent households. I don't know how to do it. We talk about it a lot in Congress. Now there's some good news too. It's not obvious that our education system is as terrible as we make it seem. The top universities are still here. U.S. News ranks the U.S. number one overall in education.
- 4.72 And let's be honest, students come from all, they beg to come from all over the world to be educated here, and for damn good reason. Our economy is where you want to be for your next great invention or business. It's where you come to succeed. And that truth, it doesn't appear to be on the verge of changing anytime soon. But with respect to civics education, I do worry a little bit more. In some ways, the availability of free information has actually made people less grounded, less educated, and definitely more angry.
- 4.73 And so, how can this be? OK, well, for example, I might observe a young high school student diving deep into a particular historical example. And that high school student derives a bunch of conclusions, based on how that moment in history was spun by that particular author in that particular corner of the Internet. That student might be well educated on a very specific thread of history, but also lacks the broader context and principles that actually help anyone build a framework within which to place new information.
- 4.74 In the face of endless information, people gravitate towards some kind of centralized authority to create shortcuts to the truth. Now, there's nothing wrong with that. Like, we all do it. It's called heuristics. But we have to choose authorities, don't we? And more and more often, people are taking drastic shortcuts by simply getting their information from social media influencers or podcasters or some obscure website that gives them the right mix of entertainment and information that they're looking for.
- 4.75 When someone—I'm gonna get so much crap for this—when someone says to me, "I do my own research," I worry a little bit, because here's what I'm actually hearing. I'm hearing, "I searched YouTube videos until I found what I needed to confirm my worst fears." That's what I'm hearing. You might laugh at this, but it's true. Here's the thing. I want people to do their own research. It's better than doing no research and also having a really strong opinion.
- 4.76 But I don't want you to just do your own research; I want you to do good research. And that involves two things—an education that helps you absorb and frame new information properly, and critical thinking skills. Now, the news is supposed to help us with all of that, right? But it's failed, or at least it's lost credibility, to a pretty dangerous extent. News has become opinion entertainment instead of objective fact-telling. Now

why? Probably for the simple reason that it's the only way to make money in today's media market.

- 4.77** So let me tell you something profound. Only God has the emotional capacity for omniscience. You don't. I don't. And at the risk of stating the obvious, I think that psychologically absorbing all of the world's afflictions on your screen every five minutes has a pretty detrimental effect on your emotional state. Call me crazy, but it's a theory and I'm going to stick to it.
- 4.78** Now, I've hosted plenty of events, plenty of events. And sometimes there's an attendee there and just desperately pleading with me to tell them how to save our country and just describing to me the horrible tailspin that it's in. "We've lost our country," they'll tell me. I mean, they're like trembling with anxiety sometimes.
- 4.79** Now, I'm not a good politician in this sense, see. The politicians often just agree with people. They just absorb their feelings. They mirror those reactions. That's not what I do. My response is not to disagree with them. Remember, it's easy to gain someone's trust and support by just mirroring their anger and anxiety. I don't. I tell them to get off the Internet for 30 days and visit people in person, in their community. And you might find that people are still about as normal as you would hope. Except maybe in Portland.
- 4.80** But now, truth is truth. Now, one of my, one of my favorite comments, and I'm, and I mean that in the most sarcastic and cynical sense, that I see in my social media comment section is always, "Well, why don't you actually do something about it, Dan?" This comment is of course in reference to, like, whatever post I'm making at the moment, pointing out a problem that needs to be fixed.
- 4.81** Maybe that problem's regarding our southern border or the debt or whatever it is I'm posting about. I post about political problems and solutions all the time. It's like, sort of my job. I'm a well-known congressman, so I think people just assume that I can just do something. Wasn't that the reason I got elected? Of course, but the intent behind those comments implies, to me at least, that people actually don't really understand the powers that I have and don't have.
- 4.82** And this is not a trivial problem. Like, it's a big problem. It's a big problem because it makes people emotional and angry and untethered to reality. It makes them believe—this is the worst part—it makes them believe they've been betrayed, that we politicians made promises with no intent on following through with them. And this belief makes voters angry.
- 4.83** And that's how you get the so-called firebrands elected to Congress, because they're willing to tell you anything. As soon as a new politician gets elected on the promises of cleaning up the swamp, well, guess what? There's always an opponent waiting in the shadows for the next election, ready to point out that that incumbent politician now smells like the swamp and intentionally failed to clean it up. And the cycle continues.

And it continues, and it continues. And you know who can only stop it? Only voters can stop that cycle.

- 4.84 And by the way, I don't think firebrand is a good thing, even though I've been called that before, especially in my early days. But to me, the firebrands I see, they're mostly stage actors. They're feeding on public grievances and projecting that blame onto someone else. In many cases, they might actually prevent us from making progress on a particular problem because feeding the grievance is more personally beneficial to them politically than taking a small policy win. And you see this in both parties.
- 4.85 The firebrand, it's a relatively new phenomenon. It's fueled by the rise of social media. Now social media is the ultimate equalizer in politics and probably worth spending some time on. If de Tocqueville had been able to analyze how social media would affect democracy, I wonder what he would have said. I think he would have pointed out how dangerous it is to give everyone a platform from which to spew their crazy ideas and then associate into groups based on those crazy ideas. But remember, this guy's a pretty, he's an elitist Frenchman, OK? So just take it with a grain of salt.
- 4.86 This was always his worry about the notion of equality, because from his elitist point of view, true equality allows too many bad ideas to be considered. That was his worry way back in the 1800s. So imagine what he would think of social media now. Now, don't get me wrong.
- 4.87 This is not because freedom of speech should ever be repressed, but because, let's be honest, there's something curative about a man with a piece of paper sitting alone with his thoughts and then, at his own expense, printing what he has considered long and deeply, and then handing it out to his neighbors face-to-face, instead of hiding behind a keyboard. There's nothing brave or noble about anonymously trolling someone who dares to enter the arena.
- 4.88 So I think the Tocqueville would point out that the Internet, especially social media, has created a very horizontal spectrum of news sources. And that allows for two detrimental outcomes. First, it allows previously isolated crazy people to form whole groups of crazy people. The 9/11 Truthers are an example of this. The radical climate activist groups are an example of this.
- 4.89 Second, a horizontal media allows any single crazy person to go viral, become famous, and muck up intellectual debates with just pure nonsense. Now, they're usually not successful, to be fair, but enough of them are, and they gain significant online followings. Let's be honest, in America, sometimes in our national discussions, emotional reasoning rules the day. And for a politician like me, it actually takes up a significant portion of my workday.
- 4.90 OK, don't get me wrong here. We are definitely not arguing for any of this to change. It's too late, for one thing. But more importantly, we can't change it without inducing a far greater calamity, which is undercutting our First Amendment. All I'm doing is

pointing out that we are suffering from an influx of bad ideas, bad information, and dumb, sometimes malevolent, opportunists. And they have to be countered.

4.91 In a free society, bad ideas can only be countered by good ideas presented persuasively to the public. So maybe that's part of our civic duty then, huh? Actively seek out truth and spread it. Now, what counts as truth? That's a can of worms. In politics, truth is a word with a lot of baggage. For example, I think it's true that lowering the overall income tax rate will result in better economic growth for all and still fund the necessary parts of our governments. A Democrat thinks it's true that taxing the wealthy more and redistributing that wealth to others will result in better economic growth.

4.92 Now, these ideas are mutually exclusive. They can't both be true. Or can they? I mean, it kind of does depend on your subjective preferences, and that's politics. Like, politics is about trade-offs and preferences and values, all of which are actually pretty subjective measures. So sometimes the word truth has to be taken with a grain of salt in many cases, especially with policy disputes, and that's OK.

4.93 Politics is about debating the pros and cons and whether this trade-off is worth the benefit that you'll supposedly get. The problem we face isn't that we can't agree on tax policy or environmental regulations or immigration policy. I promise you, we will never find agreement on these issues. Never. Anyone who tells you otherwise is delusional. These issues, and like so many others, are based on preferences and principles. They're not based on clear-cut notions of right and wrong.

4.94 So debating, debating them is OK. What's not OK is the inability to think critically about those complex issues and yet somehow still have a really strong opinion about them. That's when things fall apart. And that's also what social media has allowed for and even promoted. Promoted how? Well, I mean, think of the hypothetical following tweets.

4.95 The first one is an analysis of a new rule that prevents small businesses from banding together with association health plans. It's a pretty wonky health care policy tweet. The other tweet is about a scandal, where border patrol officers allegedly whip Haitian migrants trying to cross the Rio Grande river on our southern border. Which one gets more traction? Which one gets more retweets?

4.96 The boring but extremely important policy tweet about what your small businesses can do with their health care, or the scandalous tweet, which, it turns out, was actually false, riddled with falsehoods? Of course, the second one gets more traction. It's not that falsehoods automatically win the day, but sensationalism does. And it's simply harder to sensationalize really nuanced but important policy debates and still be honest about them.

4.97 And so we find ourselves in this current dilemma. If I could wave a magic wand and improve our civic society, I think this is where I would begin. Critical thinking, logical deduction, analytical processing, teaching people that single variable analysis is bad for

critical thinking. I don't know, whatever fancy term we use, they all mean the same thing, which is that we just need to get better at thinking, so that we don't die, as Jordan Peterson said.

- 4.98** Now, after my injuries in Afghanistan, I fought the medical system within the Navy to get a waiver to be able to deploy into combat again. It was a fool's errand in hindsight, no pun intended. I don't see all that well. And back then, I really didn't see that well, especially at night. I have much better, like, contacts than I did back then. I had no business getting back into austere environments in Afghanistan with my one good remaining eye being still severely damaged.
- 4.99** But I tried anyway, and I stayed in the Navy anyway for another four years. But during that time, my role was in intelligence operations. I actually deployed two more times, but not a combat role. So, because of my role, I did get a lot of additional experience that I normally wouldn't have gotten. I got the same kind of training that your typical CIA case officer would get.
- 4.100** Now, obviously, I can't tell you exactly what that was, but I can tell you this. When truth matters, and I mean when it really matters, like when it's life or death, you better get it right, and you better ask the right questions. You vet the source of the information, and you analyze it with heartless objectivity. And the intelligence community, mostly, not all the time, but mostly, it does a pretty good job of this.
- 4.101** We were taught to distinguish between facts, potential facts, hearsay, conjecture, fiction, potential fiction, all of it. We're taught to follow the acquisition of information carefully. By that I mean, a source is telling you about an event that took place, but how do they know it happened? Did they see it? Did they hear about it? And if so, from who? Did they see a video of it?
- 4.102** Now, these are obvious questions that any good journalist would ask when investigating a story, or any good lawyer would ask during a deposition or a detective during an investigation. All of these professions are similar in that, when done correctly, they have to follow very strict guidelines of analysis before reaching conclusions.
- 4.103** And yet, we've all seen talented lawyers and intelligence officers and journalists throw away every ounce of training that they've ever received when it comes to interpreting political truths. So now imagine how everyone else is doing who hasn't even had the training.
- 4.104** Back to news. I mean, what is, what is news? We should establish some distinctions between news, commentary, opinion, and narratives. For the rest of this lecture, we're going to look at examples of all of them. So let's start with news. You've heard the term fake news plenty. What does it mean? Well, it kind of depends on who's saying it and in what context. Usually it means you think the news is getting it wrong, whatever it is.

- 4.105** The truth is, and the reality is, you don't often see blatantly false things reported as news. Now, the big ones are well known and usually originate from a pretty sloppy investigation and biased assumptions and perhaps a dose of malicious intent. But here's the reality. If I open up any given major news website right now, no matter how much I disagree with the underlying political philosophy, I won't necessarily come up with fake news and falsehoods to show you that easily.
- 4.106** What I could easily demonstrate to you is obvious bias in, number one, what topics they choose to report on, and number two, how those topics are presented to the audience. You can pick the same event and you can describe it accurately in multiple ways. Of course, you're not lying necessarily, but how you choose to describe it will be based on your own biases.
- 4.107** OK, so I'm going to show you an article. It's an article that analyzes headlines from Fox and NPR about a rise in police officer deaths. Both use sensational language. Both present facts that lead you to the conclusion the author wants, but only you, the reader, can take a step back and say, like, "Wait a second, are these two facts casually related or even relevant?" So here are the headlines. From Fox News. "Police law enforcement line of duty deaths in 2021 jumped 55% from a year before." NPR. "Covid was again the leading cause of death among US law enforcement in 2021."
- 4.108** So I just recently came upon this website, it's called AllSides.com. I came upon it while doing research for this lecture. So far, I think it's pretty good. In each case, it examines, the writer describes what kind of psychological trick is being used to influence the reader, whether it's negativity bias, subjective qualifying terms, words like "shocking", or just cherry-picking of data.
- 4.109** So here's another great article on 16 ways to spot types of media bias. One of the items highlighted here is the failure of journalists to properly attribute information or sources, and this creates circular reporting. And this is pretty common in politics. It starts off with a reporter, or a political operative usually, effectively spreading rumors by just asking the question, "Hey, have you heard that about, you know, thing about Senator Mickey Mouse having an affair with his intern? You heard about that?"
- 4.110** And people are like, "No, I mean, I didn't hear it," but they ask their friends too, because, "I'm hearing this. Are you hearing this?" And all of a sudden gossip is created, people are asking questions, and at a certain point, the instigators could actually get a story published. A story published that is actually technically accurate. Because here's the story. "Rumors swirl about Senator Mickey Mouse's alleged relationship with an intern."
- 4.111** They're very careful with their language. That is legally viable language. I can't sue them for libel over that because it's alleged and rumors are swirling. They didn't say it happened. We're just asking questions. No evidence, but they're just asking questions.

- 4.112 Former speaker Nancy Pelosi, she actually talked about this tactic at a press conference some time ago. She called it the wrap-up smear. You smear someone, you get the press to report on the smear, and then you use the reporting to add credibility to the smear itself. It was all a lie. But it's still out there.
- 4.113 Now, sure, it's the biased journalists that are winning players in this malicious practice, but let's be honest, it's ultimately up to us. It's the citizens. It's up to us not to fall for it. Many major news outlets, Fox to MSNBC, they pretty much openly admit to their bias. And I actually, I think that transparency is fine. But you also might think to yourself, how can you be considered a news organization? Aren't these just hubs for opinion journalism?
- 4.114 That's a fair question. And you're not the first to consider it. It's asked all the time. But you know, in truth, though, news in America and all over the world has rarely been free of bias. Many of us, I think, we remember this latter part of the 20th century with fondness. You know, the era of Walter Cronkite. He's just reporting the news for what it was. But if you look at a, look closer at media history, it would indicate that was the exception, not the rule.
- 4.115 The media has often been a competitive space between different ideologies. Now is that right or wrong? I don't know. I just know we can't do anything about it from the government perspective because freedom of the press is freedom of the press, full stop. Now if you, the people, want unbiased information instead of entertainment, well, then you can create that reality.
- 4.116 You just have to stop watching your favorite political entertainers and start watching boring news anchors that just lay out the facts. When you start rewarding the kind of behavior you say you supposedly want, the money will follow, and behaviors will change. But you won't, not anytime soon. So that's the news side. Let's talk about the opinion side, where the real bias creeps in.
- 4.117 But that's fine. It's opinion. It's supposed to. The problem is when many of these news organizations fail to clearly distinguish between fact-based reporting and opinion, like it's from one show to the next, and the two have become nearly identical and impossible for casual viewers to distinguish between the two.
- 4.118 Now is that an excuse for you not to know better? No. That gets to what it means to be a dutiful citizen. If it becomes easier and easier to deceive the public, well, then opportunists are going to keep doing it. I'm still an optimist. I'm still a believer that truth emerges over the long term. The wonderful thing about the First Amendment, it is that it allows that battle to occur unimpeded.
- 4.119 But with the rise of social media, and with 54% of Americans saying that they get at least some of their news from social media, we have to wonder, is that informational battleground becoming irreparably damaged? After all, the First Amendment prevents

government from intervening in speech. I hate to break it to you, but that includes private media companies as well.

- 4.120** Our founders believed that a large federation such as ours would have sufficient factions to cancel each other out, providing the necessary competition of ideas to prevent any one narrative from completely overtaking the public debate. And to be honest, I think this assumption has played out so far. But we're entering a new era. I mean, we've got a few companies, Google, Meta, X, TikTok. If they really wanted to, and sometimes they do, they have the ability to control what information you see on your feed or your search.
- 4.121** So you gotta worry at some point, should it be the government's job to protect the principle of free speech in addition to protecting citizens from government censorship? That's a really complicated legal question. In a sense, we already do this with anti-discrimination law. We do not allow freedom of association the way our founders intended. In fact, we don't allow you to refuse to associate with another person based on their race, their gender, or their religion.
- 4.122** You can't refuse service or employment to someone based on their skin color, for instance. This departure from original principles was deemed necessary because there was widespread systemic racism in America. Now, I use the word systemic very carefully because it's often misused in our political debates. Now in this case, racism was actually systemic because it was actually codified into state law with segregation and other racially biased laws.
- 4.123** So the solution was federal laws that departed from federal principles, from founding principles, as opposed to simply righting the wrongs at the state level. That's what the founders would have wanted. They would have wanted you to right the wrongs at the state level. But what happened happened. Now, was that the right choice? Hard to say. It might have been necessary. I mean, one might argue that correcting course back to founding principles of "all men created equal" was indeed necessary. And there you have it, the Civil Rights Act.
- 4.124** But let's be critical thinkers. We're students of civics, so we have to objectively analyze these events within the context of founding principles of equality and of freedom and the principles of the First Amendment. It's a longer discussion, to be sure, and it probably needs its own course. So these same questions, they apply to how we might govern social media companies and news companies.
- 4.125** Why wouldn't Facebook have a right to decide who gets to post on the platform that it created? It's a private company and a free country. On the other hand, how can we let one entity become so powerful and still retain our freedom? No one elected Facebook, after all.
- 4.126** So we have these difficult problems with no obvious solutions. We have some solutions we could get into details on that actually involve anti-discrimination law and perhaps

preventing them from discriminating based on political beliefs. But again, that's a more wonky conversation. I want to get us back to our civic duty.

- 4.127 An educated population, wise in the ways of propaganda and coercion and bias and whatever psychological tricks that may be used to influence you, that is the natural bulwark to tyranny. Our founders believed this. De Tocqueville believed this, and I believe this. I tell voters often, "You're smarter than this. You're not falling for the catchy taglines that politicians throw at you. You're wary, you're skeptical."
- 4.128 When you hear words like "the swamp", "establishment", "career politicians", you can rest assured you are being served up cheap rhetoric instead of serious substance. You are listening to someone who is selling snake oil and expects you not to notice. You are listening to someone who has taken the advice of cheap political consultants and gauges their success off retweets, instead of real-life policy considerations.
- 4.129 It's easy to say something sensational and get retweets. I'm guilty. I've done it. I've partaken in the entertainment side of politics. Hell, I made a campaign video of me skydiving and battling Antifa. It was really cool. But, but I can also say with a very clear conscience that I have never used that power of attention to sell you snake oil. Because we're all in this together.
- 4.130 And so, we all have a civic duty to ignore the cheap rhetoric and to embrace truth and reason. Freedom requires bad ideas to be countered by the good ones, after all. And I'll leave you with that. Thank you.

Lecture 5: The Political Spectrum

At a glance — The political spectrum.

- 5.1 This lecture is about the red and the blue teams. I even wore my special liner for this. It's a donkey battling an elephant. Of course, the elephant represents the Republican Party. The donkey represents the Democrat Party. Obviously the Republican Party got the better end of that deal. I actually don't even know the history of the animal thing. I probably should have looked that up before this course.
- 5.2 But look, let's start with a very basic question. Why do we have a two-party system? It's a common question, right? And in that question, it usually comes from a place of frustration. Frustration from what? Well, a feeling that you're unrepresented by either party. And that's pretty understandable, since the nature of political parties is to establish a set of policies largely agreed upon by everyone in the party. And that's otherwise known as a platform.
- 5.3 Now, a platform is a pretty long list of policies. It goes from tax codes to gun policy, to trade, to environmental regulations. And so of course, it's pretty difficult to imagine how every single average citizen can fit neatly into one of those two platforms. And yet, that's what you get to vote on every single time.
- 5.4 The definition of a political party, according to Encyclopedia Britannica, is "a group of persons organized to acquire and exercise political power." And I think that definition is fine. It's accurate. It says nothing about adherence to a policy platform, because it doesn't need to. One can assume that if a coalition forms to exercise political power, well, then they mostly agree on what to do with that power.
- 5.5 The purpose of a party is to get your people elected. Now, how you define your people is the second question asked, of course, and that gets to the policy platform. If you're going to wear our jersey, you got to believe these things, for the most part. Throughout this lecture, we're going to discuss whether or not the parties really have the kind of gatekeeping power that many people assume they do.
- 5.6 Is there an establishment? What does that word even mean? And how far can you veer from the party platform? Was there always a Democrat and Republican party? And why can't there be a third party? I mean, other countries have third parties. OK, so that's the first question I want to answer for you. And the answer is no, you can't. You can't have a third party. Not now, not ever. Not a serious third party, anyway.
- 5.7 Now there's other parties. There's the Libertarian Party, there's the Green Party, there might be a couple others that I've never even heard of. But the question is about competitive third parties, viable third parties, parties that can win. And here's the thing. I would actually suggest that other countries, they don't really have viable third parties either. Now, let's unpack this, because there's a lot of skepticism about what I'm saying.

- 5.8** Here's the thing. Political beliefs are a spectrum. They're not a salad bowl filled with discreet, easy-to-discern interests. And on any spectrum, you got a center. And that midpoint divides the left side from the right side. I don't care what point in history you're in, there is ultimately a left side and a right side of that spectrum. And you can call either side whatever you want. You can call it liberal or conservative, Democrat or Republican, Tory or Labor. It doesn't matter.
- 5.9** And by the way, it also doesn't matter if you're in a parliamentary system with many parties vying for power. In the end, they create an opposition and a coalition and they settle into two different factions. It's going to happen every single time as long as there are 50 plus 1 majority rule elections. Now, of course, needless to say, this same analysis does not apply to dictatorships in places like China. We're talking about democracies here.
- 5.10** We could split this class up into three parties, OK? Five of you in each party. Now, if we had the time, we could split you up and ask you to build some policy platforms, maybe, regarding the planning of next year's Art Basel here in Miami. But in the end, only one coalition can win a majority when you start voting on what you want to do. So, two of your parties are actually going to have to negotiate some kind of terms and win that majority.
- 5.11** You can call yourself whatever you want and even maintain the existence of multiple parties, but in the end, you're going to have a coalition versus an opposition. It's political natural selection. So here in the US, that natural selection has become the Democrat and Republican parties. And it's been that way since the Civil War, when the Republican Party was founded as the Abolitionist Party.
- 5.12** I actually don't see any reason why it's ever going to change in the near future. Why do I say that? Well, it's simple. Because the political middle is a knife edge, which is not a comfortable place for a politician to be. Even though the vast majority of voters consider themselves in the middle, there is no actual policy platform in the middle.
- 5.13** A platform is a comfortable place from which to get elected. A knife edge is where you get sliced in half, and it's easy to fall into what's called the false consensus effect, which is the tendency to overestimate how much other people agree with you on your own beliefs. And this happens with everyone on the political spectrum, even those in the middle.
- 5.14** I hear from more moderate voters often something along the lines of, "Why can't you guys in Washington just apply some common sense and do things that make sense and just be done with it?" And my response is, "Well, sure, but what is common sense? And exactly what is the thing that you want us to do that makes sense?" Because I bet you can't get six friends at a dinner party to agree on a solution to a complex problem.
- 5.15** Now try getting 435 members of Congress from different districts, different backgrounds, and different political preferences to agree on what makes sense. And

let's make it even more interesting by filming everything they do and say and making them subject to constant public scrutiny. Don't be surprised that some sort of common sense consensus is a little bit hard to come by.

- 5.16** There is no middle. There's an idea of a middle, but it's mostly a personality disposition as opposed to a policy platform. Now just, don't jump down my throat just yet, because people in the middle hate hearing this. I don't mean this as a cold, hard fact. This is a social science course, OK? I'm stating it as an informed opinion, based on my observation of politics in this country.
- 5.17** The people in the middle are generally of a more agreeable disposition. They're more open to compromise. They're more open-minded, generally speaking. You move further away from that center to the left or the right, and you're going to get highly disagreeable activist types, in the sense that they're unwavering in their political positions; they're unwilling to compromise.
- 5.18** This shouldn't be a controversial thing to say. It's not an insult to anybody. But the people in the middle aren't necessarily held together by any other core policy preferences. Moderate people have moderated opinions. So they're picking and choosing from each side of the spectrum to form what they believe is their own personal policy platform. But here's the thing, and this is important: They don't all choose the same platform. And that last point is really important.
- 5.19** So there's something in politics that we call the base. This refers to the base of voters in either party that can be relied upon to come vote for your team in any given election. The base is not made up of persuadable voters. They've all made up their mind. They're very much in their camp, and they reliably come to the polls to cast their vote. You cannot win your election without a base of support. And you can't be a victorious Democrat or Republican if you try too hard to appeal to a wishy-washy middle at the risk of alienating your base.
- 5.20** Now, someone new to politics might naively believe that if they run in a purple district, right, a purple district is, like, you know, it's 50-50, could go either way, that they could find some third way, some third policy platform, that mixes up the best of both parties. Now, what defines best is really up for debate, of course; it's politics after all.
- 5.21** But even if you had what you believe to be a perfect platform, I actually still don't see how you'd get there. And this is where the electoral system itself comes into play. Remember, your first election is still a primary. You don't have to run in a primary. You could run as an independent instead. But, come general election, you'll be up against the base of both parties in that general election. So good luck.
- 5.22** Few politicians succeed that way. Some do, but few. Few do, but some do. I mean, Kyrsten Sinema, Senator Kyrsten Sinema in Arizona is a really interesting one because that worked for her because she really did want this specific platform that was just for her. And Arizona happens to be the kind of place where you can do that. I mean, this is

where John McCain came from. You know, he's kind of a renegade against his own party. In Arizona, whether you're a Democrat or Republican, they want somebody who rebels against their own party. They just like that.

- 5.23 And so, but she couldn't move to that independent status until she had gained some, some, some notoriety and some popularity. So there's a way to do it, but it's extremely rare. Few politicians succeed that way. Now, a lot of people in younger, like, more educated circles generally, they like to describe themselves as, "Well, I'm socially liberal, but I'm fiscally conservative." They like to have it both ways. That's fair. I think I believe them when they say that.
- 5.24 But they also tend to believe, again, this gets to the false consensus effect, that there's this, like, whole political party, like, ready to sprout up from this platform. Now, you could say that the Libertarian Party actually fits the bill for them. And yet, they don't gravitate towards the Libertarian Party, in any large numbers anyway. And I don't know why. Maybe because libertarianism is still largely perceived as right wing.
- 5.25 But I think the reality goes deeper than that. If you want to run on cutting taxes and balancing the budget by cutting out wasteful government programs, you've got the ear of the Republican base, right? They're like, "Yeah, that's what we want to hear." But if the next line out of your mouth is, "And I'm pro-choice," they're like, whoa. You've immediately lost more than a few of them. You will not likely win that primary.
- 5.26 Now, it's not impossible. Plenty of Republicans have done it; most recently, a good example is the 2022 Senate race in Colorado. Our candidate won the primary and he ran on a pro-choice platform, but that was the only, only left-wing position he took. Because if you pile on even one more socially liberal policy, like, say, I don't know, supporting transgender participation in women's sports, you're not winning that primary.
- 5.27 But let's say you do. Maybe you do. Maybe nobody comes out to vote because in the end, look, you still just need 51%. So even if it is possible, you probably alienated the rest because you're probably not going to get the rest of that 49% of that base, come general election time. It's not that they're going to go against you, but they're probably going to stay home. And so you're not even going to win the general election.
- 5.28 So that's the dynamic. Until a sizable plurality in America decides to pick and choose their favorite policies from each side and, like, really stick to that list, there won't be a third party. But is that even possible? Like, even if they did that, even if a big group got together, put a lot of money behind it, and, like, really get millions and millions of people, like, is that psychologically possible? I think is the question I'm asking you.
- 5.29 And I'm going to tell you that, no, it's not. It's not possible. I don't believe it's ever possible for a sizable population to agree on a set of policies from each side of the spectrum, because I don't think people are wired that way. Let's consider the following.

You might have observed by now that if you know someone's position on gun control, then you probably know their position on corporate tax rates and welfare benefits.

- 5.30** Now, why is that? These issues aren't connected. So why is there, like, a clustering of political beliefs that allows us to make political predictions off seemingly unrelated policy beliefs? Why are they mutually predictive? Now, I'm of the view that humanity falls into one of two basic categories, what Thomas Sowell calls visions, in his book *Conflict of Visions*. I think he wrote it, like, 1967.
- 5.31** If you want to understand political philosophy in America and everywhere else and throughout history, you read that book. Sowell describes two visions, the constrained vision and the unconstrained vision. I love this book because at no point does he ever mention the labels that we're all accustomed to—the liberal, conservative, Republican, Democrat. Because psychology goes deeper than labels. And I believe Sowell gets to the core of how we are hardwired to think about government and justice and rights.
- 5.32** So, in summary—this is going to be a long summary, but it's a summary—the unconstrained vision believes in the power of government to perfect society and ultimately perfect humanity. It's a noble cause. The constrained vision believes human nature is only so malleable and really doesn't change, and that the coercive power of government must be constrained.
- 5.33** Now, of course there's a wide spectrum in between those two positions, but the point is that there's really only two positions. There's not a second access to this spectrum. There's varying degrees of how constrained or unconstrained your vision might be. I mean, look, the logical extreme of a constrained vision would be anarchy, since that's essentially a belief that government can't solve anything. The logical extreme of the unconstrained vision might be complete totalitarianism, like George Orwell's 1984, wherein government is in charge of literally every aspect of your life.
- 5.34** In the constrained vision, where rights are only negative and never positive, I'm going to explain more on that in a minute, and government's protection of you should only go so far, you can start to connect seemingly unrelated policy positions. So the pro-gun advocate, what is he? He's fundamentally pro-freedom and he accepts the risks that come along with that. They're a believer in self-defense and, therefore, a believer in personal responsibility.
- 5.35** And so, as a result, well, they don't really believe in excessive welfare benefits either, and therefore believe in less taxes to support that welfare state. They see taxes as something close to theft, if not used for a clear and definable public good. You're seeing how there's a connection here now.
- 5.36** The guy on the opposing side, the gun control advocate, ends up on the opposite side of almost every issue. They believe that the state should be given complete control over the use of violence, even self-defense. They abhor the idea of excessive freedoms. They prefer safety. They prefer control. The constrained vision likes order, too, but

deems the wishes of the gun control advocates to be naive because human nature is what it is and will always be. And the cops can only get there so quickly.

- 5.37** And to try and control human nature would require such excessive force that it would overly impede on all of our individual freedoms. Now, the gun control advocate doesn't believe that everyone's actions are so simply explained by personal responsibility. And they'll point to structural problems in society that guide behaviors, and therefore believe that if we just fix those structural deficiencies with better welfare programs, for example, then we might improve human behavior and overall prosperity.
- 5.38** They believe that the necessary resources can be taken from those that have done pretty well in life, like built businesses and created wealth. So they're going to be OK with higher taxes and they're going to accept more government intervention in society. A lot of policy preferences can be derived from how a person views the role of personal responsibility. It's such an important foundation in politics. And the truth is that different humans are wired with different preferences about it. And so our divisions remain, possibly forever.
- 5.39** Sowell's Conflict of Visions makes a lot of other remarkable insights, particularly about rights and justice. And so we're just going to go over those quickly. On rights, and we encounter the profound difference between negative and positive rights, the constrained vision is concerned with negative rights. And we went over this a little bit in the first lecture.
- 5.40** A negative right means you have a right that can't be taken away. A positive right is an unconstrained vision preference and should really be called a service, rather than a right. Again, you can't say you have a right to health care without also saying that you have a right to that particular doctor's labor and time. And do you?
- 5.41** I mean, the different interpretations of the word justice, they follow suit, similarly. The unconstrained vision believes that empowering an elite few to actively improve the lives of citizens is a form of justice, since they're modern parlance of social justice. The constrained vision has a completely different view of justice, something more closely resembling fairness and equality under the law.
- 5.42** A social justice warrior believes that justice means everyone gets an equal part of the pie. A constrained vision advocate argues for proportionality. If you work harder or are more talented, it justifies your piece of the pie just being a little bit bigger. I do want to say, I think there is indeed a healthy balance between both visions, just like there's a healthy balance between liberals and conservatives.
- 5.43** If it's not obvious yet, liberals mostly fit into the unconstrained vision category, and conservatives mostly fit into the constrained vision category. Now, even as a conservative of the constrained vision, I recognize the value of opposition. I recognize the value of balance in the universe. I may even go as far to suggest that God imbued in us a near-equal distribution of constrained and unconstrained individuals. I mean, it

kind of seems that way, right, in America, with our closely divided political parties and philosophies?

- 5.44** And I don't want to build straw men as I try to describe both visions within the framework of our modern politics. But I'm just going to say it right out from the get-go. You know this. I'm a Republican. I'm a conservative Republican, not a populist Republican. We'll get to that later. And I think it's a superior governing philosophy, so my bias is going to show. I'm not an academic. I already told you that. It is what it is. Saying that, I also owe it to you then to explain why I even ended up in my camp.
- 5.45** Now, part of the reason for my belief that conservatism is superior is, one, it's because of my personal preferences. Conservatives and liberals place different emphasis on different values and morals and outcomes. And as a conservative, I'm predisposed to be both more risk-averse and more risk-tolerant, depending on the issue. This is not the contradiction it appears to be.
- 5.46** Conservatives are more risk-averse with respect to rapid policy change. We want you to stop, we want you to move slower before you radically change the way we are doing things. Just because you're reaching for utopia and you haven't reached it yet and you're, you know, and you're standing atop a bunch of books—I want you to imagine that picture really quick, like a librarian in a library.
- 5.47** She's standing atop books, and up top is utopia, and she's standing atop books like personal responsibility and meritocracy and all the principles of our founding. And she's so angry that she can't reach utopia that she just burns them all down. A conservative says no, you have to build upon those foundations.
- 5.48** But I am also more risk-tolerant with respect to things like regulations or laws that deal with personal freedoms. So I understand that if we found a rule for every possible risky situation and we could, in theory, zero out risk, we could keep everyone very safe from every possible danger, whether that danger is in your chemical plant, it's on the road, or your home. I can keep you safe from yourself and others. Just give us the power to do so.
- 5.49** Pretty soon everybody's in prison, and we'll feed you and shelter you, and we'll say that government has succeeded in our primary duty keeping you safe from harm. Now, of course, the Constitution says nothing of the sort. The closest concept might be the establishment of a military for a common defense. I mean, that's the closest our founding came to this idea that we should protect ourselves. It makes sense.
- 5.50** As conservatives, we're trying to conserve the founding principles. So I do always try to reference them when deciding on how to think about new problems that our founders never would have imagined. Now, it's true that our founders envisioned a government that would protect rights, and indeed, life is a right. And so, isn't it the government's job to protect your life from others who would try and take it? Yeah, of course. That's why we have police and courts.

- 5.51** The real debate between the left and right is simply how much government help we need before we are just infringing upon our own personal freedoms way too much. Hate to break it to you, that debate is going to last forever, because the words "too much" are inherently subjective. Most conservatives think we've already gone too far. Liberals think we haven't even scratched the surface.
- 5.52** All right, let's think of some examples of policy issues where safety and personal freedom collide, and let's do a class discussion, if we're OK with that. Let's start with—we're going to do three, and you guys can just, just chime in on any three of them. I'm just going to give you three. Gun control. Good one. Sugary soda. Oil and gas. Does anybody want to talk about how these things are related to this dichotomy between safety and personal freedom?
- 5.53** I think gun control goes for our freedom because I come from Venezuela and I feel like I saw where they wanted to control everyone, and people stayed. To keep them safe was the thing that they sold to them. But really, when they had nothing to defend themselves, then they weren't safe anymore, you know. So I think, for gun control, it goes more towards our freedom, you know, and personal responsibility.
- 5.54** Yeah, and somebody coming from Venezuela, that's a pretty damn profound insight. And a recent one. And there's plenty of—I mean, Germany was the same, you know, before Nazis took over. And so that debate rages on. Now, look, the pro-gun control advocates will say, "Look, we don't want to take your guns. We just, like, want magazine capacity rules. We want, you know, we just want to make it background checks universal." What they mean is, you can't do private sellers between.
- 5.55** So they're not talking about taking them ultimately, but we believe they are. And so that's the counter, that's the counter to what they say. We're like, yeah, we still think you're taking them. And also, I don't think your, the restrictions you're even proposing are going to do anything. And that's another key question for policymakers, like cost versus benefit.
- 5.56** OK, so you reduce magazine capacity. And that idea came from this really famous bank robbery that the movie Heat is based off of, where these guys are just gunning it out with cops, and they've got AR15s, and it is what it is. But here's the thing. My counterargument to them is, all right, well, OK, so, so my wife, when she's home alone, because I travel all the time, so, and because an AR15 is easier for her to shoot than a pistol.
- 5.57** I guarantee, and I don't know how familiar any of you are with guns, but I'm really good with a pistol because I'm a SEAL. But I'm telling you, you will be much more accurate and better to defend yourself with, with something that has three points of contact, whether it's a shotgun or an AR15. And while my wife was initially scared about shooting an AR15, when she shot it, she was like, "Wait, oh my god, I'm amazing." Like,

it's just, you're so accurate, it's just easier. So it's a better home defense weapon. It's what she prefers.

- 5.58** So I'm going to give her 10 rounds. I could give her 30, because that's generally what a magazine carries for an AR15. But no, let's limit it to 10, just to make sure those robbers have the advantage they need. I mean, what the hell? And guess what? Criminals are going to get their freaking 30-round magazines anyway. So let's just do away with this nonsense. All right, so that's a great comment. Thank you. Anybody from the opposite side?
- 5.59** I think, with all three, the biggest debate is, at what point do personal freedoms, but then how those personal freedoms impact other people, and at what point are you now sacrificing the larger population for somebody's personal freedom, whether it's guns, the environment, and even sugary sodas and the cost to obesity and those sorts of things?
- 5.60** Yeah, that is the debate. I'm not even sure I have a response to that, but that's the debate, and there will always be a debate on that. Yeah, that's a good comment. This guy had something to say about sugary sodas.
- 5.61** I'm of the disposition that you can go to the store and decide to pick up what you pick up. Whether or not it's there, not really a concern. But look, if you want to have a sugary soda, understand the consequences of what you're doing, plain and simple.
- 5.62** Hey government, stop making me so fat, right? So like, this is up, this is front and center right now. It's front and center because this is, like, RFK Jr.'s whole thing. And he just got nominated to be HHS secretary. Now I love his general ideas on nutrition. I think they are the modern—with all we know now about nutrition, he's mostly right, but that isn't the question.
- 5.63** The question is, do we tax soda, like, 10% extra to stop people from buying it, to save them from themselves? And this is what it really is about. Does government need to save you from yourself? That's what gun control and sugary soda are really about. Now there's externalities with gun control. Like, if you just make it easier to buy guns, does that make it less safe for everyone else? That's a complicated one on gun control because, again, I can prove to you that criminals are going to get those guns anyway.
- 5.64** Now oil and gas, right, so there's emissions. Let's just forget about oil and gas. It's really about polluting, it's about emissions. OK, so there's people who are concerned that there's too much emissions in the world. And depending on what kind of science you're reading—and I actually just referenced the IPCC, which is the Intergovernmental Panel on Climate Change, published by the UN. So that's the consensus. I don't reference anything else, I just reference what everybody else references.
- 5.65** You know what's funny about that report is, they do actually do a cost-benefit analysis on the cost of climate change. And here's what they found. In the year 2100, our global

GDP will be impacted by climate change. It will be 4.5% less than it otherwise would be, 4.5% less than it otherwise would be. But you have to put that into some context. So it makes some assumptions.

- 5.66** One, it makes some kind of silly assumptions that we're just going to continue on this track of, like, a coal-led developing world, which I think is totally unreasonable. So that's an assumption. It makes another comment which is accurate, that global GDP will increase by 450% by 2100. So, with the cost of carbon emissions, we're looking at an increase of global GDP of 434%, which is still pretty freaking good.
- 5.67** So there's a cost, but the cost is like, ah, it's kind of hard to quantify and pretty low. And the cost of the solutions they want to implement are in the trillions of trillions every single year, with the potential to destroy our ability to heat our homes or cool our homes. Cost-benefit analysis is important here. Yeah, risk versus safety. There's, there's externalities to certain industrial events, but like, we all, we all benefit from them.
- 5.68** The most important thing about some of these, especially with the climate change issue and how the oil and gas industry is affected, is just understanding the data, understanding the facts. I could talk about that for a long time. It takes between 100 and 400 times more land to get the same unit of energy from solar and wind than, say, a natural gas plant.
- 5.69** It takes a lot more steel and a lot more plastic, especially with wind turbines. They're made of very specialized plastics, and they're also shipped from China, mostly, so you have to add the carbon emissions of shipping across an ocean. And then you have to also consider the fact that they have about a 20-year life span and they're very difficult to deal with after that. Can't really recycle them.
- 5.70** And then you have to deal with the fact that electric car batteries, solar panels, they're made from critical minerals, rare earth minerals. You know why rare earth minerals are rare? It's not that they're rare, it's just that you have to dig up a lot of dirt to get to them. And the people willing to do that are the polluting countries. We're not willing to do it, even though we have plenty of minerals. But you have to dig up a lot of dirt, and then you have to use a lot of chemicals, and then you use a lot of heat to actually get the rare earth minerals out.
- 5.71** So there's an open question as to whether or not, per unit of energy, those forms of energy are even better for the environment. That's actually a data-driven open question that is only recently being studied. A lot to think about on that issue.
- 5.72** I wanted to say a word about gun control as well. I'm from Israel. I lived in Tel Aviv now for 12 years. And I think one of the narratives that I'm hearing in America about gun control and the danger of it doesn't take into account human nature. I think, you know, America has had a very safe environment, so the dangers of guns are kind of overblown. And I think more so than the danger of a government turning against its

people. People don't really realize that evil exists and that you need to protect yourself. So I wanted to know what you think about that a little more.

- 5.73** Well, I mean, you're, I agree. So, I mean, I've served in the Middle East, I've seen evil. We see evil right now. Israel is in a fight for its life. And I think it's versus evil people who chant "river to the sea" and want to exterminate the Jewish state. So, obviously I agree that there's, there's evil.
- 5.74** And then you make another point about, you know, what we're most worried about is the government. I mean, yeah, and most Americans can't really fathom that because, like, we've just, we just really haven't come that close. I don't know, I mean, we put a bunch of Japanese people in internment camps at one point. We did that. We locked people in their homes, told them they couldn't open their restaurants because of, like, some superflu. It's not that crazy.
- 5.75** And in Australia, they put them in actual concentration—I mean, they were nice concentration camps. You know, they're Australians. But like, they still made people with Covid, like, go to this, this camp. I mean, it's not that crazy. It's just not. But mostly, but move beyond that. Like, I just, dude, there's crime. Like, there's, there's crime, OK? And the police, they might be there, but they're not going to be there in the first few minutes when it matters. So you'd better shoot that guy who's coming through your door.
- 5.76** And if you're living in a place like Israel, I mean, you guys are in a totally different situation, right? You need to all be armed to the teeth. So, you know, we could talk about guns forever. And I think some of the real data behind it and, you know, school shootings, I think, are what really get under people's skin. Like, that's the real issue.
- 5.77** Most gun violence is suicides. I can't get inside your head and stop you from doing that. I'm sorry. And you know what? You're gonna commit suicide some other way if you don't have a gun. The second thing is gangs, right? It's gang-related, crime-related shootings. Those guys are getting guns either way, tell you what. And the truth is, that's a policing issue. And the more police you have, the more you tackle that problem. The more DAs actually decide to keep people in jail, instead of letting them go.
- 5.78** You know, in Houston right now, we have about 900 people, they're accused of murder and they are out on bond. That's why everybody's so mad about Blake and Riley, you know, because he shouldn't—there was a crime committed already, which was crossing the border illegally, and then another crime, murdering a young girl. And the same thing happened in Houston, the exact same thing from, you know.
- 5.79** And so, people get honestly and understandably upset when there's, like, two crimes in a row committed. So you have to have DAs who are willing to keep people in jail and enforce the law. You do those things, you'll massively, massively reduce gun violence. Now, the one that really freaks people out is, of course, school shootings. And so let's

talk about it. I don't care. I talk about this all the time, anyway. And it should freak you out. It's your kids. It's like, it's like our most precious assets.

- 5.80** And yet, we have what seems like a lot of school shootings. Now, in the grand scheme of things, like, statistically speaking, and this, of course, is of no condolence to the parents who are dealing with this, they're statistically very low and therefore very difficult to identify because there's no trends. It's very difficult to identify a proper solution that doesn't just totally infringe on everybody else's rights. And that's the thing.
- 5.81** And then you have to consider, like, what the hell is even going on? And I usually tell people what's going on is some kind of social contagion, because there was not school shootings before Columbine. Columbine created a social contagion that became an outlet for troubled teens. And I think video games had a lot to do with that. I didn't even know this, but some—I was at an event, and a voter told me that the Columbine shooters had actually mapped out their, their whole day, like, using some video game. I don't.
- 5.82** Anyway, I don't know if video games are to blame or not, but it's definitely a social contagion. And I don't know how to solve for that. I'm not going to take everybody's guns away to solve for that. I do know that I can harden schools. I do know that I can say that there should be a single point of entry. I do know that when I go into this building or a corporate office, it's kind of hard to get in.
- 5.83** I have to show my ID. I'm like, "I forgot my ID. I'm Dan Crenshaw. Like, you know me." They're like, "We don't care. Where's your ID?" And then I have to be swiped into an elevator, and I have to go up, and then I get to meet with somebody. Why isn't it like that for our schools? They're our kids. So there are solutions here where you can kind of have your cake and eat it, too. Protect personal freedom and have safety, at least for that particular issue. All right, let's move on.
- 5.84** All right, so we've talked about all of these issues and, like, the philosophical dichotomies that you have to deal with when, when deciding how to rule on an issue. But let's talk about the mechanisms by how they actually happen. So there's regulatory policies, and they happen with a mix of law-making and rule-making. Congress writes the laws, the executive branch writes the rules or the regulations, and that is what applies the laws in reality. It's just more detail.
- 5.85** Now, government regulatory agencies, we think agencies like the EPA, are actually supposed to use sophisticated formulas that measure the cost of new regulations, and then they compare that to the supposed benefit. That's a whole course by itself. I actually took that course at Harvard. You can get into the VSL, which is the value of a statistical life, which is how economists place a dollar amount on your life.
- 5.86** Now, that value currently stands at about \$7.5 million. That might make you feel pretty good, but to be clear, it doesn't mean that's what economists think you're worth. That

number comes from estimates about how much people are willing to pay for a small reduction in risk. So the point here is that there's actual ways, like objective ways, to quantify whether a new regulation's costs are really worth the benefit.

- 5.87** For example, if a new regulation will force—this is a real example that we deal with on my committee—if a new regulation will force every refinery in America to switch its main additive from hydrofluoric acid to sulfuric acid, because that's just how you make gasoline from oil, it would cost billions of dollars. I mean, billions. It would probably put most of those refineries out of business. You should know that about 60% of America's refineries run on hydrofluoric acid.
- 5.88** And so then you have to consider the cost of business. That's a problem. But that doesn't even think about the cost of society. I mean, if you have 60% less refineries in our country, what do you think happens to our gasoline supply? What happens when you have less supply? Prices go up. Good economics here. Would it be worth it? How many lives would it save? That's the question we got to ask first, right?
- 5.89** Well, since hydrofluoric acid has never actually killed anyone in an accident at a refinery, guess what? You're not going to save any lives at all. And yet this is a real debate ongoing at EPA, not for much longer. Quantifying these risks only takes you so far. What kind of risk you're willing to accept is ultimately a political question. It's left to the preferences of the left and the right and those debates that ensue.
- 5.90** Conservatives are more open to allowing that risk, at least from the regulatory perspective, for sure. And they're skeptical of just about any new regulation without considering the secondary effects. Policy is about trade-offs. There are rarely costless solutions. Liberals are compassionate people. They see government as the primary tool with which to protect people, even if it's just from themselves, even if it just saves one life.
- 5.91** Now, we all remember the debate surrounding the quite heavy-handed Covid lockdowns, do we not? What was the primary argument? It just saves one life, you know. Yeah, yeah, it's your business, but it saves one life. I mean, how do you argue with that? Now, that entire case study is a perfect example of what I'm talking about, though. I mean, let's take a step back. Like, why did the debate over Covid lockdowns even become left versus right? Why?
- 5.92** Like, logically, if you're an alien coming to Earth and you're, like, what are you going to? Holy shit. Like, I should imagine that for a lot of reasons, but, like, alien coming to Earth, you would think, OK, so, like, Covid very clearly harms older people or people with preexisting conditions and, like, young people are fine. So why wasn't the debate between old and young people about lockdowns? That would make, like, logical sense, right? But it wasn't.
- 5.93** And that's because the fundamentals of the debate ran so much deeper than demographics. It was security versus freedom. And that logic is applied to so many

issues. Is cheaper gasoline worth even one potential death? I'll ask that rhetorically in our debates in the committee. How do you answer that? There's other thorny social issues. We'll get into the non-controversial ones. Let's start with abortion.

- 5.94** So many people, I think, wrongly believe that abortion in the debate over it falls into this category of risk versus personal freedom. And they'll usually point out that conservative hypocrisy and contradiction. They'll say that conservatives value personal freedom until it comes to a woman's body. OK, but that's just not how conservatives see it. And I'll explain why.
- 5.95** Again, the unalienable rights listed in our Declaration are pretty clear. Life, liberty, pursuit of happiness. But you don't get to pursue that happiness or exercise your liberty at the expense of others. You made that point earlier. Your freedom to throw a punch stops at my nose. After that, I will punch you back way harder and then I'll press charges.
- 5.96** For conservatives, abortion is not about a woman's body. It's about human life. And you know, I would point out that I don't understand how you can say it's just your body when you don't want the baby. But when you do want the baby, it's your baby. And we think you don't get to take another human's life just because they're under your protection or it's inconvenient to you. So, from the conservative perspective, we're adhering to founding principles and the protection of human life.
- 5.97** The left and right also just fundamentally disagree on what government should do at all. I mean, there's a clause in the Constitution that says the federal government does have the power to provide for the general welfare of the nation. It's a pretty vague clause and, as such, it has been interpreted quite broadly, especially in this past century, and greatly expanded the role of federal government in our everyday lives.
- 5.98** Now, there is legitimate disagreement as to whether this is a good thing or not. The left mostly believes the government doesn't do nearly enough to provide for the general welfare of its citizens. The right tends to believe that all this helping has created wasteful, bloated agencies that barely have any effect at all on well-being and, in some cases, even worsen it by creating dependency on government welfare.
- 5.99** Conservatives would also argue there's a crowding-out effect, where inefficient government spending crowds out more efficient private spending that would have solved the same issue. Now, it depends on the issue, of course. Maybe here's another possible class discussion. Should welfare recipients be forced to work? Drug tested? What kind of welfare is best? Is it just cash? Is it just like a straight cash benefit? Or is it something more along the lines of, like, food stamps or a housing voucher, where you can only use it for that one specific thing? Anybody?
- 5.100** I think the issue of welfare kind of comes down to, what exactly is your problem? So if you're dealing with somebody who can't take care of themselves for whatever reason,

that's one thing. But how we define that is going to define what solutions will work one way or the other.

- 5.101** Yeah, for sure. I mean, and I should have been more specific. I mean, the real question in policy is whether able-bodied welfare recipients should be forced to work. Disabled is a different category. There's largely agreement that, yeah, they can't work or they're mentally ill. It's a different category. But the question is really whether able-bodied welfare recipients should be forced to work and be drug-tested. And you know, Republicans would generally say yes, and Democrats fight us on that. Did you have something?
- 5.102** As somebody who's worked in community mental health care, in Texas actually, I saw firsthand what happens when you give people money freely. Whether you give them cash or you give them an EBT card, if they want to, they'll sell it and they'll buy whatever they want anyway. And a lot of the people are not drug-tested and they use that money for drugs. People use them. And it's a lot of this idea of wanting to help people without actually empowering them to change their lives.
- 5.103** As somebody who was supposedly there to do that, I was running up against a lot of these problems, kind of on a daily basis, especially with housing first. This idea that they have a right to housing and you can't drug-test them or make them have a job to then keep that house. And I have seen a lot of people ruin, really, like wonderful landlords who wanted to help, completely ruin their houses, turn them into drug dens.
- 5.104** And what do those landlords do? They stop investing in new places.
- 5.105** Absolutely. I've lost a lot of contacts that way. So, as somebody who really does want to help and care for people, I've definitely come to learn that is more about holding people accountable in order to then receive help. I do that with my daughter. You know, she doesn't just get free things, she has to do things that she needs to do.
- 5.106** What a great point. And I didn't write this one down in my lecture, but I always say it in my speeches, so I'm going to say it now. You said you do that with your daughter because you love her, right? You love your daughter. I love my daughter. So I'm going to teach my daughter that there's right and wrong, and that when something's her fault, it's her fault; that her bad grades are her fault, nobody else's. It's not the system, it's you. I'm gonna teach her that, because I love her.
- 5.107** And so, shouldn't we also treat the American people like we love them? Because look, I mean, if you want to be the favorite aunt, you just give them whatever they want, right? Tell them whatever they want to hear; oh, I just want to be the favorite aunt or uncle. Not trying to identify as an aunt right now. So why would we treat the American people that way? Treat them like we love them, like we care. Now it's hard from a policy perspective and look, in deep red Texas, you're still even dealing with that. We got to change that.

- 5.108** All right, let's move on. Here's a key question. Should government even be trying to solve the problem? That's actually, like, the first question you should ask with any policy issue. Now, the further left you get, the more likely the answer will be a resounding yes to any problem you bring up. This one's funny. You know, in the United Kingdom, there is literally a minister of loneliness? I kid you not. It is the logical extreme of the unconstrained vision, where even negative human emotions can be fixed by a centralized authority.
- 5.109** The further right you get, and specifically the libertarian right, the likely the answer will be no. Some even suggest you don't, you don't need the government to build roads and bridges. As one libertarian presidential candidate famously stated at the 2016 Libertarian National Convention, he quoted Doc from Back to the Future, and he said, "Where we're going, we don't need roads." So I think everybody assumed he was just telling a joke. But if you actually watch the full clip, he's, he's not joking. Like, the context is important. He wasn't joking at all.
- 5.110** I'm not a libertarian, right? I'm a conservative. So in Congress, many of our disagreements center on this basic question. Should the government be doing this thing at all, and let alone the federal government, and if we decide to do it, how much red tape should we put on it to get it done? Are we creating a program that is so ultimately complex to administer that it defeats the entire purpose of it?
- 5.111** Conservatives first ask, can a community solve this problem? Is any government needed? Now, America does have a pretty incredible philanthropic side, more so than any other country in the world. The fact that the 501c3 donations are tax-deductible doesn't hurt. It's probably one of our wiser parts of the tax code. So, many problems actually do get solved at the community level, without any help from government.
- 5.112** But liberals will point out that not all problems get solved. And even if a great nonprofit is really effectively tackling a problem, they can't scale large enough to solve it for everyone. They're not wrong. So if we decide government's then needed, well, the question is how? The lightest touch that we generally agree upon is grant money. You give some money to private organizations that are already solving the problem, instead of creating a whole other government organization to solve it in parallel.
- 5.113** Now, this happens a lot, actually, because it is something we can kind of agree on, liberals and conservatives. Now, liberals will always say it's not enough. You need to add more money into it. We need more and we don't, right, so that debate lasts forever. That's OK. Food banks, good example here. They are private nonprofits that rely on donations to keep running, but they're also eligible for a variety of government grants, and then they dole out money for that purpose.
- 5.114** Those grants are authorized by Congress and managed by the agencies of the federal government, in this case, the US Department of Agriculture. So you keep moving rightward toward the constrained vision and you're going to run into some

counterarguments against this long list of government grants. They'll argue that it would make more sense to just let citizens maybe just keep more of their money, build more businesses, create more jobs. That would negate the need for all this assistance in the first place.

5.115 This is long-term thinking. In the end, it's long-term thinking versus short-term thinking. They'll say that the promise of federal money, it just creates dependency, and it's not just from the individual. It creates dependency from local and state governments, because they don't want to be unpopular and tax their citizens. They want to apply for federal grants, because states can't take on the debt that the federal government can. So local governments end up relying on endless supply of debt-driven federal spending, instead of doing the problem-solving locally.

5.116 This happens a lot. It's a bad incentive structure. This creates inefficiencies. Inefficiencies, why? Because, I mean, who knows best to solve a problem in your own city? It's probably the people there. And yet, we're having to use federal money, with all the red strings attached to it—it creates inefficiencies. You can play by the rules of those red strings or you can forget about the money.

5.117 Conservatives argue that this trend has wildly broadened the scope of federal government, like, well beyond what was originally intended. I think they're probably right. They, me, I think we're right. But here's the thing. It's hard to put the cat back in the bag. It's nearly impossible to take away a government benefit once it's been given. It's one of the reasons that conservatives are so reluctant to do more, because we know we can't reverse it.

5.118 The thing about the conservative disposition is it worries a great deal about creating a dependent society, or a welfare state, because that ultimately encourages what? I mean, laziness, unproductive behavior. Both of those things are elements of a societal downfall. Liberals will just shoot back, right, well, OK, well, you believe in biblical principles, right? And Jesus, well, Jesus was basically a socialist. He encouraged charity. He encouraged you to give to the poor.

5.119 As a conservative, my retort to that is, not so fast. Jesus encouraged personal charity. He never suggested that government should intervene by taxing you more to give it to your neighbor, just because he decided he wanted to be a struggling poet instead of an engineer.

5.120 But the liberal argument is still hard to contend with sometimes. They'll point out that, like, while government programs may be imperfect, sometimes wasteful, look, it's still better than watching people suffer. We're a civilized society, after all. We're a compassionate people. And so that outcome is just unacceptable. Who are you to argue with it? That's the debate. It will always be the debate.

5.121 All right, so let's pause, let's review. What are the concepts we've gone over so far? One, risk versus safety, and that nexus to individual freedoms. Number two, the

question of what government should do at all. Now, these differences manifest mostly in economic policy differences, like welfare programs, tax rates, regulations, environmental policy. But it also affects the debate on hot button issues like gun control and even abortion.

- 5.122** So what's next? As I mentioned earlier, I think we are wired differently. We really are. So let's spend a minute on moral frameworks. We talked about political frameworks. We talked about Thomas Sowell, Conflict of Visions. But let's talk about moral differences and the different mores that are prioritized by liberals and conservatives. This gives us a lot of insight into how we end up in the different policy camps that we do.
- 5.123** Now, I'm going to reference another book. The authoritative work on this subject is a book called The Righteous Mind by Jonathan Haidt. It is another must-read if you want to understand why we are divided the way we are, and especially why seemingly disconnected political positions are mutually predictive of one another. So here's a quick summary.
- 5.124** Haidt references moral foundation theory. It establishes six categories of moral foundations. I'm not a moral psychologist, but I understand these categories to encompass all of the things that you and I would consider moral. All right, so write them down, because we're going to keep talking about them. They're as follows. Number one, care. Care, compassion, same thing. OK. Two, fairness. Three, loyalty, specifically loyalty to an in-group. Four, authority. Five, sanctity. And six, liberty.
- 5.125** There's actually a lot to unpack in each one. We're not going to do all of them. You need to read the book. The interesting part for our purposes here, though, is how liberals and conservatives score when they're asked about these different categories. So they did a ton of extensive survey questionnaires, and they were able to establish how a person prioritizes certain moral values. Like, hundreds of thousands of data points. It's fascinating. I think it's called YourMorals.org, if you're interested in this.
- 5.126** Now, for instance, like, you may think it's really important to listen to your parents. That may be like a, like a moral standard for you. But you don't think it's that important to split the check. You're that guy. You may think it's more important to guarantee shelter for the homeless than it is to protect your freedom to hire whoever you want and pay whatever salary you think is fair. People just have different preferences on these things, and they're connected to their own moral values.
- 5.127** You might think that traditional values, like clean language on television, traditional marriage, no nudity in public, you might think those are important. Others definitely don't. So the conclusions from Haidt's surveys are really telling. First of all, liberals and conservatives, they don't even define the terms the same. So let's start there.
- 5.128** Like, in the fairness category, each side actually totally defines it differently. Conservatives tend to define fairness in terms of proportionality, meaning that your

share of the pie should be proportional to how hard you work or how talented you are. Liberals tend to value a more equitable sense of fairness. That shouldn't be a surprise to anyone.

- 5.129** So, if we had \$100 to split up in this classroom, a conservative would prefer it gets split up based on how many hours you spent here working or whatever labor you put in. A liberal would suggest a more even split because they're more likely to be concerned about the few people who might end up with nothing. They're compassionate.
- 5.130** In the survey data, Haidt found, this is really important, that conservatives were pretty much equal. They placed about equal value on all six of the moral foundations. That's how they scored, all the same. Liberals, on the other hand, were not at all the same. They had a much stronger emphasis on care, compassion. So again, care, compassion, I like to use the word compassion, and fairness, but their definition of fairness, not the conservative definition of fairness.
- 5.131** It was almost as if, for, for a lot of the liberals, the further left you got, that the other categories were not even considered to be moral questions. The further left you got, they weren't even moral foundations for them. And I think this explains a lot. I'll give you one example, a really hot topic, again, totally uncontroversial, the southern border.
- 5.132** So what's the moral foundation that might explain your position on border security? Fundamentally, here's what you're talking about. You're talking about keeping people out of your country unless they go through the proper procedures to get in. OK, so, authority, proper procedures, you're right about that. But loyalty, because remember that I said loyalty to in-group is actually what he writes about. It's like, because that's very anthropological. Anthropological survival instincts. You're thinking of protecting your tribe. That's a very human thing.
- 5.133** And so, if you're keeping people out of your border, you think a loyalty foundation is important to your morality. It's safer, it's more predictable. But the more liberal you get, the less you see this as necessary, because they emphasize caring and compassion above the other categories. So you're right, also; it is compassion. And that's what the liberal argument is.
- 5.134** There's so much more concern with the plight facing that particular immigrant than the protection of the group that's inside the borders already. And they're not as concerned with the authority of the government to force the immigrants to go through the proper procedures in the first place. You're all right. Those are great answers.
- 5.135** This is also why conservatives are considered, you know, the law and order party. Some may see this as a contradiction, since conservatives are also the self-described liberty party. So, like, how can, how can both be true? Well, I think the answer is that conservatives place equal value on liberty, on authority, and on sanctity. And all of these categories, well, they counteract each other a bit. They balance each other out.

- 5.136** So, sure, like, ultimate liberty just means doing whatever you want. But that's the libertarian stance, not the conservative position. Conservatives believe in religious authority, which implies an appreciation for sanctity as well. That's where that kind of, like, no nudity in public stuff comes up. Conservatives are more inclined to speak about ordered liberty, not free-for-all version of freedom that pushes the limits of sexuality and other forms of depravity.
- 5.137** That brings me back to Libertarian National Convention in 2016. The next question they all asked was, "What is the difference between a libertarian and a conservative?" Interesting question. And they all answered it just like I thought they would. Libertarians, they said, are fiscally conservative but socially liberal. You know, they say it's OK to fly your freak flag, as long as you don't infringe on the rights of anyone else.
- 5.138** Now, to be fair to conservatives, that statement is something we would say also, for the most part. I'm not sure we disagree that much. But that doesn't mean conservatives would ever describe themselves as socially liberal. There's just more appetite in the conservative movement to openly embrace a biblical moral framework. Whether or not we should use the power of government to enforce that moral framework is an entirely different question, though. Some believe we actually should, others don't.
- 5.139** So the key to the conservative belief system is that you can't maintain the freedoms that libertarians value so much, unless you have a moral society. And that was, of course, de Tocqueville's observations as well. Now, in the end, libertarians and conservatives, they get along OK. You know, we love symbols in America. I love our symbols. Like, we talked about this in the first lecture. Like, the symbology in the US Capitol is just unbelievable, and most of us don't even notice it.
- 5.140** I bet you haven't really thought about the Statue of Liberty as much as you think, either. The Statue of Liberty is, like, the perfect symbol of what we might refer to as ordered liberty. OK, so what is the Statue of Liberty? Well, it's again, made by the French, can't escape them, but OK, so everybody sees the flame, right? The flame of freedom. Flame of liberty. It's lighting the way for liberty. And she's got the 13 points for 13 colonies.
- 5.141** Not a lot of people pay attention to what's in her other hand, the tabula ansata; that means book of law. And inscribed on that is the date of our, it's July 4th, 1776. So what are we trying to say with that symbology? We're trying to say that you have to have both, law with liberty, ordered liberty. That's the symbol of the Statue of Liberty. Freedom by itself just runs amok. It's anarchy.
- 5.142** So, look, politically, because we're talking about political difference, libertarians, conservatives, we get along OK in the end because libertarians tend to think Republicans are, like, the lesser of two evils. So we generally align, even though they

always take away 1 to 3% of our vote, which is really annoying. Wish they'd stop doing that. But those are the two parties.

- 5.143** Let's talk about a juicier topic that I promised you I would. Inner party strife. And I promise you, it's so much bloodier than the party-on-party strife. So politics is a spectrum. So there has to be variance, of course, within the left and within the right. So I'm going to start with the left and the rise of the modern progressive. Not that modern, really, because, like, Woodrow Wilson was really the progressive of the time, and that was, like, 100 years ago. But anyway, the modern progressive.
- 5.144** I'm not an academic. I don't claim to be. I give you my opinion based on informed observations from my position as a politician. My opinion is that the recent and rather pretty radical rise of the modern progressive is a result of liberals having won too many battles. That's one theory at least. So in their best form, I think liberals are really good at pointing out injustices and they want to rectify them. They're compassionate, remember.
- 5.145** So this is one of the reasons I say that our politics benefit from a really healthy balance of left and right. Now, because of their more compassionate nature, liberals are more likely to make noise about how the system, whether that system is the free market or our laws or our immigration policy, you know, it might be leaving some people behind. They're going to make a lot of noise about that. And that's not a bad thing. Somebody should.
- 5.146** It's only a bad thing if the proposed solutions do more harm than good and destroy the foundations that created the good things in the first place. Remember what I asked you to visualize, the librarian reaching for utopia atop the books of the foundations that got us that high to begin with. Progressives sometimes just want to burn it all down because they're so mad they can't reach utopia.
- 5.147** So, a quick example might be useful here. You might look at a society and see an unacceptable amount of poverty amongst vast swaths of people, and you got wealth concentrated in a very small group at the top. That's a pretty familiar complaint amongst progressives and liberals. Now a conservative doesn't disagree with that observation, but we definitely question what kind of solutions might be best suited to solve it.
- 5.148** Now, if your solution is to simply confiscate all wealth and redistribute it, which is, you know, like the purest form of communism—not saying that's what they want to do, but, well, they do want a wealth, actually, some of them do. Guess what? If you do that, you're going to kill any future incentive to create wealth. France tried this, remember. Not too long ago, they tried. I think Canada maybe. France definitely tried it. They did a wealth tax. What happened? Everybody just moved their money away, and then their tax base dropped dramatically. They had to reverse course.

- 5.149** You're dooming the society to live equally, but equally poor. Now this debate's been raging for centuries. It's not new. Despite what the fresh-faced college activists tell you, the truth is, our country has already tried out a whole lot of solutions to this very long-standing human problem of inequality. We've had 90% tax rates. 90%. Could you imagine, like, literally 90% of your time is just to give the government money? That's fucking crazy.
- 5.150** We've spent trillions, trillions of dollars, on welfare programs and homeless shelters. Like, trillions. 70% of our budget, by the way, is pure entitlement programs. We argue all day long about annual discretionary spending. 70% is entitlement programs, which is money straight to our senior citizens. We've changed our laws to prevent discrimination of people based on their skin color, which is a good thing.
- 5.151** I mean, we've changed education funding so that poor districts get the same funding as rich ones, because, how are your schools funded? Through county taxes, local taxes. So, at least in Texas, like, we make sure there's a formula so that poor districts just don't get screwed. We've done a lot. So, structurally speaking, structurally, again, I use that word very carefully, because that means codified into law, into a structure—structurally speaking, in the year 2024, it's actually really hard to find any more of these easy buttons to solve this problem of poverty and inequality and any other injustice.
- 5.152** But progressives are progressives, and their entire philosophy is basically, change the status quo. I mean, no matter what it is, progressives got to keep making progress. In what direction? I don't know. Who cares? Just go. In the face of politics, the progressive rejects every single finish line they cross. They're never finished because they don't have a vision for what the country should look like. And that's not progress, in my opinion. That's endless wandering.
- 5.153** Now, liberals have won big on social policies, too. Notice I distinguish between liberals and progressives. And I'll just be clear with you. What I'm distinguishing between is, I think, like a Bill Maher-type liberal that I can contend with, like a '90s Democrat, versus a, versus somebody from the squad who's an ultimate progressive. OK, just for everybody understanding how I, how I tend to think about these things.
- 5.154** Liberals have won a lot of battles on social policy. I mean, gay marriage, locked into law. Obama was against it. Biden was against it. Now it's, like, locked into law. The Supreme Court made its decision in Obergefell v. Hodges in 2015. It is not changing. It's not. While debates rage over issues like transgenderism, the debates are not even over whether or not those people should have the same legal rights as anyone else.
- 5.155** They're actually over whether or not transgender people should have additional rights, like the right to play in sports of the opposite biological sex, or use taxpayer money for transgender surgeries, or allowing minors to undergo transgender affirmation care even without parental consent. So, again, it's really not about equal rights anymore. It's about additional rights.

- 5.156** So, OK, from my conservative perspective, again, giving you my opinion, these are pretty extreme positions to take, those ones I just listed. These are entirely new categories of debate. They've been manufactured and, I think, with the purpose of obfuscating our more traditional categories of debate. The progressives' point and mission is to expand the Overton window so wide that we forgot what we were talking about in the first place. These wild ideas were not common among liberals in recent memory.
- 5.157** Another prominent example is the debate on climate change. Now this one's become increasingly extreme in recent years, even as emissions in America have dropped back to 1990 levels. Does anybody even know that? Air pollution in America has decreased by 70%. By the way, you know why carbon emissions have gone down so much? Fracking. We went over that in another lecture, remember? Fracking. It upended the coal industry, replaced it with natural gas, which has about half the carbon emissions.
- 5.158** We have more regulations protecting the environment than at any other time in human history. We established the Environmental Protection Agency under a Republican president in 1970. But now there's an emergency. So why push for a radically different energy policy that is entirely dependent on solar and wind energy? Why the big changes in the last policy platform? I'm telling you, I think it's because liberals have won a lot of the battles, and the progressives need new battle cries.
- 5.159** For me, the biggest problem with liberal philosophy is that it is unconstrained. There's no established limits to the progress that they envision, and that opens it up to chaos. So what's the final tax rate that Senator Bernie Sanders would be happy with? Has he ever said? No. What's the proper amount of welfare to give someone who loses their job? There was a study recently where 26 states, like, if you're just getting all the welfare possible, that is higher than the median income of that state. Does that seem like a good idea? Or does that seem like an incentive to just stay on welfare? Am I crazy? I don't know.
- 5.160** What's the upper limit on the minimum wage? Do they ever say? They just want more, more, more. It's \$15 now, it'll be \$20. What's the upper limit? When will we have enough regulations to govern environmental permitting or labor laws? Never? I mean, if 10 regulations are good, then, hey, 100 must be better. The left never says what limits their philosophy. They never say what kind of limiting principles that they govern by. Instead, it's for perpetual complaint that it's never enough.
- 5.161** So it always makes you wonder, like, what new battlefield will they open up next? I'm honestly always surprised by it, so I can't even predict it, but it remains to be seen. So this critique, and it's a pretty strong one, this critique of the left is fundamentally why I'm a conservative. Conservatism lives in a box of limiting principles, or at least it's supposed to. You can't take it too far.

- 5.162** At its core, conservatism is a procedural framework for solving problems. I want to say that again because it's, like, an important definition of conservatism that I like to say. It is a procedural framework for solving problems. We want to solve the problems. We're not libertarians thinking roads are going to get built by themselves. We want to solve the problems, just like the left, but we limit the power of government to do so to protect the foundations the country is built on.
- 5.163** We limit how much freedom should be taken from the individual for some intangible sense of safety. We limit how far we should veer from traditional values that have actually served humanity pretty well for thousands of years. We want to limit how much debt we should take on. We want to limit how dependent any citizen should be on the government for their well-being. And the list goes on.
- 5.164** This isn't to say the conservative side does not have its problems. If you think I am being one-sided in my presentation of the left and the right, you just wait. I promise to make everyone very angry today. First off, we're talking in generalities. It's very easy to find points, and people, and politicians especially that violate this idea of limiting principles that I'm talking about. But I'm talking about ideals; I'm talking about generalities.
- 5.165** But now I want to talk about the new right or the populist right. There's a lot of labels. So if you think I'm a partisan hack, you don't know me that well. I spend a considerable amount of time these days criticizing the right and battling the strange new divisions that have sprouted from my own side. The odd thing about the modern manifestations of the far left and the far right is that they kind of remind me of each other.
- 5.166** And so, I'm going to counter what I even said before about politics being linear, because instead of being linear, it's actually become a circular loop, where the far left and the far right have increasingly more in common, at least from a dispositional standpoint, like a personality standpoint. It's not that they agree on policy issues, although in some cases they actually do. Like, a couple of examples come to mind. They have an isolationist foreign policy, and they definitely have a willingness to use government to manage the economy.
- 5.167** So all that stuff I said about limiting principles, ah, the populist right doesn't care as much on the economy. But the real commonalities are about personality more than anything else. So let me frame it the following way. A highly passionate person, and that's, like, the nicest word I can come up for it, they get really active in politics. They eat, sleep, and breathe politics. They're kind of predisposed for it. They're easy to rile up. They're emotional. They have very strong opinions on everything.
- 5.168** They're obsessive about issues and current events. They generally have a strong like us versus them mentality. They have a really fierce distrust of the opposing side and, of course, their own establishment. And they're not likely to explore arguments or logical analysis of subjects. They tend to gravitate pretty heavily toward confirmation bias.

They're seeking out information that fits their team's narrative. They tend to engage in single variable analysis, instead of recognizing nuance and complex problems.

- 5.169** They obsess over the establishment, whatever that means, and they feel constantly victimized by the system. They're convinced the world is unfair to them. And above all, they always think the other team is winning and that they're losing. I want to be clear here. I haven't described anyone to you yet, right? I haven't described a Republican, I haven't described a Democrat, anyone in particular. I've just described a personality type.
- 5.170** So you answer. I mean, do you recognize that person or know someone who fits that description? Man, you must, right? But are they on the right or the left? Both. It's the same person. They're just wearing different colored jerseys. My feeling on this subject is that people predisposed to excessive passions are just looking for a team to be on and they need a cause. So for whatever reason, they fall onto the red team or the blue team, and then they quickly adopt the most extreme stances associated with that team.
- 5.171** The initiation, I mean, it could happen a number of ways. Maybe it's the social media clips they started watching. Maybe it was like a group of friends or coworkers. Who knows? They ended up on the red team or they ended up on the blue team. And because they didn't really choose their team based on some thoughtful analysis or research or experience, it kind of seems to me that the people in this category are essentially the same people. They just have different colored jerseys on.
- 5.172** Think about a sports analogy. So what's the difference between the loud fan shouting chants and slogans, face painted, like, crazy hats; they're screaming at each other, they're saying different things, they're on different teams, they're wearing different jerseys. But what's different about them? Like, the fundamentals of their personality, like, what's different? Nothing. They just go to different high schools or colleges, they live in a different city, they have different teams, but they're like the same kind of person.
- 5.173** They're both the type of people who like to go to a game and yell at the opposition, and then they go back to their normal job and normal family. Now, I don't think the great self-sorting of politics is all that different, especially for many of the most extreme groups. I've noticed that a lot of disaffected former liberals that became conservative right-wing social media personalities didn't change all that much. They started chanting different slogans and they started wearing a different jersey, but fundamentally they didn't change at all.
- 5.174** Their mindsets never changed. The way they approach problems and develop intellectual frameworks never changed. And that's how we get the self-labeled New Right. That's a broad term, and I'm generalizing because I have to, but I'm trying to

describe the broad political movements, and of course you can nitpick it all apart and, you know, with exceptions and individuals who don't fit the mold.

- 5.175** But the New Right's a thing, and I'll give you my take on it. I don't like it. They describe themselves as sound bites, mostly. They claim to be America first. They borrow that term from President Trump, who borrowed it from countless political figures before him. They're against the establishment, whatever that means. They're for the people, not the lobbyists and politicians. They fight for the middle class, that's what they say. They're against overseas entanglements and they like to talk about getting us out of endless wars.
- 5.176** So, another interesting thing is, so far I haven't actually said anything that isn't also said by far left progressives and liberals, have I? It's the same thing. They don't say "America first," but, because it's like, it's, to them it's a Trump term now. But they definitely say things like "putting our most vulnerable Americans first." They're the same people, they're just wearing different colored jerseys.
- 5.177** It's actually quite comical, if you just stand back and look at them. Both of these so-called squads, they live by half-baked slogans, almost as if reading from a script that was written by a cartoon animal. I mean, they obsess. They obsess over the lightning rod issues of the day. It's usually some kind of culture war priority of some kind. They never argue about complex issues that require a bit of nuance and deeper research.
- 5.178** Now, in Congress, the members who fall into these particular categories are never on the most serious committees— serious committees being things like Energy and Commerce, Ways and Means, Intelligence, Judiciary, Transportation, Infrastructure. There's a lot of serious committees, but they're not on those. Why? Too boring. Not enough camera time. They need hype, they need clickbait.
- 5.179** And guess what? A whole industry has developed. I call it the political entertainment industry. And I will suggest to you that that is the true establishment, if there is one at all, at least on the right. It's the long list of personalities on radio, on social media, on podcasts, on cable news, that focus entirely on entertaining their audience, not educating.
- 5.180** They, actually, they're pretty careful. They're smart. They carefully examine what phrases and what issues are trending at any given moment, and then they'll do their best to fuel that fire. They're not driven by principle, but profits, because as it turns out, clicks and views mean you're making money. Many of these influencers, they are literally selling their influence and they make a ton of money doing it.
- 5.181** And you can spot them a number of ways. I mean, they're desperate to project their own guilty conscience, and they do so with a variety of tactics. Right? They lash out at the oh-so-ominous establishment. They're always quick to accuse politicians of lining their pockets, without evidence, of course, while they are lining their pockets with millions by selling their influence that they've created, by selling outrage.

- 5.182** They have a way of making you believe that you're always losing, that the world is falling apart around you. Believe me, I have seen the exact same doomsday-esque conversations happening in both liberal and conservative activist circles. It's wild. They both say the exact same things about how they're losing. And they're so intensely focused on things like scandals and ad hominem attacks, because it's not about the policy issues for these people. It's about proving to you that the other side, it's just more evil. The policy stuff can be sorted out later, according to them, by the serious people, the establishment.
- 5.183** As a conservative who's concerned about policy, since the entire point of politics is to effect policy changes, I'm deeply disturbed by this trend on my own side. I think liberals should be concerned about the trend on their side as well. The situations are almost mirror images of one another. So let's spend some time on the definition of the word, dreaded "establishment." I've said it a few times. You probably want to know what I mean by it.
- 5.184** It's used so often at this point that I think it's comical, at least from my insider perspective. It's an open question. Is there really an establishment? What are people even talking about when they say that? Like, by definition, an establishment is some form of top-down power structure. I think everybody would agree on that. So let's start with the Democrat Party. I actually do think there's some semblance of an establishment in the Democratic Party because they exhibit high party discipline and unity.
- 5.185** There definitely seems to be some level of power within the party leadership that keeps members of the party in check. I can see it. I mean, heck, their 2024 presidential candidate Kamala Harris was chosen without a single election and not even a party convention process. So from my perspective, looking in, from the outside admittedly, take it with a grain of salt, that seems like an establishment.
- 5.186** But in the Republican Party, no such thing. And to be clear, I'm not even making, I'm not saying that as a compliment, either. Because while loudmouths decry the dreaded establishment, you know what they never tell you? They never tell you who the establishment is. I mean, they just say leadership. They never tell you where it is, where they get their money. Do they have a headquarters? Who funds them? How do they impose their will on you, exactly?
- 5.187** So the best definition I've been able to come up with for anyone that calls something the establishment is, I think they're referring to someone who refuses to scream loudly enough at the nearest brick wall. And if that sounds cynical, yeah, it is. It is cynical. Because if you try to talk about complex issues with a degree of nuance and veer from the prescribed sound bites, well, you're part of the establishment. If you vote for a crappy spending bill because you know you're in the majority, and yes, by the way, they're all crappy spending bills to vote on, because every single fiscal year, they are by necessity a compromise, which means they are crappy.

- 5.188** Everyone is establishment if they don't toe the angry narrative of the moment. You know, the hilarious part about all of this is that there's so many different types of conservatives that have been labeled "establishment" as to render the term just absolutely meaningless. Give you some examples. Hyper-fiscal conservative, hyper-fiscal conservative, former Speaker of the House Paul Ryan, establishment. Hyper-social conservative, former Vice President Mike Pence, establishment. Anyone who voted for Kevin McCarthy for Speaker of the House, establishment.
- 5.189** Believing we should fund the FBI, establishment, but also defunding the police is lefty crazy talk. Hard to keep up with the inconsistencies, which is why I'd recommend ignoring these people to begin with. I'll actually prove to you right now that there's no establishment. It's just with a simple thought experiment. And it goes like this.
- 5.190** If you're running in a Republican primary election, do you get more popular or less popular by lashing out at the so-called establishment? Like, if you say, "Look, I am not going to be part of the establishment. I hate the establishment, I'll fight the establishment," will that make you more popular or less popular with your primary voters? Anybody? Of course, more. Of course, more.
- 5.191** So that simple fact negates the existence of the establishment. There's no man behind the curtain. There's no all-powerful puppeteer that pulls the strings, whether those strings are policy or money. It just doesn't exist. I'm not saying it never existed. Maybe it did. Certain points in history and waves and trends. But in today's wild west media world, there is nothing but the political entertainment industry.
- 5.192** If anything, you might call that the real establishment because they often operate in concert with each other. And they know it, too, which is why they talk about the establishment so much. They want you distracted. They want to project. They want you to keep believing in the villain. It's a super easy punching bag for them. You know why? Because it never punches back.
- 5.193** I mean, how often do you see these lines from politicians and social media influencers? "The establishment wants to silence me. Help me fight back. Donate here. Share this. They've shadow-banned me. Follow me. Tell your friends." This new trend on the right is a symptom of the rise of populism. Now, for my conservative tastes, populism is indistinguishable from leftism because it is based on emotion, not principles. It is not tethered to any sort of limiting principles.
- 5.194** I mean, take for example the hotly contested Georgia Senate elections of 2020. Emotions were high. Stakes were high. Republicans were desperate to win. We needed those Senate seats. Otherwise we'd give the Democrats big three wins. The House, the White House, and the Senate. It was important. And so the battle cry from the populist right was to actually endorse universal \$2,000 checks to everyone for Covid relief, thinking that would garner political support.

- 5.195** So, OK, think about that for a minute. In what world does that line up with conservative limiting principles? Personal responsibility means tested benefits, fiscal responsibility, limiting principles. I mean, since when did any conservative endorse universal basic income as a proper welfare policy? Universal basic income, by the way, just means everyone gets a basic income—everyone, no matter how rich you are—as opposed to means-tested benefits.
- 5.196** I think it's a stupid idea, because it begs the question, right? It's so easy to pick this idea apart if you're a conservative with limiting principles. Because it's like, well, why not, why \$2,000, actually? If we're just going to assume that the best option here is to buy off voters for their vote, let's just go to 3,000 or 300,000. What's the limiting principle? Without limiting principles, you're no different from the left. You might be wearing a red jersey, but your core disposition is the same. And all of a sudden, the political spectrum is no longer linear, but it's a circle where the far left and the far right meet.
- 5.197** OK, I'm going to wrap this up. We're going to put the proverbial bow on this complex topic. I want to leave you with some key insights. In the long, tumultuous history of humankind, there are ultimately two categories of governing belief systems. There are those who believe that with just the right amount of government tinkering, you can perfect the human condition. You can create utopia.
- 5.198** You can make a law or regulation for every possible problem, eventually eliminate every externality, and even condition people to be fundamentally good, however it is you define the word good. This sort of thinking leads to a lot more control and a lot less freedom. Looking back across history, this is actually the norm.
- 5.199** America was the first real experiment with Sowell's constrained vision. This idea that human nature, it is what it is, it's not changing. And government's role is to protect man's natural rights, keep us on track without killing each other, and allow for progress in a slow methodical manner that is more bottom-up than top-down.
- 5.200** People are wired differently. It's nature or it's nurture, or both, I don't know. But the outcome's really clear. We're wired differently. And those differences become the political spectrum that we observe. And they're manifested in the political parties that we've created in order to self-organize politically. So eventually, a sort of political natural selection takes place, and those political parties begin to represent very distinct clustering of policy positions. And they might seem random at first.
- 5.201** Again, it seems strange that opinions on gun control can predict opinions on tax policy. But a closer examination indicates that these issues are indeed related by deeper psychological tendencies and preferences and dispositions. Now, it didn't necessarily happen right away in America. You used to have conservative Democrats and used to have liberal Republicans and all that. And the party positions weren't always as they are now.

- 5.202 But again, just my theory, I do think the current situation was actually inevitable. The sorting of people into the current political camps was eventually going to happen, and it was going to happen for two reasons. One, because of that ideological connective tissue that I've already explained. Second, because we elect individual representatives in winner-takes-all, first-past-the-goal-post-style elections. This encourages, if not demands, a two-party dynamic.
- 5.203 Now, is it possible that we are having an entirely different discussion about political parties in 100 years? Maybe. Suppose it is. The human condition might be so vastly different that an entirely new class of political philosophies emerge. But I don't know. Is 2024 all that different from 1924 or from 1824? It is and it isn't. I mean, like, a lot's changed. The issues have changed or evolved. But the philosophical differences between Woodrow Wilson and Calvin Coolidge are exactly as I describe them in this lecture.
- 5.204 Like, Wilson was an unabashed progressive of the unconstrained vision. He was intent on using government for the good of the cause. Coolidge, the opposite, a firm believer in a constrained government that did its basic functions while allowing society the space to self-govern as our founders intended. So, will the debate in 2124 be all that different? I don't see how it could be. But only time will tell.
- 5.205 I mean, hopefully someone is still downloading these lectures in a hundred years on the Internet. I mean, hopefully there's still an Internet or hopefully there's not. Like, I don't know. Here's the thing, I do know this. America will succeed because there is indeed a healthy balance between the left and the right. And I tell students often, look, look to your heart to identify society's problems and our injustices, but look to your head to find the solutions. That's the ultimate balance.
- 5.206 Because look, in the end, the red and the blue teams, we're playing on the same field. We're wearing the same flag. If we remember that, I think we'll be OK. Thank you.

Lecture 6: A Day in Congress

At a glance — A day in Congress.

- 6.1 OK. Today's lecture, a day in the US Congress, and I even changed for you to imitate a little bit more what I would look like walking through the Halls of Congress. You got to wear a tie on the House floor. It's a rule. You have to wear a jacket, too. There are people who will come up to you politely and tell you to leave, even as a congressman, if you're not dressed correctly. I even got my little cuff links that you buy at the Visitor's Center with the Capitol on them. So I'm really trying hard for you guys here.
- 6.2 A day in Congress. It's kind of like going to college, actually. When you first start out, you go through a lengthy admissions process. It's called an election. Then you get accepted. You get voted in. Then you show up to Washington, D.C. for freshman orientation. Yes, it is actually called freshman orientation. It could be about a week long, maybe longer. It really depends on who's in charge of the House at that time.
- 6.3 You go through many of the same administrative onboardings that you would at any college or big corporation. You get briefings on ethics and how to hire staff to your office. What are your health insurance options? You set up your bank's direct deposit so you can get paid. And then you begin to think about your major or what issues you want to focus on. In college, you choose a major. In Congress, you choose a committee.
- 6.4 This freshman orientation is the only opportunity you really get to have social interactions with your freshman class, especially those on the opposite side of the aisle. There's cocktail hours, there's dinners, there's briefings, and everyone's so excited to change the world. New members trade stories about the drama they endured during their election. They learn about each other's backgrounds. They might even talk about policy issues they want to work on together.
- 6.5 And then you have to choose a dorm room, I mean, an office. So that process is quite the show. You choose your office based on a lottery system within your freshman class. You literally pick out the number, hoping for a good one. And then it's a spectacle of everyone running around between the three different office buildings, inspecting which offices they might want, to rank them, because as soon as your number comes up, you've got to make a decision like that. And you don't know which ones have already been taken. It's a whole thing.
- 6.6 Then you got to start thinking about, where do you want to live? Will you even move to D.C.? It's your job, right? In the years prior to Speaker Newt Gingrich's leadership in the 1990s, it was pretty common for members to just live in D.C., and the schedule was suited for it. It wasn't the constant back and forth that we have now. Members enrolled their kids into the same schools. They got to know one another. Some would suggest that these were the last days of viable bipartisanship. I mean, just think back to the Reagan days.

- 6.7** So, the situation now is really different. Hardly any members really live in Washington, D.C. Maybe if you have young kids, you sort of have to. It's the only way you'll see them. But not that many members have young kids. But the other problem with living in D.C. is that it's politically toxic to do so, because the first thing that happens is some opportunistic opponent files against you in the next election, claiming, "He left the people he represents and he moved to the swamp. He sold out."
- 6.8** So, ironically, you're incurring great political risk by actually moving to the place where you were supposedly elected to work. On weeks we are scheduled to be in session, we all fly into D.C. on a Monday or a Tuesday. It's one or the other. Then we promptly catch a flight out on Thursday or Friday. It's Monday to Thursday, or it's Tuesday to Friday.
- 6.9** While in D.C., some members, some might just sleep in their offices. A lot do, even rich ones. I don't get that. They might sleep on a couch. They might sleep on a pull-out bed that they store in a closet. Keep in mind, there's no showers in any of the offices. There are bathrooms that we have, just for us, but there's no showers. The members who do decide to live in their offices, they shower in the House gym. It's located in the basement of the Longworth office building, which is the middle building.
- 6.10** I don't do this. I do go to the gym. I don't live in my office. It sounds miserable, but I'll tell you what else is miserable, is paying two different rents and two different mortgages on a government salary. A lot of members might stay in hotels while they're in D.C. Some rent an apartment nearby. That's what I did for the first three years. I bought two of everything, so that I wouldn't have to repack every single time I went back and forth.
- 6.11** I got two pairs of black shoes. I got two pairs of brown shoes. Texas. Black boots, brown boots, two pairs. Black suits, two gray suits, two brown suits. Sorry, not two brown suits. Why did I say that? I don't wear brown suits. I have one brown suit. Whatever, you get the point. Brown belts, black. You got to have two of everything. It's an annoyingly costly lifestyle, but it's also, if you do it that way, it allows you to focus on the job, instead of just packing suitcases constantly.
- 6.12** That being said, my entire life is still living out of a suitcase anyway. I just don't know how much worse it would be if I just traveled without a place to stay there. Because look, Congress is not just—I wish it was just as easy as going back and forth between the district and home, but it's not. I get asked all the time, so how much time do you get to spend at home versus D.C.? As if I'm supposed to have an actual number for that, and I really should.
- 6.13** I could tell you what our schedule says, because we get a schedule for the whole year, on when exactly we're going to be in D.C. I haven't really put the numbers to paper, but it's probably 40%. Probably 40% of the time, you have to be in D.C. Now, that does not mean that the 60% of the time you get to be home in your district, because there's so

many other things to do. Being in Congress means constant traveling for things like fundraising, for speaking events, for Congressional Delegations overseas.

- 6.14** I'm on the intelligence committee now. It's a ton of travel. It's a ton of travel overseas. It's awesome. It's very fulfilling. I love it, but a lot of travel overseas. Been to a lot of countries in just the last couple of years. So while your home may indeed be in your district, you don't get to spend a lot of time there, and it's very frustrating.
- 6.15** So, you show up to Congress. Once you get your life sorted out, you start to think—and you never do get your life sorted out, so let's just dispel that—but you start to think about what committees you want to serve on, knowing you're not going to get an "A" committee right away. I'll tell you what that is in a second. It takes a few years to build up to an "A" committee. "A" committees are like Ways and Means, like Energy and Commerce, because they have very wide jurisdiction over a whole lot of important issues, and therefore, industries.
- 6.16** Ways and Means deals with all things tax policy, which affects literally everyone. It also has jurisdiction over trade. So, like NAFTA, the USMCA, that's all from Ways and Means. It also has jurisdiction over really important entitlement programs, like Social Security. Energy and Commerce, that's what I serve on, it covers health care policy, at least for CMS.
- 6.17** So if you want to talk about health care policy regarding corporate health care plans, then you got to go to the Education and Workforce committee. If you want to talk about health savings accounts and how they should be tax deductible, you got to go back to Ways and Means committee. Health care spans literally three different committees. The other subcommittees on Energy and Commerce, the Environmental subcommittee, I'm on that one.
- 6.18** We do environmental regulations, energy policy, technology sectors that include everything from broadband to big tech giants and consumer protection and privacy laws. It's like everything. It oversees a lot of agencies. It oversees agencies like the EPA, the DOE, the FDA, the HHS, and a lot more. But I didn't start in that committee. No freshman starts in that committee. Some really egotistical freshmen think they might start in that committee, but they're wrong. They're wrong every single time.
- 6.19** Now, you might still get some decent committees when you just start out, with some interesting jurisdictions like financial services, transportation infrastructure. These might be good committees because they might fit your district well, and they are possible for a freshman to get on. Some might even get Armed Services committee. It's a bit harder to get on, but I probably could have gotten on it if I really wanted to, just because of my background. I was a Navy SEAL. I'll tell you in a second why I didn't.
- 6.20** I started in the Budget committee and the Homeland Security committee. These are actually pretty typical freshmen committees because their jurisdiction is actually very limited. So the committee you choose, well, it's actually more of an application process,

and I'm going to explain that in a second. I mean, that's based on your personal life experience. It's based on the needs of your district. At least that should be the case.

- 6.21** So, why is it an application process? So, in Congress, we have this thing called the steering committee. And the steering committee has members on it that are regional representatives. Texas has a lot of members, so we actually have two members on the steering committee, and they get a vote. The new freshmen class has a steering committee member. They get a vote. The Speaker has four votes.
- 6.22** Anyway, there's a bunch of members that are on the steering committee. They decide where everyone goes. They decide where everyone goes. They decide who the chairman will be. So if you want to be a chairman of a committee, you've got to do a whole application process, in the sense of building out your arguments. You make really nicely done booklets of why you should be the chairman, and then you present it to the steering committee. It's actually an incredible meritocracy, to be honest.
- 6.23** And we also have term limits, in the Republican side. I am only describing the Republican side. We have term limits, where chairmen cannot serve more than three terms, so that we can actually have some turnover. Democrats do it totally differently. It's very much based on seniority for Democrats. That's how you get your committee, right? You go to steering, you make meetings with steering committee members, and you make sure they know what committee you want and why you deserve to be on it. It's a long process.
- 6.24** And so, why would you want to be on steering committee? Why would you want to be on steering committee? You have to take meetings with every single member. That sounds like a nightmare to me. But that's also why you want to be on steering committee, because you have to take meetings with every single member, and they want something from you. That's why people want to be on steering committee. I don't want to be on steering committee. I feel like there's other ways to have influence.
- 6.25** Anyway, so you choose a committee, and again, it's based on your background, your district, all that. So coming from Houston, Texas, going to the Homeland Security committee, it made a lot of sense. I was focused on border security. It was one of the things I ran on. I was focused on flooding issues. We had just suffered from Hurricane Harvey. Both of these are covered within the Department of Homeland Security. I think agencies like Customs and Border Patrol, FEMA.
- 6.26** The Budget committee is also a good place to start for a freshman because it's an opportunity to learn about a wide variety of issues since everything, theoretically, falls under the moniker "budget". You have a lot of hearings that involve a lot of different subjects. You learn a lot. But it doesn't have any legislative jurisdiction over anything. So it tends to be a holding area for a freshman.
- 6.27** Now, in case you're wondering, the real power of the purse, because you're like, what do you mean the Budget committee doesn't have any power? Well, because the real

power of the purse lies in the Appropriations committee, not the Budget committee. And I'm sorry, but federal budgeting is literally an entire course at Harvard Law School. I took it, and I'm not going to try and cover it here. It's just too detailed.

- 6.28** But if you're wondering why, and I said I told you this, I said I would tell you this, why didn't I choose Armed Services committee? It really matches my background. And it's because, look, my district doesn't, my district doesn't have any bases there. Nobody in my district would really be affected by my work there. Down the road, it took a few years, because this is the hardest committee to get on, but now I serve on the Intelligence committee.
- 6.29** So we oversee, well, the intelligence community, which is the CIA, the DIA, the NSA, and actually a lot. There's the DOE intel. There's a lot of different intelligence apparatuses out there. But it's the most sought-after committee in Congress because, one, it is the only place in Congress that we receive truly classified briefings. There's a lot of classified briefings that sometimes the entire Congress gets. They're never that classified. It's usually top-level stuff that you can probably read in the news.
- 6.30** We get the real stuff. We're the ones who actually hold immense power. This is number two, the reason people want to be on it. We have incredible power, total control over the authorities and budgets of all of our intelligence agencies. On an intel committee, intel, I'll just say the full word, on an intelligence committee, CODEL—so CODEL is Congressional Delegation. When I say CODEL, it means a bunch of congressmen taking a trip overseas.
- 6.31** So on a recent CODEL, we visited our counterparts in the United Kingdom, and their parliament. They have their own version of an intelligence committee, and we ask them the question, "What do you guys do?" And they're like, "Well, we ask questions." Actually, they said, "We ask questions." I'm like, "Yeah, well, so do we. But how do you exert any power over whatever, MI6 and MI5?" And they're like, "We ask questions."
- 6.32** It goes to show how different our governing structures are, the parliament system versus what we call a republic. Very different. In the parliamentary system, it's like winner takes all. Whoever wins, they put in place every cabinet member. They don't call it cabinet. They call it every minister. They put in place everyone, and they are in charge of the budget, too. The parliament doesn't even have power of the purse.
- 6.33** So we're just like, what? And we have all this control over the CIA. So the CIA then, in turn, has a lot of incentive to actually work with us. It's a much healthier relationship. If I want information, I will get it, because they know if they lose that trust, we can defund them. And so, our system, we should just be so thankful for the checks and balances that we have, because even the countries that are closest to us, they don't have them.
- 6.34** OK, back to my freshman year. So, you might be scratching your head when you heard that the Homeland Security committee has no real jurisdiction. What about all the

important things that DHS does? Now, look, there's a lot, but it's still one department in the federal government. Remember how many departments I listed when I listed Energy and Commerce and what we oversee? A ton, right? DHS is just one.

- 6.35** You also have to understand something. Many issues are actually cross-jurisdictional. They span across different committees. When we talk about border security, for instance, there actually isn't that much policy that's made within DHS. This is going to shock you, I know. The real changes to law, to immigration law, those laws are written in the jurisdiction of the Judiciary committee, not the Homeland Security committee.
- 6.36** The kind of thing that would be written in the Homeland Security committee would be more funding for a wall, pay increases for border patrol, stuff like that. But you want to change a law on immigration, like asylum laws or clean up the paroling standards that we currently deal with? Judiciary committee, not Homeland Security. You care about flooding issues? Well, look, FEMA, still big part of that falls under Homeland. That's true. But Army Corps engineers, just as critical to flooding issues.
- 6.37** I care about this, obviously, being from Houston. You care about it, you're from Florida. That falls under the Department of Transportation. That's outside Homeland's jurisdiction. So you want to make changes to the federal flood insurance program? Well, guess what? You need to pass legislation through the Financial Services committee. So are you confused yet? OK, good, me too. It took me years to sort this out.
- 6.38** So how does anything get done? Not easily, that's for sure, and with vast consensus. That's how things get done. Vast consensus is necessary. Is that a good thing, bad thing? I don't know. Sometimes we build select committees to get things done quicker. Most recent example of that was the select committee on China. So because that problem set spans so many jurisdictions, it was a good idea to have one committee with one jurisdiction that could actually just get a bill to the floor.
- 6.39** Now, the other argument for making it hard is, well, it should be hard to make national law that affects literally everyone. So maybe it's a good thing that it's so hard. I don't know. We'll have that debate over and over. So let's now go over how a bill is actually passed. We went over it really briefly before. Now, we're going to tell you how it's really done. The mechanics aren't too complicated, but in practice, it is quite the journey.
- 6.40** So first, a bill is created because I come up with some idea for a new law change. Now, that idea could have come from a number of sources. I'm going to stick with one example that I recently got signed into law. So a few years back, I think this was, god, this was like 2021, maybe, I was having dinner with an old friend, and he was a Marine deployed to Afghanistan in 2010. That was during the very bloody offensive through Marja, which is a dangerous area in Helmand province, Afghanistan.

- 6.41** He saw pretty heavy combat. He suffered serious brain injuries from a roadside bomb while he was in an armored vehicle. The overpressure from those blasts absolutely rocks your brain, and it sucks, and the damage isn't obvious right away. So for many years, he suffered from invisible wounds of PTSD and TBI. He was having trouble talking for a few years. But many years later, we're in 2021, he's doing OK. He's married now. He's trying to start a family. He'd improved a great deal, but still had issues.
- 6.42** I'm over at his house, and he's living near Annapolis now. I noticed he wasn't drinking beer with me, and I thought that was odd. I asked him about it. He went on to tell me about a new psychedelic therapy that he had recently tried and how it completely changed his life after only one session. The drug was called ibogaine. It's like ayahuasca, but it's ibogaine, and it's a very serious hallucinogen. It basically puts you through 12 hours of hell, and then it resets your brain. I've never done it, but that's how people describe it to me.
- 6.43** He told me it saved his marriage, maybe even saved his life. He no longer wanted prescription drugs. He no longer wanted alcohol. It was quite the story. And so I left, and I headed home. Again, I was renting an apartment in D.C. at the time. I get into the elevator, and I was confronted in a nice way by a neighbor who recognized me, and he gave me a literal elevator pitch on the exact same experience with a very similar psychedelic therapy using MDMA, which is Ecstasy.
- 6.44** Now, he told me that he had tried to commit suicide five times, and it was this therapy that just saved his life. It was the reason that he was still a father to his son. And he told me, "You got to look into this." And so I did. I couldn't help but think it was divine intervention, two stories like this would confront me on literally the same night. So I started poking around. I learned that I had more than a few friends from the SEAL teams who had similar experiences.
- 6.45** And I learned about the nonprofits and researchers funding the therapy sessions. And I learned about other promising studies on drugs like MDMA, and they were sponsored by none other than the VA. The first thing you do, when you have a legislative idea, is to write it down. Write it down in as much detail as possible, and then you send it to lawyers. You send it to lawyers and legislative council.
- 6.46** I've never seen these people. I don't even know where they work. Maybe my staff does, but they're amazing. It's their job to turn your idea into legal language that's appropriate for an actual bill. You don't have to use them. Don't get me wrong. Plenty of members just write some random shit down and then introduce their bill, so that they can say they did something and then they tweet about it. But if you're serious about passing your bill into law, you need professional counsel to write it.
- 6.47** The fact that lawyers write each bill is also why they can be so lengthy. And this is why, look, if you're changing current law, what are you doing? You're editing. You're editing current law. And so, when you edit, you have to say things like, "Strike the word 'and'

and replace with 'or'," and things like that, throughout the entire document. It takes up a lot of space in a bill. So you're striking clauses, you're replacing them, you're defining terms, you're adding caveats, because bills are written this way.

- 6.48** I always chuckle a little bit when members say they read every bill or complain that they didn't get enough time to read a certain bill. It's just not true. It's actually pretty difficult to understand a bill by reading it in its original text. Some bills are simple, don't get me wrong, like the one I'm giving you an example on. That was a simple one. You could just read it. But most of them aren't.
- 6.49** We vote on a lot of bills. So, as a congressman, you've got to rely on summaries of bills to understand them because summaries are written by the authors of the bill and the committee staff that manages the bill, and they write them in clear policy language that we all understand. The summary of the bill, if it's done right, it'll also give you background on why the bill was written and what the potential counterarguments to it might be.
- 6.50** All that's pretty important when deciding on how to vote, or deciding maybe you're definitely going to vote for it, but you still want to know the counterarguments because you're going to have to argue about it. That's how it starts. That's how you start writing it.
- 6.51** I had this idea to make the Department of Defense fund human clinical trials on a series of psychedelic drugs for the treatment of PTSD and TBI. Ironically, the one example I'm giving you is about a committee that I'm not even on. We'll get to that in a minute. The language was no more than two pages, actually. This one was actually easy to understand. This wasn't editing current law. So they're not all legal mumbo jumbo. It just depends on what issues you're trying to address and then how many current laws you're trying to change.
- 6.52** So when I first tackled this in 2021, I didn't actually introduce a bill. I introduced an amendment to another bill. Now, since my idea on psychedelic therapy fell under the jurisdiction of the Armed Services committee, it made sense to attach it to that, or so I thought. The Armed Services committee only works on one bill every year. It's called the National Defense Authorization Act. It funds the military, and it guides policy for the military. It's a critical must-pass bill. It is usually one of the only major spending bills that both parties work on together in any good faith, thank god.
- 6.53** Now, because there is only one major bill, probably thousands of pages in length, it becomes an opportunity for members, both on and off the committee, like myself, to effect changes in the Department of Defense. Hundreds upon hundreds of amendments get offered by members. It's an open amendment process. Sometimes it's not. In this case, it always is.
- 6.54** Those amendments range from changing the name of an army base to salary increases for certain sailors to requiring studies on the cost of transgender surgeries on military

readiness. So who goes through all of these amendments? The process, it's essentially the same for every large bill that a lot of members have an interest in amending. If you've ever heard the term "Christmas tree" with respect to legislation, that's what this is. The tree is the big bill, the must-pass bill, like the NDAA. The amendments are all the ornaments that people want to dress it up with.

- 6.55** You have to have a way to filter these amendments. We do this through the Rules committee. I'm just trying to make this as confusing as possible. The Rules committee is a pretty powerful committee, even though no one understands what it does. It's powerful because all legislation, with a few exceptions, all legislation from all committees has to go to the Rules committee before it goes to the floor for a vote.
- 6.56** When it comes to amendments, it's the Rules committee, not the Armed Services committee, that decides whether or not those amendments are in order. To be in order is a bit of a subjective term, and so politics definitely plays a part in this. Deals get made on what amendments are made in order, while other amendments just get lost in the mix. That's why back room politics and relationships are actually so important to lawmaking.
- 6.57** But there's an objective side to this process as well, because a key question as to whether or not an amendment is made in order is whether or not it is germane to the primary bill. Germane means it is thematically related to the underlying bill. So, example, in the case of the NDAA, you can't offer an amendment about immigration policy and have it made in order. It's not germane to the military. You might offer an amendment, though, that clarifies that illegal aliens cannot get a DOD security clearance, but you can offer an amendment that changes asylum laws.
- 6.58** So I offered my amendment that year and the next year, too, actually. Both years, my amendment was made in order, and it was actually voted on on the House floor, successfully. For the NDAA, we vote on dozens, sometimes hundreds, of amendments before we actually vote on the final bill. Those votes can go late into the night because it's done once a year. So we all just have a good time. We vote on all those damn amendments, and they happen fast, every two minutes.
- 6.59** So you're expected to already know what the amendments are and how you want to vote on them. Because they should have been—again, the summaries were out there already. You should already know. You're not figuring it out when you go up to vote. By the time the vote comes, there's no more time for deliberation. It's already happened. If there was time to debate, it was earlier in the day, for hours. And honestly, no one even attends those things.
- 6.60** So the chamber is actually almost always empty during that time. It doesn't matter. We can still watch it, and we generally still know what's going on. It's not like members have no idea what they're voting on. That's where your staff comes in. It's a team effort. So when they say they have no idea what they're voting on, I usually say

members are lying about that, because there are ways to actually figure out what you're voting on.

- 6.61** So, my amendment passed the House floor, and it was included into the NDAA, and it passed the House two years in a row. And yet, my amendment never became law. So why? Well, that's frustrating. As it turns out, the Senate, it just isn't all that interested in all of these quirky amendments offered by even quirkier members of the House. Their process is very different.
- 6.62** They don't do two-minute votes. They only do roll call votes, which means, every vote takes an hour or two, depending on how fast that old Senator can move. The Senate is a slower, more deliberative body, as our founders intended. I don't know if this particular aspect of the Senate is a good one, but it is indeed a thing. It happens. So, in many cases, the Senate and the House will pass different versions of the same bill. This happens pretty often, pretty much every time, with a bill like the NDAA.
- 6.63** But you can't send anything to the White House to be signed unless the exact same bill has passed out of both chambers of Congress. And so, when that happens, you do what's called conference. So you conference the bill, which means, you get a bunch of members from the Senate and the House, and they negotiate which aspects of the bills will be kept and which ones won't.
- 6.64** Now, you feel like you have some say in it if you're part of the conference, but you don't. It's really only like the chairman and the ranking members that do. Everybody else is just on the sidelines. That's what I learned. Now, during that process, almost all of the amendments passed out of the House get eliminated every single year. So this time, I started the process by introducing a standalone bill, just to get it on the record.
- 6.65** Now, as I said before, you must write out your bill first, with the help of legislative council. Then you print it out. You sign the top right corner of the first page. You add another page with your list of co-sponsors, if you have any; you don't need them. Then you sign a third page that references which part of the Constitution gives you the authority for this bill. That's how you introduce a bill.
- 6.66** You gather all your pages up. I like to put them in a manila folder. Then you deliver it to the House clerk, in person, on the House floor. You just hand it to him. You can't hand it to them. That's the rules. You put it in the hopper, which is a briefcase-size basket attached to the side of the desk. I always feel a bit strange placing it there, like I'm about to put something in the mail and lose it. But so far, so good. The clerk takes it, and it eventually gets a number assigned to it. That's how your bill becomes HR 1834, or whatever the number is.
- 6.67** It gets posted online, and then any of you in this classroom can look it up and read the text, and then hope for the best. Thousands of bills are reintroduced every session. When nothing happens with them, they expire at the end of every two-year session. So you have to reintroduce your bill every session if you want it to be current. So I

introduced that bill, standalone bill, not an amendment. And even though the language in my bill is now in law, my bill was never passed and never went through committee.

- 6.68** So how the hell does this happen? All right. That's because, again, the Armed Services committee only passes one bill, the NDAA. So I had a different strategy this time. It was to first introduce the bill, draw some attention to it, draw some media support to it, socialize the concept with other members of the committee, find a member on the committee to champion the language, and get it into the base text of the NDAA.
- 6.69** This is an important distinction, base text versus amendment text, because I learned that amendments get ignored during the conference with the Senate. I learned it two years in a row. But if the text is already in the base bill, it has a higher chance of survival. So I got my friend, a fellow Navy SEAL turned congressman, Morgan Luttrell—you might recognize the last name, twin brother of Marcus Luttrell—and I asked him to offer my language as an amendment, still an amendment, but an amendment to the base bill.
- 6.70** So this is meant to be confusing, it seems like. So, yeah, it's an amendment, but it's an amendment to the base text inside the committee markup process. So once it's passed out of the committee, it's just the base text. So after a few arguments with committee staff and the whole story behind that, we got the language in there. And then we started making relevant phone calls to Senate offices.
- 6.71** We wanted to make sure that the leaders of the conference wouldn't be taken by surprise by what was indeed a little edgy concept, psychedelics. So I made sure they were educated on the science and the potential benefits. I held press conferences on the steps of the Capitol with veterans who had gone through the therapy. I even had a press conference with Matt Gaetz and AOC. Yeah, we had quite the team for psychedelics.
- 6.72** And by the end, we were successful in getting the language in the final bill and signed into law by the President. That's how the sausage gets made. At least, it's one way it gets made. It's not enough to have a good idea. You have to know what the right legislative path is for a particular bill. You have to know who the power brokers are in each committee, who you need to talk to behind the scenes to make sure your bill gets some attention.
- 6.73** Prior to all that, you might want to actually build some relationships with these people. You take them to dinner, you help them with their fundraising, maybe champion a cause that they care about. The same goes for the staff. You want your staff to be building relationships with committee staff, so that when the time comes, you know who to talk to, and they know who to talk to, and you know what kind of beer they like. That's the inside game. It's an inside game and an outside game.
- 6.74** You want to get your issue some attention also, either through news, media, outside advocacy groups, whatever it is. You want to create buzz. You want to gather allies to

help promote your bill and encourage other members to hop on the bandwagon. And look, that's just one example. There's a more traditional route for a bill to become a law. We have to go over that because it's like the cartoon, I'm Just a Bill, describes it. Maybe you've seen it. It's pretty old. It's on YouTube.

- 6.75** So, you introduce your bill, and the House Parliamentarian assigns the bill to one or more committees of Jurisdiction. This is the annoying part, right? One or more, and it's usually more. The Parliamentarian is a pretty important role. They are experts in the field of legislating. It's a really important role. They assign the bill to a committee, and then it's up to the chairman of that committee whether or not the bill even gets considered.
- 6.76** Your bill could die right then and there, as many do. I mean, the Speaker could override that. The Speaker can do what the Speaker wants, with the House floor. So that's important to know, right? I said Rules committee has all this power before bringing anything to the floor. But in the end, the Speaker can do what the Speaker wants. You should know that. But most of the time, the Speaker doesn't want to have an adversarial relationship with the chairman. Everybody wants to get along.
- 6.77** So your bill could still die right then and there because the chairman just doesn't like it. But you've socialized your idea properly, and it also happens to be a really good one because you're a super smart congressman. Now, maybe the chairman will consider it. Now, if that's the case, they might include the bill in a long list of other bills to be considered during a committee hearing.
- 6.78** So, what's a committee hearing? That just means that the witnesses for that particular hearing will be notified that they may be asked about the merits of the bills on this particular list. It's considered a first step in the process that we might refer to as regular order legislating. Let's say your bill is a proposal to double Medicare benefits for 72-year-olds. Not 73-year-olds, not 71-year-olds, just 72-year-olds. It's a weird bill. Let's just go with it. So you drop it in the hopper.
- 6.79** The parliamentarian assigns that bill to the Energy and Commerce committee, because on Energy and Commerce, we have jurisdiction over Medicare. Turns out, the chairman loves this bill, and so includes it in the next hearing on Medicare. The title of that hearing is probably something generic, like "Improving Medicare for our seniors," something like that. The witnesses, they could be outside experts or officials from CMS, which is the Centers for Medicare and Medicaid Services, or maybe even the HHS Secretary himself. Who knows?
- 6.80** The important part in this process is that we actually have the opportunity to talk about the bill during a hearing and get it on the record. That's an important box to check if indeed the goal is to follow what we would call regular order. Now, since you happen to be on, like I am, happen to be on the Energy and Commerce committee, you get a

chance to mention your bill during your five minutes of allotted time. That's how hearings work.

- 6.81** These witnesses, they have to sit for hours, while members take five-minute turns to ask questions or just yell and do whatever. I mean, you've seen TV. You can do whatever you want with your five minutes. Now, in a large committee with 52 members, this takes hours. You got to feel sorry for these witnesses sometimes. Now, lucky for you, the conclusion of the hearing was that people love this idea of giving 72-year-olds more Medicare benefits. Nobody likes the idea of 71-year-olds getting them. 73? Hell no. 72, magic number. I don't know why.
- 6.82** So the next step. So you've gotten that far, right? The next step is a markup. A markup is a committee process where the chairman can put forth one or more bills to be amended, debated, and ultimately voted on. This is how something gets finally passed out of a committee. Now, I've seen anywhere from five to 50 bills being noticed for markup. There's not really a rule on how many we can mark up in a single setting, but I'll just say, there's only 24 hours in a day, so that kind of influences the number a little bit.
- 6.83** So your bill, it comes up for debate. Look, some bills, every member wants to speak on. They're very controversial. Other bills, maybe the entire committee agrees on it already. They just go through quick. This one? Well, it's hypothetical. I don't know. Maybe we're having a debate, maybe we're not. But the point is, you can. And so you recognize to speak about your bill. You get to see how great of an idea it is, and you get a chance to persuade your fellow committee members to vote for it.
- 6.84** Maybe someone might offer an amendment to it. That happens. It's possible. And then the committee has to vote on that amendment to your bill. And if that amendment passes, well, it becomes part of your bill, whether you like it or not. That's the markup. That's why you're marking up the bill. Then the big moment comes, big moment to vote on your bill. If it passes with the majority, it is deemed to be reported successfully out of committee.
- 6.85** But you were smart. You were smart. You asked a group of one hundred 72-year-olds to pack the committee room and show their support. And it passes. So that's the major next box to check. It has now been reported successfully out of committee, but you are not even close to finished. So the bill still has to make it to the House floor for a vote. Who decides that?
- 6.86** Well, as I said before, the Rules committee has a great degree of control over that. They can tank support for a bill. But the reality is, it's up to the Speaker of the House whether or not your bill is going to get floor time. I mean, leadership, the Speaker, the leader, they're the ones who decide what even goes through Rules committee. And that's important to note. It's not like the Rules chairman just decides, from all of these

bills passed out of all of these committees, which ones they take. That's not how it works at all. That's up to the Speaker.

6.87 But then the people on the Rules committee still have the power to sink a bill. So that's how that dynamic works. And this depends on a lot of factors, like whether the Speaker is going to put your bill up for a vote. How many legislative days do we even have left in the session? Is there time for this? Is there a more opportune time to try and pass a bill like this? Like, does the Speaker even like the bill? Does he even like you? Are there just too many other legislative priorities right now?

6.88 This is a messy and obscure process. There's a lot of back room deals, smoke-filled rooms. But you prepared for all of this. You've been socializing the bill with leadership and with staff, and you've been advocating those outside groups. Again, you've got 72-year-olds to be in your committee room. So you're hoping that you're going to get a chance to vote on the bill. Within a couple of months, you do. It passes, and 72-year-old Medicare recipients are rejoicing.

6.89 And then the Senate ignores it. So try again next year. That's usually what happens. But maybe, maybe if you're a good legislator and if you've done your homework, you would have already found a Senator to introduce what's called a Senate companion, which is just a mirror image of your bill on the Senate side. And they'll ask us to do the same. They'll have a bill. They'll say, "Hey, Dan, do you want to introduce the House companion?" So I'm just copying their bill exactly, except mine's HR and theirs is S.

6.90 So then the Senate goes through the same process that you did in the House, although their committees are completely different because we try to make this as confusing as possible for you to understand. Now, if all goes well, you end up with both chambers voting favorably on your bill, and you send it to the White House.

6.91 But what if the President is—not what if. The President is 80 years old and resents the idea that only 72-year-olds are benefiting from better Medicare benefits? He's like, what? He might veto it. But the President can't ignore your bill like the Senate can. He has to either sign it or veto every bill that comes to his desk.

6.92 If he does ignore it, the bill becomes law after 10 legislative days, although that only works if Congress is in session for those 10 days. If we adjourn, the President takes no action. It becomes a pocket veto, which just cancels it out, means the Congress has to resubmit it. If he really vetoes it, it actually requires a two-third majority vote from the House and the Senate. OK?

6.93 Veto overrides have actually occurred only 112 times in history, and very few from recent history. Andrew Johnson had the most of his vetoes overridden, 15. Gerald Ford was the last recent President to have a pretty high number of veto overrides, 12. Lucky for you, though, the President, he has a 72-year-old brother, so he actually signed your bill. Then you get a copy of the bill signed by the President. You frame it, and you put it in your office, and you're finally a real lawmaker.

- 6.94** Now, make no mistake, this is a long, arduous process. It's often said that 90% of the work in Congress is done by 10% of the members, and I think that's probably right. That's a typical thing you hear in political science courses. Even if you're a hard worker and you've got a good head on your shoulders, you just may not have enough influence or stature to get your bills through. It takes time to get into the positions that you need to be in to actually have influence to change the things that you want to change.
- 6.95** But there's a number of other ways Congress can effect policy. It's not just legislating. I would say at least a dozen times a day, some letter is drafted by a group of members, and it's addressed to someone in the administration. It's demanding answers, or it's asking questions, or requesting a reconsideration of a policy proposal, something like that. Now, those letters can be ignored, of course. I mean, the system is designed with checks and balances. They don't have to even read them. Letters only go so far. If you want to make real change, you got to legislate.
- 6.96** But sometimes these letters can have an effect, especially if the letters are reasonable, bipartisan, and they've been signed by a considerable number of influential members. Sometimes all you can do as a congressman is just use your status to advocate for issues you care about. This is especially true when you're in the minority. I mean, after all, look, you can push legislation successfully. You still have to engage in a degree of public persuasion.
- 6.97** And so, we all have to do this. I do this by posting on social media. I go on news interviews. I record my own podcast. I speak at public events. That's enough to take in right now because we're almost at the hour and there's a lot more to go into on our tour through Congress. In part two of this tour, we're going to go into what the real job of a congressman is. We're going to go into what the personality types of congressmen are. You're going to enjoy that one. And then we're going to talk about what a typical day is. We'll see you then. All right.
- 6.98** The Department of Government Efficiency has been proposed, and I was wondering, in your opinion, if this has any chance of having an effect.
- 6.99** Yeah. Same question was asked. I don't think you were here yesterday. It's a good question, and the real answer is, I don't know. Look, everybody who just entered into government, whether they're elected or unelected, has the same notions of reality that are quickly dispelled by reality. It does have a possibility of doing good things if it's focused on the right things. For instance, what it should be focused on is duplicity and redundancy among government agencies. There's probably a lot of that.
- 6.100** God, I don't even know how welfare programs we have. It's wild. Things like that, if it focuses on that, you could maybe make some good strides. Elon Musk, coming from a business background, he'll have a really good understanding of what regulations just make sense for businesses and which ones don't. Maybe make some headway there.

It's unclear what that mission is going to be. But this idea that it's just going to completely drain the swamp is a little bit wishful thinking.

- 6.101** I'll give you some things people think about where there's a little bit more to the story. Take the headline, "DOD failed an audit for the seventh time" or something. And it comes up with all these numbers about waste, fraud, and abuse. And look, there's definitely some of that. There's got to be, right? It's the massive bureaucracy. Its budget's like \$850 billion. Now, just because you fail an audit doesn't mean it's all just corrupt. It means it's extremely difficult, in that large of a bureaucracy, to properly account for where everything went.
- 6.102** That doesn't mean corruption necessarily. It could. It usually just means incompetence, and also it's just scale. And so they're quickly going to find that some of these typical talking points—here's another one. Another one is, "We've been funding programs or offices that haven't been authorized in five, 10 years." Because oftentimes, you'll authorize a new program from the authorizing committee, which is a committee like, say, Energy and Commerce or Armed Services.
- 6.103** So, I authorized that study on psychedelics. But Appropriations committee had to actually put the \$10 million toward it. Otherwise, it would be worthless. That's why Appropriations has so much power. And so, every year, the Appropriations committee still gives money, appropriates money, to a lot of these programs that have been authorized in the past but actually expired. And so, there's this argument that it's illegal because they're no longer authorized. And I'm hearing that a lot from the wings.
- 6.104** But the thing is, is that really true? Because we're voting on this appropriations bill. We all know what we're voting on. So implicitly, we're authorizing it. Implicitly, that's what the Congress is doing. So I'm not really sure I agree with that notion. There's so much, like, I think, easy buttons that people want to press, and congressmen included want to press them or at least pretend like they agree with pressing them; they know better most of the time. They're just lying to you.
- 6.105** And I think if this is staffed up by complete outsiders, they're going to have to spend their entire time, their entire four years, just trying to learn how it works. That's the hard part. It doesn't mean they won't be successful. If anyone could do it, it's Elon Musk. We'll see.
- 6.106** Going back to our discussion about limiting principles with regards to things like RFK Jr's ideas, where do you think—is there room for things that might have a market failure, if we're talking about toxins in the food? And we might say, as a conservative, that the market will take care of that eventually. People will adjust. Do you think there's room for government intervention in a place like that?
- 6.107** There's already a ton of government intervention. Like, a ton, right? I mean, the FDA is a pretty massive, massive organization that, in my opinion, actually puts too much scrutiny on a lot of things, to the point where we can't get really normal therapies and

drugs and devices approved quickly enough. Toxins in food, it depends. We need to take each issue on its own merits. That's how we should be legislating that.

- 6.108** Obviously, we shouldn't have what we would consider toxins in food, but that's a scientific question, and it depends on what we're talking about. I don't know yet. I'm on the committee that's going to deal with it. I mean, your question gets at the—remember, we did a class discussion on sugary soda. So that comes from a real case study. I think it was in New York. They taxed soda. There's arguments on both sides of that, right?
- 6.109** We're trying to stop people from drinking sugary soda that's giving them type 2 diabetes. But also, can't we just tell them not to? It's a free country, and they're still buying it anyway, so now it just becomes this tax on the poor because they're the ones who're buying it. All the rich people know to follow different nutritional standards. I don't know what the right answer is sometimes.
- 6.110** On those kind of questions, especially with your health, I can argue it both ways. I can argue it both ways. But still, I have to fall back on just the hilarious comment where it's like, "Hey, government, why am I so fat? Do something about it." Kind of answers your question. Exercise and eat right. It's not hard. All right, let's go.
- 6.111** Going back to the topic around civic engagement earlier, we spoke about low voter participation rates. I think you can translate that into lack of interest, maybe. But when we think about how we go about promoting that or changing that dynamic, a quote that comes to mind is, "Hard times create—"
- 6.112** I know the quote. Yeah. What is it? Hard times create—
- 6.113** Hard times create good men—
- 6.114** Hard men create good times. Good times create weak men. Weak men create hard times.
- 6.115** Correct. Exactly. Taking one extreme example, perhaps, of where, in Israel, for example, you have mandatory service in the military. Is some civic responsibility or mandatory service, maybe not at a military level, a possible opportunity?
- 6.116** Yeah, that question is discussed more than you think in Congress, this idea of universal required service and not necessarily military service. It's not like Israel. We don't have the capacity to put every young person through our military. It would overwhelm them. But there's other ways to serve. I don't know. There's plenty, like Peace Corps. What the Democrats want to do is create this climate corps. I don't know what they're going to do. Dig ditches or something, I don't know. It's so weird and annoying.
- 6.117** But I don't hate the idea, I'll tell you that. I don't hate the idea. I just get bogged down in the details really quickly. How would you even do it? And to what agencies? And to what nonprofits? And again, it goes back to this really strong sense of personal freedom in America. There's a lot of young people that have amazing opportunities, and they're

like, "Wait, can't do it. You got to go in the Peace Corps." "I don't want to fucking go in the Peace Corps. I've got this opportunity. I'm an inventor."

- 6.118** There's high school kids doing amazing things. Why would we stop them from doing that? And then the question is, will it bring us together? I don't know. I just don't know. I do know it's logistically so difficult for a large country. And I don't even know if it'll have the effect that we want it to. I don't know.
- 6.119** Earlier, when you were talking about social media and people hiding behind the keyboards and doing anonymous posting and things like that and how it can make it difficult to find the credibility, but you also talked about the Federalist Papers and how they were also written and produced anonymously.
- 6.120** I knew somebody was going to ask that.
- 6.121** Do you see a difference? Is there a way to be—because you see a lot of the time people talking about, well, if you don't post it anonymously, then you have scrutiny that could lead certain people into danger and other things. So how do you rectify that?
- 6.122** Yeah. I came upon that same thought as I was writing these lectures. I was like, hmm. Anyway, you're right. But also, I think there's a pretty big difference. I mean, you got to keep the time in mind. These were the guys who put their names to the Declaration of Independence. It was no secret that the Federalists were James Madison, Hamilton, John Jay. It was no secret. It was just unclear which one of them was writing that op-ed.
- 6.123** I'm not that good of a historian, I guess. I don't know why they chose to be anonymous. I think because they wanted the arguments to stand alone on their merits, not be associated with the personality of the author. That would be my guess. I don't know that for sure, but I still think it's apples and oranges compared to what I personally deal with today—people who troll for the sake of trolling because their life is so meaningless. And that's a very different thing from what those guys were trying to do with those Federalist Papers.
- 6.124** So, yeah, I mean, I get what you're saying, but also, no. The trolls today, they do it for fun. They do it to create chaos. They're not trying to build a good republic. Intent matters. Intent matters, I think. And these guys, again, they weren't anonymous. They were the most famous people of the time. So I might say that.
- 6.125** How has political sentiment affected the why of you and your comrades in the military, if at all?
- 6.126** Well, it shouldn't. I'm going to let you in on a little secret. If you want to be a Navy SEAL, it's because you want to go into combat. It's not because of politics. If there's any other reason that somebody is going through BUD/S, and their answer to me is anything other than, "I just want to be in combat with my boys," I don't want them on my team if they don't answer that way. That's the only correct answer.

- 6.127** So politics has nothing to do with it. You want to be a SEAL because you got a fire that was ignited early on somehow, some way. I'll tell you what, most SEALs have wanted to be a SEAL, just like me, since they were a kid, and they just never gave up on the dream. They never had a plan B. We have plan Bs in a sense, but the way I mean that is, like, plan B is your internal option to quit. That's what I mean by plan B.
- 6.128** You will not make it through BUD/S if you have a plan B. If you're like, "Look, man, I'm going to give this my all. I'm going to give this 110%. I mean, if it doesn't work out, it doesn't work out," he's not going to make it. I know he's not going to make it. The guy who's going to make it is the guy who's like, I mean, "I'll die or I'll make it. That's my choices." And those are your damn choices. And that's how you become a SEAL.
- 6.129** So, we haven't had the problems in a lot of these elite units with recruiting the way I think your more regular military has. And to the extent that we do, I'll tell you why. It's because we don't have a war to fight. I think there's a lot of young men out there who are just like, "I don't want to just go train." They actually look into it. I still think they should do it. Just go do it. But I get it. Your deployments are going to be boring. They're not going to be like my deployments. Despite losing an eye and losing friends, deployments were the best, best time of my life.
- 6.130** You have to be a little bit of a sociopath to understand that. But guess what? You need those kind of warriors to defend you. And those are the people I want in the military. But to expand on your question, because I think what you might be getting at is, there's a lot of—because I get asked this question a lot by parents. They're like, "Should I send my kid to the military? Is it too woke?" That's where the politics comes in. And I'm like, "No. I mean, you should still send your kid to the military because it's still an awesome place."
- 6.131** And yes, there's always going to be some idiots that are doing some stupid things at their command that are the opposite of making it a lethal war-fighting capability. And that's especially true in the last few years. But it's few and far between. It's still a good place to be, and it's going to set you up for success. So, I still believe in our military.

Lecture 7: Serving the People

At a glance — Serving the people.

- 7.1 OK, so this is, this is part two of the same lecture, right? A day in the modern Congress. So today we're going to talk about the job of a congressman. And I'm going to describe our job in three categories.
- 7.2 One, you vote on legislation, OK, so that's the most obvious one. Your district elects you so that there's one vote cast for or against every single bill that comes to the floor. Second, your job is to communicate with constituents, with the public. And third, you're basically a customer service agent for the federal government.
- 7.3 So, casting votes on bills, I mean, that's like the, that's the most basic of functions. It's the most minimal of duties. And, and it's also one you really can't hide from. If you get elected— and in theory, you could do this—if you get elected, you could take a two-year vacation. You really could. The only reason anyone would even know about it is because your voting history would be blank.
- 7.4 And if you want to do more than just cast votes, and luckily most members do, then your job is to actually draft legislation. Now, of course, there's a good chance that you'd get fired by your voters if your voting record was a total blank slate. So nobody actually takes a two-year vacation. If you want to do more than just cast votes, and luckily most members actually do want to do more than that, well, then your job is to draft proposals for legislation. And then you got to muscle your way through the process that we went over yesterday.
- 7.5 OK, so implicit in that duty is meeting with constituents. You meet with stakeholders, you meet with interest groups, you meet with outside experts. You're doing your best to understand their niche issues. Now there's an endless supply of these meetings. Everybody wants to meet with you, so you got to manage them to the best of your ability.
- 7.6 But if you're in the minority party, the truth is, you aren't doing as much legislating as you would like. In the majority, well, you've got more of a shot at making a difference. But even then, your position matters quite a bit. So, if you've been around long enough and you're in a position of leadership, like a, like a ranking member or a chairman, just to be clear, a ranking member just means you're at the top of the committee, but you're in the minority. A chairman means you're in the majority, so you're the chairman; you're actually in charge.
- 7.7 So if you're in one of those positions, you might actually find yourself with some ability to negotiate a deal here or there. But most members are not in that position. So what do you do instead? You talk. Lots of talking. Politicians like to talk. You advocate publicly for the issues you care about, and then you also criticize the decisions of the

other side, hoping that, come election season, voters are more persuaded to give your party more power to implement some of the issues that you've been beating the drum about.

- 7.8** So you see a whole slew of tools to do that, from speeches on the House floor to news interviews to social media. Each office is also allowed a budget for what's called franking. Franking is an official communication with your constituents. It's either via regular mail or email. Now, there's actually strict rules around franking. You can talk about policy, you can talk about legislation. You usually are talking about what kind of legislation that you have passed and that you are championing. You're telling your constituents what you're doing.
- 7.9** OK, there's nothing wrong with that. That's your job. But what you can absolutely not do is talk about your election. You can't advocate for your own reelection. You cannot talk about the opponents in your election. Now you can also use your office budget to sponsor events, events like a town hall or other policy-related events. So we talked about town halls and meet-and-greets and all that, but we can do policy events, too, and those are really cool.
- 7.10** So, for instance, every year I do what's called a health care innovation summit. This is one of my favorite things I do, and I bring in entrepreneurs in the health care space and interview them on stage, kind of like a TED Talk, but an interview. And I'm interviewing them about, like, a new therapy or a new device, a new treatment. And it's open to the public. Anybody can come. And it's nonpartisan. It's a fun, nonpartisan, educational way that we can inform and engage with our constituents.
- 7.11** The last part of our job, and probably the least talked about, is our job as a customer service agent for the federal government. So back in your district office, meaning for me, back in the Houston area, you'll hire a few people called caseworkers. They take calls daily from constituents and they hear about their problems with the federal government. It's not a complaint line, OK? It's not. At least it's not supposed to be. We put those calls to the interns.
- 7.12** They are the ones who take the notes about how I've sold out my country or I'm a crooked career politician or whatever else the caller comes up with. No, the caseworkers are dealing with real problems. They're dealing with a veteran trying to fix their benefits at the VA. They're dealing with a flood victim trying to get an answer from FEMA. Or they're dealing with a poor planner who didn't realize their passport expired and they need one expedited for their upcoming trip to Cancun.
- 7.13** That actually happens a lot. But you have no idea how many constituents are super thankful that our office got them their passport when they needed it. So you know what? Public service. Now, most members engage in all of these duties with fervor. Some don't. Again, in theory, you don't have to do any of this stuff. You don't have to

do any travel. You don't have to do any of those CODELs. You don't have to even hire anybody.

- 7.14** You could take a two-year vacation. I mean, really, you could. You have no boss to report to, except the voters. They're your boss. Now if you take that two-year vacation, you're probably going to lose your election because your bosses, the people, well, they're going to fire you.
- 7.15** There is one other way to get fired. And you can get fired if two-thirds of the members of the House vote to expel you. This happened pretty recently, with George Santos. This practice has usually been reserved for pretty extreme cases of wrongdoing, but George Santos had some pretty extreme cases. But in theory, you could expel a member for any reason at all. I mean, maybe they smell bad. Maybe they refuse to use the right parking spots. That annoys a lot of people.
- 7.16** The Congress is not a court of law. It's under no obligation to act with the same robust evidentiary standards as a court. Expelling members or even impeaching a President is largely a political act and with only vague guidelines outlined in the Constitution. Now this was actually by design. The courts have their place, with due process and requirements for compelling evidence to be presented in a formal court setting.
- 7.17** But the procedures in Congress are designed around the principle of checks and balances, which is why you might see what you might consider frivolous reasons for impeachment that would not necessarily hold up in the court of law. Is that OK? That the right thing to do? I don't know. You tell me.
- 7.18** So there was a lot of debate about presidential impeachment in the years leading up to the ratification of the Constitution. Should this be a strictly judicial process to be decided by the Supreme Court? I mean, maybe, at first glance, but doesn't the President appoint those judges? Can they be impartial? Would the Senate be a better body for that kind of judgment, even accounting for the obvious and potential politicization?
- 7.19** So they wrestled with these questions, and we still do today. I mean, they wrestled with what constitutes high crimes and misdemeanors exactly. There's not actually a good definition for these terms. So scholars have forever debated their meaning. I mean, many have said high crimes is not necessarily referring to, like, a really bad law being violated, but an action that is bad for the nation, which is an inherently subjective thing to say.
- 7.20** But it has to be bad enough to get the House to vote on articles of impeachment, and for two-thirds of the Senate to find the accused guilty. So these actions are indeed political. That's OK. Politics is the manifestation of public opinion, which is an important part of democracy. So the impeachment process, in my view, is a political process, and it's essential to our notion of checks and balances.

- 7.21 So, Hamilton seemed to agree. So I think I'm in good company here. So in Federalist 65, Hamilton wrote, "A well-constituted court for the trial of impeachments is an object not more to be desired than difficult to be obtained in a government wholly elective." You really just do have to appreciate how they write back then.
- 7.22 "The subjects of its jurisdiction are those offenses which proceed from the misconduct of public men or, in other words, from the abuse or violation of some public trust. They are of a nature which may with peculiar propriety be denominated political, as they relate chiefly to injuries done immediately to the society itself."
- 7.23 OK, so he's acknowledging that impeachments can be political. Now he then wrestles with the question of who best to arbitrate said impeachment. He says, "The prosecution of them, for this reason, will seldom fail to agitate the passions of the whole community, and it divide it into parties more or less friendly or inimical to the accused. In many cases, it will connect itself with pre-existing factions.
- 7.24 "It will enlist all of their animosities, partialities, influence, and interest on one side or the other; and in such cases, there will always be the greatest danger that the decision will be regulated more by the comparative strength of parties, than by the real demonstrations of innocence or guilt."
- 7.25 He's kind of, like, counterarguing against himself here. He knew that politics would play a role, and he also knew there just wasn't an easy way around that, except to ensure that the process would be very, very difficult. And so I would point out the following. It's not exactly easy to succeed in making what one might believe is a frivolous or a political impeachment. And so while it's, it's certainly possible, it remains extremely rare and extremely unlikely.
- 7.26 President Trump was impeached twice, never convicted by the Senate. The House recently voted to impeach Secretary of Homeland Security Alejandro Mayorkas. Senate never even glanced at it. So both sides will argue that each of these impeachment cases was political. Now my response to that is, OK, yeah, so what?
- 7.27 That's what checks and balances means. It means the ability to rebalance in the rare instance of overwhelming public support. And it has to be pretty overwhelming for the Senate to convict with a two-thirds majority. And you might also consider this. When it comes to real crimes, we already have an entire third branch of government. It's called the judicial branch.
- 7.28 That's where the courts are. That's where you provide evidence. That's where you convict people. That's why the impeachment process is indeed political and allowed to be political and actually preferred to be political. It has to come from the people. It's the people's last resort. That's what it is. OK, so let's talk now, as I promised, about the types of members. This is where things get interesting.

- 7.29 There's a lot of types of members of Congress. There's many different ideas as to what the purpose of a congressman is. And there's also plenty of political science literature on the subject as well, but I'll just give you my take. Now, the most commonly taught categories of representation are these two, trustees and delegates.
- 7.30 A trustee is entrusted with the decision-making power on behalf of their constituents. It's understood that the constituency can't collectively make decisions about every niche subject in Congress, and so they entrust their representative to do that for them.
- 7.31 Now the whole point of the election process is for voters to get a feel for what kind of decisions that representative might actually make. They might ask questions like, well, "How do they approach problems? What experiences inform their stances? How are they qualified? Are they long-term thinkers, short-term thinkers? Are they just telling me what I want to hear? Are they just going to go along with the party line or are they going to occasionally veer from that?" You'll pick up on those kind of things during an election, or at least you hope you will.
- 7.32 Now, the delegate, just a mouthpiece. A delegate isn't really supposed to make decisions based on their best judgment, but instead upon the wishes of the people that they represent. Now you might imagine a delegate taking a poll on every single vote that we take in Congress, and then voting accordingly.
- 7.33 Now, of course there's some pretty obvious problems with that. First of all, I don't know how hundreds of thousands of voters can stop what they're doing every day, study a bill, and then cast their vote in a poll. Like, I don't care how good technology gets. That's just, this is not plausible. This is not a feasible option.
- 7.34 Furthermore, a system like that would be massively influenced by interest groups, knowing that they can affect public opinion with targeted ads, with messaging. Now that happens already, of course, but it would happen times a thousand if you had this make-believe environment where you literally took polls from your district before every single vote.
- 7.35 So, I consider myself a trustee representative. I told people who I was when I ran for Congress, and I continue to tell them every single day. I make my opinions known. I explain what my governing philosophy is, and you can take it or leave it. Now, it's hard to find anyone that you actually agree with 100% of the time. But if you find yourself disagreeing with me over 50% of the time, you might want to vote for somebody else. That's OK. That's democracy.
- 7.36 But every member is a bit of a mix of a trustee and delegate. That's the truth. There are some issues that I vote upon strictly because of the interests of my district. But at the same time, you know, most of those interests, they actually line up pretty well with my own personal philosophy. So I don't really have any contradictions to speak of.

- 7.37 There's other times where I just don't have that strong of opinion on a matter. That's rare, but it does happen. And so you might, you know, might go back to your district and just kind of see what people are thinking. On contentious votes, now there's a number of factors that I might consider, and this goes for all congressmen. This is sort of how, this is how we analyze votes. So I'm going to give you an example.
- 7.38 Let's take the example of the debt ceiling increase of 2023. Now this is always a contentious vote for Republicans, especially Republicans, because you know, we're the party of fiscal responsibility. We can't vote to increase the debt ceiling. So the base of the party and the political entertainment industry that riles them up are by, by default, they're always against a debt ceiling increase, every single time. If you poll them, they won't give it a second thought. They'll just say, "No. Vote no. We're against it."
- 7.39 I'm not talking about every Republican. I'm just talking about the hyper-passionate base that's made up of activists, radio talk show hosts, social media influencers, you know, anyone who generally imbibes partisan news all day long. They're going to say no. I know that. They're always going to say no to that. They're going to say no to budgets. They're going to say no to a lot.
- 7.40 So, here's what I do. I start to ask my staff, OK, how many calls are we getting about this? Who is calling in? And are they from the district? That's another thing that matters. Or are they just outside groups that have, that have acted, because this happens a lot. Groups will activate a lot of members throughout the country, and they'll say, "Call the, call your representative's number." And then we just get flooded with calls, but they're not even from our district.
- 7.41 And then I ask them to assess online media activity. Like, who's writing about this? Who's talking about this? Let's see how much the public is really caring about it. And then we'll maybe call local community leaders. Who's talking about it back home? Let's get their assessment. Now, in this particular case, when it regards the debt ceiling, I'm not doing all of that analysis to help, to help inform me how I should vote, yes or no.
- 7.42 This is the debt ceiling, so I already know what the right choice is. I have to vote yes. Because if I vote no and it actually, and it actually fails, we get economic collapse. That's actually what happens if you don't raise the debt ceiling. So I'm doing this political analysis in this case to gauge whether or not I'm going to be facing a political firestorm when I get home, and I need to prepare for that.
- 7.43 On other votes, where I just personally don't have a strong conviction, it's possible, I may indeed do that same analysis. But to gauge how I actually vote, again that's kind of rare. But many members are indeed of the delegate mindset. And so they default to no, not because they think they should default on our debt. Right. They're hitting no, but they're hoping it passes. They know better. They're not that stupid. Some are. Most aren't. They know better.

- 7.44 They know the economy would crash. They know that defaulting on our debt actually costs us more money because interest rates skyrocket. They know all of this, and yet they still vote no. This is the delegate mindset. They look at what the political entertainment industry is saying and they follow along with the script.
- 7.45 Members like this, and there's too many of them, I don't think they take responsibility for their vote. That's my opinion. They see their vote, like, as a virtue signal to the public. I don't. I think it should be a definitive yes or no decision that you're making. It's irresponsible to just see it as a virtue signal. I try to see my vote as a deciding vote. I try to pretend like my vote is the one vote. I try to pretend like it all rests on my shoulders.
- 7.46 This mindset forces you to do the hard work of weighing the pros and cons of each vote, because you don't get to press a button called perfect. There's yes and there's no. The yes one is green, the red one is no. It's really, really obvious. There's a third button. It's called present. But, like, no one gets any respect for voting present. I mean, it's like ordering non-alcoholic beer at a party. I mean, don't trust that guy.
- 7.47 As you're probably aware, there's quite a few members from each side of the aisle that self-label as anti-establishment hardliners, purists, whatever. They always vote against the big important stuff. Military funding? Nope. Debt ceiling increase? No. Continuing resolution to keep the government funded and stop it from shutting down? No. Renew farmers' crop insurance, keep American agriculture afloat? Nope.
- 7.48 Here's the thing about legislating and being in Congress, and especially in a Congress where, let's be honest, there's a diffusion of responsibility, right? Because there's so many of us, 435. You can find a problem with every single bill that you vote on. It's the easiest thing in the world to do. Now when they can't find anything in it that they don't like, they'll find things that aren't in it, and then complain about that.
- 7.49 Because the military funding bill, you know what, didn't cure cancer, can't vote for it. You know, I joke that these forever-no voters, they should just save the taxpayers some money and just fire their entire staff. Honestly, they don't need them. They're not doing the work of objectively assessing the good and the bad of every bill and making a hard decision.
- 7.50 A lot of them talk like they do. They talk like they're experts on every subject and like they're the only patriots who noticed the hidden dangers of each piece of legislation. Most of the time, I'll be honest with you, most of the time their arguments are twisted or just outright wrong. I'm just speaking from experience. I could give you examples, but if you follow my history on social media, you've probably seen me take on those battles a few times.
- 7.51 So, now's not the time to name names. So we've talked about trustees, we've talked about delegates. That's your typical political science lesson, but that barely scratches the surface of the modern Congress. And I'm going to give you some more categories, Dan's categories, based on my experiences. This is the fun part.

- 7.52** All right, here's the real categories of congressmen. Number one, the star. This member came to Congress to get famous, to build their social media presence, and eventually crash and burn, or mature into a different type of member. Now, this is a pretty new type of congressman that began, frankly, with my class in 2019 and also probably began with social media.
- 7.53** So you had AOC and the squad on the other side, and then you had me with a very large social media presence. Now, my social media presence came from, you know, my infamous appearance on SNL. Now, but that being said, neither they nor I ran for office in order to get famous. I think our social media fame did, however, open the door for that phenomenon in the next election, and the next election after that, and the next election after that.
- 7.54** So I see a concerning number of candidates now running for Congress that have very little life experience, no expertise in anything, barely any moral grounding. They're just clever enough to recite popular sound bites that get primary voters excited and off they go to Washington for freshman orientation. A little scary.
- 7.55** Number two, second category, the climber. OK, so I don't actually mean this as a bad thing necessarily. So this member came to Congress as a stepping stone, maybe to Senate, maybe to Governor, maybe to House leadership. It kind of depends on what state they're from. Actually, let me spend a moment on that. It depends on what state they're from.
- 7.56** Because, look, if you're Kevin McCarthy, Kevin McCarthy, former Speaker of the House, he had no choice but to climb towards House leadership. Why? Because he's from California. He can't get elected governor as a Republican in California. He can't get elected Senator as a Republican in California. So it is dependent on where you're from.
- 7.57** But in any case, it's pretty obvious who these folks are. They try to stay out of trouble, but also get noticed in the right way. They put a lot of effort into the inside game that we went over before. They want to get to know members. They want to get to know the institution. They're maneuvering their way into chairmanships. They're throwing their name in the hat for leadership roles, like, what's called conference chair, the whip, majority or minority leader, or even the Speaker.
- 7.58** Third category, the wonk. So this unique member actually cares about a very specific policy or two. There's a few of these, and they actually probably have a background that is really well suited to such wonkiness. And they spend a lot of their time just trying to get on the committee that fits their interests so they can effect that policy. That's it. That's the wonk.
- 7.59** Number four, the statesman. This member takes a long view of everything. They care about policy, of course, but they don't dive into the details like a wonk does. They're institutionalists; they're traditionalists. They care deeply about the sanctity of the office and the institution. They're old school. They're willing to take the tough votes to keep

the country on track. They do their best not to get in the mud with all the bottom feeders that are trying to drag them down all the time.

- 7.60** Fifth category, the activists. These tend to be the hardliners, or self-labeled hardliners, on each side. Now, from the Republican perspective, I actually don't think they're more conservative. I don't think they're more right-wing. They just tend to be more angry about it, about all of it. They're always looking for ways to buck the leadership, to sink a bill, or even sink a Speaker of a House, every once in a while.
- 7.61** They see compromise as this unforgivable sin. They are very ideologically motivated and they hold very strong convictions, but they definitely do not care about political strategy or taking incremental policy wins. It's truly all or nothing with the activists. And they're more likely than not to vote no on just about everything. But again, I'll give them this. At least I think they mostly believe what they're saying.
- 7.62** And that's the big difference with our sixth category, the salesmen. These members came to Congress so they could hear people call them congressmen. They want to be activists and they want all the attention that comes with that. But they don't have the charisma or the conviction to be even considered real ideologues.
- 7.63** They also vote no on the important stuff, but not because of ideology. They vote no to curry favor with the political entertainment industry. These are my least favorite type of congressmen because you can never trust them. They will betray you in a second if it means getting five minutes of fame on X or on any other social media platform. This type of member doesn't know a whole lot about policy. They're in it for the game. They're both insecure, they're egotistical, which makes anyone hard to reason with. And why do I call them salesmen? Because they're selling you snake oil.
- 7.64** So those are your six. There could be more. I don't know. That's just my take. To be fair, it's pretty hard to place every single member into every one of these categories. I mean, look, sometimes a member acts like an activist and then at other times like a statesman. And if you asked me what category I'm in, I wouldn't even know what to tell you.
- 7.65** So I think you should think of these categories like personality traits. Everyone has all the personality traits—agreeability, conscientiousness, neuroticism. But the question is, at what level does each trait manifest? And I think the same is true of these political traits, these politician traits, whatever you call them.
- 7.66** I get another question a lot, which is, what the hell do you do all day? So I'm going to try and do my best to tell you, like, what a typical schedule looks like in D.C. What are all these wild-eyed congressmen doing exactly? So I'll run you through a sample schedule in Washington, D.C., and the team that makes it all happen.
- 7.67** So, my day starts at 8 AM because, now I'm not a morning guy, but this is because I chair the task force to combat Mexican drug cartels, and 8 AM is kind of the only time I

can get people there. So twice a week we invite a guest speaker to lend us their expertise on cartels. I mean, that could be somebody from DHS, it could be somebody from DEA, could be an ex-cartel member. These meetings, of course, help our bipartisan task force as we consider legislative solutions to the enormous problem that are the drug cartels.

7.68 When we get done with that, pull up my phone, and I check my Google calendar, which is populated by my scheduler. Scheduler is probably one of the more important and difficult jobs in any office. At 9 AM, I might record a podcast with that same guest we just had at the cartel meeting, from maybe like 9:30 to 10, just to, just to get more on the record, a little bit more personal. At that point, I might get some coffee, might get some breakfast, and then I'll prepare for a hearing.

7.69 Now I'm on two committees, and they're busy, and so we probably have hearings every single day. The hearings at Energy and Commerce usually start at 10 AM. But I don't actually get, like, my five minutes to talk probably until 12:30 or 1. And that's just depending on how many members are in the committee room at the time. But it's your, your rank there depends on your seniority. And even on my third term, I'm still pretty junior on Energy and Commerce.

7.70 So there's a number of ways I can deal with that. Like, do I sit through the entire hearing for hours? I mean, I can. Or I can watch it from my office on C-SPAN. I might use that time to see what questions are being asked, whether or not I should take a different angle, maybe ask different questions when my time comes. There's quite a bit of detail to go over in these hearings, so I have a legislative team that helps me prep for them.

7.71 Each of those staffers specialize in different policy portfolios. I've got one guy that just only does health care, because I'm on the health care subcommittee. I got another guy that only does energy environmental issues, because I'm on the environmental subcommittee. So you get the point. And if it's a particularly important hearing, I might dedicate my entire time to it. I might really watch all of it.

7.72 But I have conflicts. So usually my other important committee, the intelligence committee, also has something, and it's also scheduled at 10:30 AM. So I will go to that, whatever it is. It's usually a classified briefing or also a hearing, and it's usually on a subject of great interest to national security. So I really like to go to those.

7.73 We receive briefings from members of the intelligence community who are experts in whatever the topic is that we're discussing that day. That ranges from the CIA to the DIA to the FBI, depends on the issue. So I got choices to make here. I can't, because here's the thing, I can't watch what's going on in Energy and Commerce and be in the Intel Committee, because why? I can't have my phone when I'm in the Intel Committee. It's a SCIF. I can't have my phone when I'm in the SCIF, right. It's a classified area.

- 7.74** So, the other problem with being on an intelligence committee is that my personal staff can't help me with that. They don't have security clearances. So, generally, I will end up putting more time into the intel hearing, just because I'm the only one who can absorb the information. I can't rely on my staff. My staff can be watching the Energy and Commerce committee hearing and then filling me in on what happened, you know, right before I have to go actually do my five minutes.
- 7.75** All right, so we, we hopefully get through that. Sometimes we don't. Sometimes, like, the time for me to speak for both committees is exactly the same time. This happens way more often than you'd think. And I'm just screwed, and I have to pick one. And then we go to lunch maybe, or maybe we just skip lunch, which is usually what happens. But sometimes there's a fundraising lunch, and maybe it's with donors at a nearby restaurant.
- 7.76** But usually I try to push fundraising events to the evening because, if you're doing them during the day, they're probably going to get canceled because things come up. Once a week, also, the Texas delegation, the Republicans, anyway, we get together and we have a lunch, and we really try to always attend that because it's our opportunity to actually talk to each other.
- 7.77** Now during hearings, again, because they're hours long, and you've only got five minutes, now, you can pop out, you can pop out, you can take constituent meetings because, remember, there's an endless number of special interests and constituents that want to meet with you, maybe tell you about the issue that they're championing. And you've got to decide, and your team has to decide, which one of those meetings you can take yourself and which ones have to be taken by your staff.
- 7.78** I usually will take those meetings if it's just directly related to the work that I already do—you know, for example, health care innovation, energy, psychedelic therapies for veterans, things like that. And also, the person we're meeting with has something exceptional to say, then we'll take those meetings. Otherwise, staff can take those meetings.
- 7.79** Then around 1 PM comes around, hearings have wrapped up, votes are called. Bells start ringing around the Capitol and it's super confusing and they're very loud and very annoying. So this means we all have to go to the House floor and cast our vote on whatever it is we're voting on that day. This is usually the first series of votes that day. They're usually just rules votes. I'm not even going to get into what that is, but they're just quick votes. And there's going to be another series later.
- 7.80** There's going to be a couple hours of debate in between those two series of votes. So while I'm running around like crazy, from meeting to hearing to classified briefing, my staff is also making sure that I have a solid one-page summary for each vote of the day before I head to the floor. That's also the legislative team's job.

- 7.81** Now, going to the floor is really the only time that you actually get to see members outside your regular committee work. If you need to find another member, and you often do, to discuss a bill or some other issue, you find them on the floor during the vote series because it's the one time we all have to be there.
- 7.82** OK, so for instance, if you're trying to collect co-sponsors for a bill, and that's a thing you might want to do, you're probably going to have a list of potential members and you're going to choose that list based on ideology, based on their position on relevant committees. And then you're going to hand them what we call palm cards, which are basically just envelope-size pieces of stationery with a description of the bill we want them to co-sponsor and some contact info for the staff, should they want to be part of that bill.
- 7.83** Why do we make it like that? Why do we put it in an envelope size? Because it fits in your inner coat pocket, that's why. And many members actually have their entire schedules written out on a palm card. I don't. I like my Google calendar because I can put more information on it, and I like to have a lot of information before I enter a meeting.
- 7.84** I tell my staff, five W's. I'm very military like that, right? Give me the five W's. Who, what, why, when, and where. I want that all in my calendar. You can't put that on a palm card. So around 3 PM, I might have a podcast scheduled. I'm one of the few members that does a regular podcast. Raise your hand if you've seen my podcast and given it five stars. Get those people out of here. They have not given my podcast five stars. Cannot believe it.
- 7.85** So I love my podcast. I still love doing it. God, we've got like 300-plus episodes at this point. And I see it as a really valuable way to have a long-form conversation about policy and give my constituents an in-depth view to how I think about issues. You know, the history of why we decided to do a podcast was, I noticed early on in my first year that I was having all these interesting meetings, interesting meetings with people who knew a lot of interesting things. Maybe they were witnesses at a hearing, maybe they were just coming into the office.
- 7.86** But I'm like, why don't we record this stuff? And that's how the podcast started. And I think it's, like, the only true policy-oriented podcast. We always have a guest on who's an expert in something. It could be a little out there. You know, it could be just Medicare policy, it could be energy, it could be national security intelligence, it could be —once we had a Catholic priest on, talking about exorcisms. That was a cool one. So I love doing that.
- 7.87** Now, if we don't have a podcast scheduled, because we really only put one out a week, maybe I'll have a news interview scheduled. So those interviews usually take place, actually just down the hall from my office in the Cannon Rotunda. It's basically a

mezzanine where all these different news outlets have their semi-permanent camera setups, and they do interviews all day long with members.

- 7.88** There's also, there's another area where you can do interviews just off the House floor in the Capitol itself. And that's where a few networks are also set up. Now it's very tempting to photobomb your fellow members while they're doing an interview. It would be so easy. And yet, I have resisted that temptation, despite my 12-year-old maturity level.
- 7.89** So, I also have, speaking of comms, you know, I have two staff dedicated to comms or, you know, communication, and they're in charge of booking interviews, providing background for the topics for those interviews, helping me run my social media to an extent, but I do a lot of that myself. At 4 PM, we probably have another meeting scheduled. You know, it could be with local state officials who are visiting for the week. They're making their rounds through D.C.
- 7.90** It could be with the CEO of a major company that has a big interest in my district. It could be a Texas family just visiting D.C. and they just want to come by and take a picture. It could be a whole class of high school students from my district. They're on their D.C. field trip, like it was last week. That's what happened last week, for instance.
- 7.91** So, 5 PM rolls around, and I got to walk back to the Capitol, and it's about an eight-minute walk. It's not too bad. But this is for our last vote series, at least on a normal day. Again, sometimes votes will go till 2 AM, you know, because we procrastinated, and the budget's not passed, and the government's about to shut down. So you just never know. But on a normal day, we're going to go back around 5 PM, and these votes will usually last around 30 minutes.
- 7.92** After that, maybe we've got a dinner scheduled, or maybe I just want to go home and do nothing. But maybe we have a dinner scheduled and maybe we have a dinner with other members, right. It's always good to build relationships. But most likely, we're doing a fundraising dinner. And that fundraising is with government affairs reps from different industries. And yes, these are known as lobbyists.
- 7.93** OK, lobbyists. Let's talk about lobbyists. There's a lot of myths in politics. People think congressmen get a salary for life after serving one term. You ever—raise your hand if you've heard that one. Really? I even believed it. I went into house admin on my, like, my first day, and I'm like, "So, dude, tell me about this salary for life." And they just laughed in my face. They just were like, "You idiot, of course you don't get a salary for life." But it is a, seriously, it is a well-known myth.
- 7.94** People think term limits will save the republic. We've been over that. People think the Social Security trust fund is going broke because the federal government keeps stealing all the money out of it. Not that demographics are bankrupting it. Tell me you've at least heard that myth. Yeah, you've heard that myth. It's a myth.

- 7.95** People think congressmen have special insider information on the stock market. The truth is, you'd be more surprised about how much we don't know. That's the real problem. People think the NSA is reading their emails to their mom. And of course, people think politicians are bought and paid for by lobbyists.
- 7.96** Now, I can only speak for modern times, and there's definitely other eras where ethics laws were a lot looser. Members could take far more personal favors from lobbyists, from donors, from anyone. But that is definitely not the case now. Lobbyists are mostly former staffers who know the insides and outs of legislation, and then they leave an office and they go work for a specific industry to advocate for their issues in Congress.
- 7.97** So I'm going to give you some truth here. I don't know what all of you do for a living. It's irrelevant to the question, though. No matter what you do for a living, you are represented by a lobbyist in Washington. There is somebody up there advocating on your behalf. So that's right. You're part of the special interest groups. You just don't know it.
- 7.98** So here's how lobbying actually works. A company, a corporation specifically, cannot legally donate to any federal political campaign. So, what do they do? They create what's called a political action committee, or PAC. You've heard that term. A PAC can donate. Now, what a PAC is in practice is employees that work for the company are pooling their money together, they're putting it into a PAC, and then they hire a government affairs person to distribute those donations and also advocate for the issues that matter to the company. That's what it is.
- 7.99** There's also PACs for entire industries, not just for specific companies. I mean, grocery store chains, like, farmers, dentists, airline pilots, you name it. I don't care what job you have, you have a PAC. And that PAC can't donate more than \$5,000 to any campaign. So I'm not sure that's exactly "bought and paid for," as the common headline might suggest.
- 7.100** Now, ultimately, what we're talking about is a group of like-minded citizens, pooling their money together so they can have some influence. I mean, your class could do that. You could create your own PAC right now. You may not like that idea, but the thing is about the First Amendment being the bedrock of democracy that it is, you're not ever going to change it.
- 7.101** So, what do these lobbyists do exactly? I mean, what do they really do? I mean, truthfully, they—look, sometimes they're annoying, but truthfully, they serve a purpose. A lot of times they have knowledge about how a certain piece of legislation that is very technical will affect their company or their industry that, honestly, we as congressmen wouldn't otherwise know. That actually kind of matters, especially when that company has hundreds or even thousands of employees across my district or my state. These are my people.

- 7.102** So, do those regular citizens just not deserve a voice in Washington, just because that voice happens to be through a dreaded lobbyist? I mean, sorry, I just, some of these things just aren't as sinister as everyone wants them to be. You know, all the fears about politics, they do have a common thread, and this is worth spending a moment on. They exist because the public's always looking for an easy button to press.
- 7.103** They're looking for a simple and easy answer for why things just aren't the way they want them to be. It's easy to say that Washington's broken because corrupt politicians have no term limits and only listen to the all-powerful lobbyists and donors. It's a bit harder to think deeply about how complex many of these issues exactly are and how we got there in the first place. Society's complicated, governing is complicated, democracy is messy as hell, and there's always more to the story than just a quick sound bite that your favorite news host spewed out on the screen. That's the truth.
- 7.104** So, it's a day in Congress. I mean, there's a lot going on. How do we manage all this schedule, the wide variety of complicated pieces of legislation, the angry phone calls, all of it? Well, you need a team, for starters. So every member has a staff in Washington, D.C., and a staff in the district, usually spread out among multiple offices, so that, like, different regions of the district can access their representative's office.
- 7.105** So, you know, we have two. We're not a huge district. I mean, again, I represent, you know, the northeast part of Houston and beyond. So it's, it's, it's not like some rural districts where there's 50 counties. So I have two offices, and we get a set budget, and everybody gets the same one, to pay for things like, of course, salaries, but also things like office leases in the district, and also events like town halls or that other event I told you about, the health care innovation summit.
- 7.106** You can only pay for events that have a direct relationship to policy that affects your constituents. Ethics will look at that. You can't just have a party. In D.C., I've got my chief of staff. So he's kind of like the CEO of the operation, you might say. But you might also say, "Well, Dan, aren't you the CEO?" And I would say no. I'm supposed to be the product. If I'm bogged down in managing the details of my entire operation, then I would not have enough bandwidth to do the things that only I can do.
- 7.107** Only I can give interviews, only I can question a witness during hearings, only I can give speeches, and only I can cast votes. Only I can go out and campaign for my own reelection. So I've got to take a step back and let somebody else manage it. Now, my communication team consists of two or three people, usually. Wish I had more, but our offices are limited in how many people we can hire.
- 7.108** I have a communications director and a digital social media director. They're in charge of booking interviews, helping me prep for whatever subject I might be interviewed about. A good comms director will know the news anchors. They'll know their personalities. They'll anticipate what kind of questions they might ask, and I'll also put them in charge of clipping my speeches or hearings and turning those into video that's

suitable for social media. I micromanage this a lot more than most members, like a lot more.

- 7.109** They're also in charge of press releases. They might help write op-eds or speeches, but again, I generally just write all that. They'll help me, but it needs to be in my voice. You know, different members do different things. For me, I want my communication to the outside world to be in my voice, to be authentic. So that requires a lot of extra input from me, personally.
- 7.110** Again, some members, they've literally never even looked at their social media accounts. They just, they just, they'll post stuff like, "Hey, OK, here's me shaking a hand," and they just let their staff do it. They don't care. I happen to view the communications aspect of the job as extremely important. And I don't think I'm crazy for thinking that, because these days, power and influence come from your reach to the public. You have a larger platform to communicate, whether it's social media or my podcast or more news interviews. It gives you more influence to get legislation done.
- 7.111** That outside game does help the inside game. So, being only in my third term, I need all the influence I can get, because the truth is, I'm actually still too junior to be chairing major committees or even subcommittees, sometimes. As for drafting legislation, I have four people on the legislation team. Now, as I said before, they specialize in certain policy portfolios. They do prep for hearings, they help develop legislative ideas, and also they manage the legislation through the process for me.
- 7.112** They also make sure that I've got all the information I need to make informed decision on the votes of the day. The most junior position any office has is the staff assistant. This is usually a former intern. They're the ones who are going to greet you at the door with a smile, they're going to answer phones, they learn how to give tours, and they do a pretty good job. So when you come visit, they'll give you the tour. They assist other staff as needed. Hence staff assistant, just as the title implies.
- 7.113** Now, we kind of ran out of space in my office. That's about it. They're not that big. Senators have large offices. They're very important. Even if I had the extra budget to hire them, I wouldn't have any place to put them. We're just not big enough. But guess what? You can see for yourself. If you're ever curious to see one of our offices, you just walk in. You might be surprised to learn that anyone can visit our offices without an appointment. It's the people's house, after all.
- 7.114** You show up, you go through some metal detectors and an X-ray machine, just like the airport, and you take yourself on a tour, maybe to your favorite member's office, maybe your least favorite member's office. Maybe they're next door to each other. Maybe I'll see you there. Thanks.

Lecture 8: The World Stage

At a glance — The world stage — foreign policy.

- 8.1** This is a civics course, and I hadn't yet touched on foreign policy. I knew I needed an eighth lecture. I wasn't sure what to do with it. And then it was obvious; it's foreign policy, and it's also my background. I majored in international relations. I grew up abroad. I was the model UN nerd. I did model UN conferences in Bogotá, Colombia. I chaired them. I did them in Caracas. My family actually lived in Caracas after I left Colombia, and we all know what happened after that.
- 8.2** So we're going to talk about American foreign policy. Like I said, I majored in international relations in college. In one of the first lectures, as a freshman, the professor referred to the globe as Spaceship Earth. Maybe that was just a cool, catchy way of describing the world. I don't know. It obviously worked because the fact that I even remember the phrase tells you it worked. But after nearly 20 years of observing global affairs and my personal role in it, I think there might be something to this quirky little catchphrase.
- 8.3** By definition, a spaceship, or any kind of ship for that matter, it's an enclosed space. In that enclosed space, people have to live together and work together. You cannot escape. That is a primary attribute of this space. You're stuck with each other. International relations, it's not all that different from regular human relations, whether we're thousands of miles apart, or sitting right next to each other on a spaceship, or a barstool in a dive bar.
- 8.4** The rules of human engagement are about the same, with some exceptions. I think the rules governing social interactions at a micro level are just not that different from relations at an international level, at the macro level. I call this social theory the global dive bar theory. Trust me, it's accepted, peer-reviewed theory in the study of international relations. I am a politician. I would not lie to you. Of course, it's not, OK? Just so I don't get sued.
- 8.5** Anyway, look, here's the thing. There are stronger people, there are weaker people, there are people who have more wealth, who have more resources, and everyone eventually is self-interested. They're looking out for their own survival and their own well-being. Not everyone makes completely rational decisions all the time, either. You tend to make friends with like-minded people, or at least alliances when it seems mutually beneficial, and you make enemies or adversaries. They inevitably materialize from all of these dynamics.
- 8.6** Human relations can be pretty chaotic without rules to govern them. We went over a lot of that before, didn't we? If you stay out late enough, at our particular dive bar, there's always a brawl. For thousands of years, the human condition has been relatively violent and chaotic, at least relative to modern times. Emperors invaded, conquered

lands, borders changed constantly. Human rights were just an afterthought for most civilizations, subjugated to the immediate needs of whoever was in charge with the biggest army.

- 8.7 Global trade, it was around, but it ebbed and flowed, depending on the state of conflict at the time. Humanity advanced really in only small spurts for thousands of years. I would say that this was the human condition until as recently as World War II. Now, what came out of World War II was the one thing that had never existed before, an unquestionable superpower, both militarily and economically. That was, of course, the post-World War II United States of America.
- 8.8 Now, of course, this superpower was challenged by the Soviet Union, namely, and its communist allies. But that came to its conclusion after the fall of the Berlin Wall and then the collapse of the Soviet Union. That left America as the last man standing, as the defeated drunks lie beaten on the barroom floor.
- 8.9 Now, there can be plenty of debate over individual policy decisions since World War II, and there have certainly been costly wars like Korea and Vietnam, the last 20 years of the global war on terror. It's not as if we've had perfect peace. I'm not claiming that. But still, these conflicts pale in comparison to the very extreme conflicts of the past, where tens of millions died. Even the Cold War with the Soviets did, in fact, remain cold.
- 8.10 Another important distinction since World War II is this. None of these wars were wars of conquest. In each case, America chose an ally and chose to defend that ally. In the case of the war on terror, America chose to defend herself. In both Iraq and Afghanistan, America chose to hand over the toppled government back to their people via democratic elections.
- 8.11 Now, we can debate all day long how and why that all turned out the way it did or whether it was a good idea to impose Jeffersonian democracies in places that weren't ready for it. But it's still an important distinction to make between wars of conquest that characterized pre-World War II history and then the modern conflicts over the past 75 years. That distinction is important.
- 8.12 It's important because it is only in the last 75 years that humanity has truly flourished and advanced. And there's one determining factor. It is the outsized role of the United States of America. I'm not trying to sell you on chest-thumping Team America patriotism. Then again, that's what team I'm on, let me tell you. But I am pointing out that there are observable causes and effects, and the primary one being peace and prosperity that was previously unimaginable.
- 8.13 Now, I think you know that statement to be observably true because you all have a very basic understanding of human history. But if you don't believe me, I mean, just look at the graph; look at the data. Look at GDP per capita; look how it skyrockets. So

something happened here, right? Something changed, and it's America. America being the one leader, the one that came out of the giant brawl in the dive bar.

- 8.14** Now, the most obvious distinction between America's role as a superpower and other times in history was that our foreign policy wasn't designed around conquest or imperialism. It's not like there weren't other superpowers in history. But our outlook on the world was different. It is different. It's around maintaining a rules-based order that responsible actors can take part in and benefit from.
- 8.15** Now, I'm not even saying this is designed out of pure benevolence. It's rational self-interest. I mean, it became clear, especially after World War II, that global chaos that characterized our very overly active little dive bar, it made it a lot harder to build an economy, to trade with partners, to make technological advancements.
- 8.16** Chaos also made it more likely that we'd have to send large armies across oceans to send our boys to die in foreign wars. In hindsight, it's pretty obvious that if we had intervened earlier in World War II against Hitler, it would have been far less costly. That's obvious in hindsight. Now, let's talk about the fight against communism.
- 8.17** The fight against communism, yes, indeed, it's an ideological one, but it's also very practical. I don't think this argument gets made enough. The communists represented a threat to fair trade and economic growth, just for no other reason that their economic model is just crappy. And so the more countries that have it, the worse off the world is going to be, the less people are going to have to trade with.
- 8.18** So they represented threats against American allies that would otherwise be part of our security alliance, part of our trading bloc. There were very practical reasons to consider the Soviet expansion as a threat to American prosperity. Let's develop this dive bar theory a little more. Again, it's peer-reviewed. You can look it up.
- 8.19** If you're in a bar full of self-interested people looking to take what you have, your first instinct might be, I don't know, make some friends, build some alliances. Even if you're the biggest guy in the bar, the most untouchable, you still have an interest in preventing the entire place from catching fire. You have an interest in building your own friendships and benefiting from your friends' unique skills, maybe their geographic locations, maybe their particular resources that they have a lot of.
- 8.20** There's only a few bartenders. They have access to the tap. You might want to maintain some kind of relationship with them. As with any bar scene, there are, it's usually the guys, right? They show up with a chip on their shoulder. They resent you for a whole number of reasons. Maybe it's because you're so big and strong. Maybe it's because you're the toughest. I don't know. Maybe it's because you have the most money, more friends. They resent you.
- 8.21** They believe that everything you have that benefits you, it benefits you at their expense. So maybe they get together, and maybe they form their own little clique, and

they want to compete with you. For the sake of current events, I'm going to give you a hypothetical that happens in this dive bar just to consider for a second. Fights happen in dive bars a lot, right? Maybe fights with somebody you don't like, against one of your friends.

- 8.22** And maybe you're the one person in that bar that can actually do something about it. So if a bully is beating the crap out of your friend and you choose to stay out of it, is that peace or is that an active decision to let your friend get hurt or killed? It's an active decision. I mean, you see it all the time, right? People using their cameras to film someone getting assaulted instead of helping them? That's an active decision to take the side of the aggressor.
- 8.23** That is true whether you're filming somebody being an aggressor; that is true whether you're letting your friend get beat up, and you don't even want to give him a knife, like, "Hey, just stab the guy." If you do nothing, that's an active decision. It is not peace. Never listen to the people who are claiming that it's just, "I want peace." No. It's a yes-or-no question because you're the one with the responsibility. You're the one with the big muscles. You're the one who could do something about it. Never forget that.
- 8.24** So does this dive bar sound familiar yet? It's humans. It's just the human condition. And what's the difference between this and the international stage? I mean, not a lot. And so, our job as the elected government of the United States is to navigate this mess of human emotions and power structures and fragile relationships. The question is, how do we do that?
- 8.25** Well, let's first talk about the state of the world. It's a little messier since the golden age of the 1990s, isn't it? After the fall of the Soviet Union, China was still a backroads economy. America was so far ahead on everything, seemed impossible to catch up with us. In 2001, Al-Qaeda, terrorists led by Osama bin Laden, planned a devastating attack on the World Trade Center buildings in New York City. It woke America up to our vulnerabilities from non-state actors.
- 8.26** And that set in motion the war on terror that still continues to this day, albeit to a little lesser extent than, say, 2001 to 2016. But it's still there. And as we move out of that global war on terror, the new threats, well, they're again from state actors. We have reentered a multipolar power dynamic, and that's more reflective of what humanity has been accustomed to for thousands of years. I mean, you might say that we have seen a reemergence of history. Vacation is over.
- 8.27** For America, that's not a good thing. China's rise as an economic powerhouse is no longer seen as a benefit to the global economy, but as a threat. Why? Because that's how the Chinese Communist Party prefers it. They don't like the rules that we all agreed upon. They want to subvert the rules. They want to gain power. So they cheat and they lie and they steal their way across the globe to control resources and corner markets and massively subsidize their own industries.

- 8.28** They're kind of like the mob in our little dive bar. They're bribing everybody. They're pushing little guys around. And then they have the nerve to react with pearl-clutching indignation every time we call them out on it. They eventually want to control Taiwan, and therefore, all of the production of advanced semiconductor chips. That would be very bad.
- 8.29** They're even building manmade islands in the South China Sea. Why? To justify claims over territorial waters, which in their minds allows them more control and justification for control over some of the busiest shipping lanes in the world. They want complete control over Asia. They eventually want complete control over the global economy. The Belt and Road initiative is an effort to colonialize developing countries and control their resources. Full stop.
- 8.30** Now, let's talk about Russia. Russia never really changed all that much despite the fall of the Soviet Union. They have always been philosophically driven by power competition, not cooperation. They think in zero-sum terms. They always have. Much like the Chinese, they believe that only one side can benefit from a transaction, not both. And so, unsurprisingly, they always want to be the one on top. They both pick on the little guys, and they both drink the same brand of cheap vodka.
- 8.31** They still believe in the old ways, the old ways of territorial conquest. And if you haven't noticed, they're currently imbroiled in one of those brutal wars of conquest against their sovereign neighbor, Ukraine. They don't want healthy competition. They want to destroy the US oil and gas sector; in fact, have funded far-left environmentalist groups to tarnish domestic support for oil and gas production in the US.
- 8.32** Unfortunately, a lot of people in our country, that propaganda has been rather effective, and people in our country have taken that bait, hook, line, and sinker. Lucky for all of us, that's about to dramatically change, given recent elections. Then there's the Middle East. Middle East, where the eternal division is fundamentally between two sects of Islam, the Shia sect that resides mostly in Iran and the Sunni sect that resides mostly in Saudi Arabia and the oil-rich Gulf States.
- 8.33** Then there's other countries like Lebanon, like Iraq, and they have a very uncomfortable mix of both religious sects, and that leads to what? Oh, yeah, civil wars all the time. So what's our interest there? Now, first it was oil, and then it was terrorism. And of course, it's always been protecting our democratic ally, Israel.
- 8.34** But the Middle East oil used to be a lot more important to the United States back in the 1970s, for instance, when America really hadn't discovered our own oil and gas reserves yet. And so the world was largely reliant on this tumultuous Middle East for our energy needs. Now, in our hypothetical dive bar situation, again, peer-reviewed, these are the guys who filled up your tanks before you went home for the night. You needed some kind of relationship with them.

- 8.35** We all had an interest, like we, the entire world, had an interest in making sure that it remains somewhat stable. You can't forget about Israel, of course. It's the only Jewish state in the world and a staunch American ally in the region, and it's under constant threat from all sides. America has long been a defender of Israel since it became a country in 1947. As I give this lecture, Israel is currently in a fight for its very existence.
- 8.36** Then the World Trade Center attacks happened, September 11, 2001. Then the Middle East became important for very different reasons. Namely, it was the hotbed of Islamic jihad, along with Afghanistan, of course. Quick side note, Civics 101, from a US government perspective, we consider Afghanistan to be part of the Middle East, or central command in military terminology. Just so you know that, if you don't consider it to be the Middle East.
- 8.37** Now, Africa, jeez. Africa deserves its own lecture, and frankly, I'm not qualified to give it. Needless to say, though, it has been in perpetual turmoil for decades, if not longer. Civil wars, it's genocides, it's modern-day slavery, and now safe havens for jihadi groups like Al-Shabaab. But Africa cannot be ignored for two reasons. Massive amount of resources and a very rapidly increasing population.
- 8.38** Then we get to North Korea, South Korea. What's going on there? They're still technically at war. Now, they have an armistice agreement that has persisted since the end of the Korean War in 1953. Fun fact, South Korea has never actually signed that armistice agreement.
- 8.39** But since that time, South Korea has been fully integrated into the American-led order, and North Korea is a hermit kingdom dictatorship with a malnourished population and some nuclear weapons. And they're so bored, they're sending troops to fight in Ukraine. They sit in the corner of the dive bar and they throw empty bottles of people. They're super annoying.
- 8.40** Then we have Latin America. That's right here in our own hemisphere. It's kind of important, isn't it? Mexico is our largest trading partner, and I would argue, the most important country in the world when it comes to American interests. Given how much I work on this issue personally, I always point out this fact. Mostly, I'm putting this out to Mexicans.
- 8.41** If I could choose one country in the world, aside from my own, and just wave a magic wand and make it 10 times more prosperous, 10 times safer, just better in every way, what country would you choose? You should choose Mexico. That's what you should choose. That would have the greatest effect on our own issues. It would have the greatest effect on us. We are deeply integrated with Mexico, culturally, economically. Our southern border is in a constant crisis due to illegal immigration.
- 8.42** But looming over all of that is the continuing decline of the Mexican government's power relative to the increasing power of the cartels, the cartels that control a large part of that country. In this last election cycle, dozens, dozens of Mexican political

candidates were assassinated. Assassinated. That's unheard of anywhere else in the world right now.

- 8.43** Then we have Venezuela. Went from one of the wealthiest countries on Earth to one of the poorest in the span of only a couple of decades. Consequence of embracing Cuban-style socialism that destroyed incentives to create business and wealth. Now, to be fair, it was actually quite successful in achieving the goal of making everyone equal, equally poor. And the result has been mass migration into neighboring countries like Colombia and, of course, the United States.
- 8.44** I remember Venezuela. Like I said, I went to model UN conferences there. It was beautiful. My parents, being in the oil and gas industry, after I left to college, they moved from Bogotá to Caracas. I visited them many times. Very different country now. It's very sad.
- 8.45** You move on to Cuba, which remains Cuba. It's still a socialist dictatorship that represses its own people, and it shows no signs of changing anytime soon. Then you got Haiti. Haiti is on the verge of becoming a failed state, if it isn't already, with warlords and gangs battling the government for control of the capital, Port-au-Prince.
- 8.46** And then there's Colombia, still the number one exporter of cocaine, and that fuels the powerful cartels in Mexico. But Colombia also went from being a near-failed narco-state in the 1990s to a far safer and a far more prosperous country now. This is an exceptional example of good foreign policy by the United States. We were instrumental in assisting Colombians to take their country back from cartels first and then Marxist guerrilla groups.
- 8.47** And that fight continues on today, don't get me wrong, but it's nothing like it was in the '90s and the 2000s when yours truly was actually living there. I mean, multiple places that I frequented, El Nogal Country Club, the Bogotá Beer Company, they were bombed while I was living there. Luckily, I wasn't there. I got blown up later, of course. It was inevitable. But it's much better now. So Colombia holds a place in my heart, I have to say.
- 8.48** OK, so we can't do a full world analysis here, but you get the point. There's fires blazing and there's fists flying everywhere. And honestly, there's not enough good and sober men to stop them. It's human history, after all, and the human condition has long been defined by conflict and turmoil.
- 8.49** But, but, we got to remember something. It is darkness that makes the sunrise possible, is it not? Yes, there's fires everywhere, but we've been through worse. Our country has been through worse. The world has been through worse, like way worse. The worst moments in history were answered by the bravery of the next generation. So maybe, maybe we can just have a little hope. I think that's OK.

- 8.50** As we analyze our dive bar circling the sun, there is one observation I want to draw your attention to, and it's this. There's a fundamental dichotomy between East and West. This is referred commonly as the clash of civilizations by political scientist Samuel Huntington. He wrote about it in the 1990s. It's worth exploring more on your own. His analysis is a lot more complex than mine here, but I'll sum it up.
- 8.51** There is a civilization we refer to as "the West", and we've talked about it a lot in these lectures, actually. Now, it comprises largely of the Americas, Europe, Oceania, like Australia, those places. This collective, this common culture, is based on principles such as democracy, like a shared Judeo-Christian history and adherence to global norms, especially after World War II.
- 8.52** Look, I would also say that, while countries like Japan, India, Korea, they have very clearly different cultural norms than we do, I'd argue they also belong to the broadening coalition of the West, namely because they believe in democratic values. They believe in adherence to the basic norms of behavior. So there's a larger coalition than just Europe and America. I might even say Latin America, Israel for sure.
- 8.53** So if it's not obvious already, these terms, East and West, they're only loosely based on geography. They're more so just the labels that are used in academia. The East is a totally different animal. The Eastern thinker emphasizes power dynamics above all else. As I said before, they are believers in the zero-sum game. A gain for you must be a loss for me. That's zero-sum thinking.
- 8.54** These countries, namely Russia and especially China, well, they're very old civilizations, and as a result, they see themselves as having been subjugated by newer nations that they perceive as inferior, culturally, in all ways, like the United States of America. In other words, they have a chip on their shoulder, and they kind of want to correct that chip on their shoulder because they see it as an historical injustice.
- 8.55** Now, don't worry about whether this is actually a rational thought, because it's not. But they don't adhere to the same rules of rational thinking as you do because you're from the West. Those of us in the West need to understand these differences. It's very important. The Eastern logic doesn't make sense to our Western sensibilities.
- 8.56** I mean, for the average American, we can't understand why Putin would sacrifice hundreds of thousands of his soldiers and country's wealth on a pointless war of conquest in Ukraine. In fact, we have such a hard time understanding it that many Americans have actually sought to explain Putin's actions by blaming ourselves, citing the expansion of NATO, among other things. I'm sorry, but that simply isn't true.
- 8.57** The same could be said of Islamic terrorism. Instead of just accepting Eastern way of thinking, which is that jihadis hate us because they hate us for who we are, many Americans instead sought to explain the horrific actions of Osama bin Laden by examining how we might have somehow instigated 9/11 through our careless foreign policy actions. Let's do a class discussion on this real quick.

- 8.58** I've heard the NATO expansion argument in Ukraine before, and I once heard the proposition of, what if maybe, like, BRICS, for example, came on to Mexico and expanded right there. How would you feel as the United States? And I think that's an interesting argument. I can see both sides there. I was wondering if you thought that relates and if that somehow makes one side way more than the other.
- 8.59** Yeah, that's the argument made a lot. So here's the thing, though. You got to know Putin, and you got to study what he's actually said and what he actually thinks. And if you do that, what you'll find pretty quickly is—I mean, he's given a lot of speeches. He's talked about this a lot. He's never been scared of NATO. He has no reason to be. You know why?
- 8.60** Because NATO is not an offensive alliance. It's a defensive alliance. It always has been. It's very clear in its charter. He knows that. He knows that very well. You have to understand something else about Putin. He's known for saying that he doesn't like the Soviet Union. He thought it was too woke. Now, maybe he's trying to connect with some of our more right-wing sensibilities to gain, he does what—he's really good at propaganda.
- 8.61** But I think he actually doesn't like the Soviet Union, in a way. I think he does believe that Marxism didn't work, that it was stupid. You know what he does believe in? He's very well known to believe in? The Tsarist Russia, greater Russia. So he truly believes that this land is his. So it's not so much about being threatened by NATO. It's just the idea that NATO would stop him from invading a sovereign country.
- 8.62** And here's the thing, OK, so maybe we don't care about that. And that's the second argument he will make. So what if he invades a sovereign country? We've done it. Well, here's the so what. Remember what I said before? There's been a lot of wars, but America conducts warfare a little differently than the Russians do. We invaded Iraq. We'll debate that, whether that was a good idea or not, here shortly.
- 8.63** But you know what else we did? We gave it back to the Iraqis. We gave it back to the Afghanis, right away, as soon as possible, maybe too soon. Russia has no intention of doing that. And so now you're normalizing wars of conquest for no other reason than one guy is stronger than the other guy, and they can beat them up and take their stuff. If you normalize that again, you're normalizing history.
- 8.64** And history, previous to World War II, was really bad. That's why we created NATO in the first place, right? To keep America in, to keep the Germans from doing what they're going to do again, and to keep the Russians from doing what they always want to do, which is expand. That's why we created NATO in the first place.
- 8.65** So it's never been a threat to Russia, and Putin knows that. It's just a threat to Putin's desire to invade other countries. And that's not really a fair analogy to the Mexican one, is it? Because we have no desire to invade Mexico. So that's what I would say to that.

- 8.66 So I have a comment about 9/11 and whether it was America's fault. I think Americans, the West, don't really understand what jihad is. They can't really fathom the fact that holy war, or that killing the West, is basically a part of the Quran. Anyone who's not like you is an infidel. It's not the Western philosophy of we're all created equal.
- 8.67 A lot of military guys like to get infidel tattooed on their arms, just as a "fuck you" because you're exactly right. It's true.
- 8.68 Brilliant. I got that a lot around October 7th of, the reasoning for that kind of violence was, they must be oppressed. They must be somehow oppressed by the West.
- 8.69 Our reasoning, our Western reasoning.
- 8.70 Yes, yes, yes, 100%. We didn't think that. That's my comment, and I want to know what you think about it and also what your personal experience with that kind of culture was.
- 8.71 Yeah. Obviously, I agree with you, which is why I give the lecture the way I'm giving it. And that leads me—you've allowed me to then step into the next point I want to make, which is on 9/11 and Osama bin Laden's intentions, because it's like, what the hell did we do to piss this guy off? Because you really got to think about that for a second.
- 8.72 Osama bin Laden was part of the Mujahideen in Afghanistan in the 1980s. What did we do with the Mujahideen? What did my predecessor, Charlie Wilson, from the second Congressional district of Texas, do with the Mujahideen? He gave them money, he gave them weapons, he gave them Stingers to fight off the Soviet invasion. That's why Charlie Wilson is so famous. Side note that's kind of fun. Joanne King Herring did one of my first fundraisers. She was played by Julia Roberts in the movie Charlie Wilson's War.
- 8.73 Anyway, so we did something for Osama. He should love us after that. And then what happened? Saddam Hussein invades Kuwait, and is about to invade Saudi Arabia, in the first Gulf War. Where is Osama bin Laden from? Saudi Arabia. Who stopped Saddam Hussein from invading Saudi Arabia? America. What the hell is this guy's problem with us? And yet, because of the points you make, he still, instead of being just a billionaire like he was, he still planned the attacks on the Twin Towers.
- 8.74 You cannot rationally understand these people. They hate us because they hate us, because it's written down that they're supposed to hate us. Now, of course, definitely not all Muslims interpret it that way. The vast, vast majority, of course, do not interpret it that way. But some do. Some do. And they're dangerous. And they create groups like Al-Qaeda, and they create groups like ISIS, and they create groups like ISIS Al-Kataib, and they create groups like Al-Shabaab.
- 8.75 And it just goes on and on and on. And I'm not sure it ever goes away. We just have to be fighting it, forever. I'm sorry. But when people talk about these damn endless wars, I'm like, yeah. Yeah, because the bad guys have a say. We can step away from it, sure. You could say, look, no more endless wars, and they'll just punch you right in the

fucking face because that's how the real world works. Anyone else on Ukraine or 9/11 in particular?

- 8.76** So everyone's got their "Where were you during 9/11" story, right? I was only 11 years old, and I watched it in a PE homeroom, I think. And so you don't have any sort of a grasp on what's going on. But in later years and even coming out of a—I went to a very small liberal arts school, and so I was hearing definitely a lot more of those cultural relativist arguments, right? And you start to believe some of that and learning about those Western ideals, about how people—
- 8.77** It came up again recently on TikTok, remember? It went viral.
- 8.78** Yeah. Then I read Ayaan Hirsi Ali, and you start to see that it's not that simple and that there is a right and wrong, and that sometimes people just do want to push on the rest of the world the way that they think things need to be, and they will stop at nothing to do that, including hurting and ruining their own people. I think people just forget that and don't want to listen.
- 8.79** They do forget it. It's easy to forget. That's why we have to talk about Eastern versus Western thinking, because you can't rationalize that. You can't, not with your own normal Western brain. It doesn't make sense. So, in the West, our leaders, we have meetings, we make agreements, we largely assume that we're going to stick to those agreements, even if it's just on a handshake.
- 8.80** The concepts of honor and integrity, reliability, cooperation, this support of shared values, it actually matters a lot to Westerners. When you're dealing with Russia or Iran or North Korea or China, well, then you'd better adhere to Reagan's famous line, "Trust, but verify." Verify a lot. Because agreements are purely transactional. They're not founded on any kind of shared values. These Eastern leaders are always trying to pull a fast one.
- 8.81** The Iranians literally pride themselves on their ability to deceive an adversary. It's a practice called taqiyya. I think I'm pronouncing that right. Now, it originated as a survival mechanism to hide from their enemy, the Sunni Muslims. Of course, regular Iranians also practice a form of deception on a daily basis because they're trying to hide from their horrible, authoritarian, theocratic government that's trying to oppress them.
- 8.82** But you have to think of it this way, too. The government has also taken this cultural norm, and it manifests in their foreign policy and, I would argue, most recently, in the quite poorly negotiated Iran nuclear deal with the Obama administration. And the Chinese, I mean, they had us all fooled, like everybody, for decades. There are whole books written about China's great deception, and I would recommend you read them. I'll give you one. Read *The Hundred-Year Marathon* by Michael Pillsbury. It's a really excellent history of this topic, how we all fell for it.

- 8.83** So, how does America navigate all of this? I mean, the best we can, I guess; that's how. So maybe let that be our first lesson. You know, while many armchair quarterbacks in the political punditry space like to act as if all of our leaders at any given time are just the biggest fools of the century, look, man, the truth is that we've always struggled and understandably struggled to navigate such an unpredictable world.
- 8.84** And have we made mistakes? Yeah, of course. But the benefit of hindsight can be pretty useful. Can we learn lessons from those mistakes? Yeah, sometimes. But the truth is that no two situations are exactly alike. So you have to accept new realities of the time and then apply the lessons of history and apply them appropriately. In our proverbial dive bar, you can't just keep using the same pickup line because it worked once. You've got to adapt.
- 8.85** You also have to properly analyze the past. I'm going to give you two principles for doing this properly. First, the principle of assessing foreign policy decisions of the past through the lens of that moment in history, not the lens of the current time. Doing otherwise is, you're just making judgments with the benefit of hindsight. You're taking advantage of knowing facts that the decision-makers at the time did not have. That's a dishonest way to analyze something.
- 8.86** Number two, you have to engage in counterfactual thinking. One must imagine a different timeline. I mean, how the hell do you think Marvel keeps making movies? It's timeline after timeline after timeline. It's genius. OK, but pick any policy decision that didn't turn out just perfectly. Vietnam didn't turn out perfectly. But you still have to imagine how many more countries might have been turned communist and under Soviet control, had we not drawn the line in the sand in Vietnam and in Korea.
- 8.87** These are worthy discussions. These are worthy debates to have. We already went over why it was practically also important to prevent Soviet expansion. But let's take an even more recent example, like Iraq. Now, I'd say, if you poll most people, it's probably largely agreed upon that invading Iraq was a mistake. Maybe it was. Class discussion. Was invading Iraq a mistake?
- 8.88** Let me ask it this way. If I gave you a time machine and also made you whatever, and I gave you some power, and you could reverse that decision, would you actually do it? It's an interesting question. I mean, you'd save perhaps tens of thousands of lives, maybe. Would you go back and stop it?
- 8.89** Well, I think it goes back to your earlier point about what was the information at the time. So, yes, in hindsight, we can debate whether it was a good idea or not. But given what we knew at the time, given the circumstances at the time, I think it's hard to say, would we go back and change it? Are we coming back with the information we have now? Or are we going back and making the decision in the context of the time in which

- 8.90** No, I'm asking you, I'm going to get to what you're saying in a second. That's actually my next question. I'm asking you, you have the benefit of hindsight. You know exactly what happened. Would you go back in time and change it?
- 8.91** Well, then this would get into the conversation about the counterfactual. It's like, OK, we have the benefit of hindsight. What were the consequences of not invading? That's a debate to be had. That's a complicated question.
- 8.92** Yeah, it sure is. That's why I was wondering if you had an answer. Anybody else want to take a stab at that one? Go ahead.
- 8.93** I would say that changing the invasion of Iraq, I wouldn't do. I would think that that should still have happened. But altering the outcomes and completely toppling those that were familiar with the geographical space, and wiping all of the generals and leaders from that area off the map, I think they had a good handle on the region.
- 8.94** Yeah, that's a little easier to agree with. Now we're getting into some details here. When we invaded, for instance, and I think what you're referring to is, we disbanded the entire Ba'athist party and the military. It's a pretty clear mistake in hindsight, really clear. But that's still not my question. My question is, do you just not do it? And what's the counterfactual?
- 8.95** So, nobody ever talks about that. It really frustrates me that nobody ever talks about that. I think we can make an educated guess on some counterfactuals, on whether or not, or if we had not invaded Iraq. Well, OK. First, we have to examine a little bit why we did. One, because Saddam Hussein was making us think he had weapons of mass destruction. He wasn't telling us otherwise. He was kicking out inspectors.
- 8.96** We'd pretty much still been at war with Iraq since the first Gulf War. People need to understand that, too. There's another dynamic at play here. Iraq and Iran are mortal enemies. One of the reasons Saddam wanted everyone to think he had a nuclear weapons program was not so much to deter us. It wasn't at all to deter us, actually. It was to deter Iran. They had just suffered a brutal, brutal war just a decade prior. So you have to think about these things.
- 8.97** They want us to think that they have nuclear weapons, mostly because they want the Iranians to think they have nuclear weapons. And Saddam probably doesn't think that George Bush wants a two-front war, and he's probably not going to do what he says he's going to do. And then he does it. But what if he didn't? What if we went back in time said, "Yo, you're not going to find the weapons. You're not going to find the WMD, so it's going to look bad. Maybe don't do it." What if you went back in time, and then George Bush was like, "All right, we won't go in then."
- 8.98** Well, what happened in 2004? In 2004, the Ayatollah of Iran put out a decree that they would not pursue a nuclear weapons program. Would they have still done that, had we not invaded Iraq? Remember, Gaddafi from Libya did the same thing, openly. We do

not have nuclear weapons. We will not have nuclear weapons. Why? Because George Bush was on a war rampage for anyone who had a nuclear weapons program.

- 8.99** So now imagine this counterfactual. You leave Saddam in place, Iran rushes for a bomb, Iraq rushes for a bomb, Israel opens up their skirt, they probably have a bomb, and Saudi Arabia, and who the hell knows what happens in the Middle East? Maybe, in fact, you're not saving a lot of lives. Maybe you're killing millions. I don't know. But it's an interesting counterfactual. And to be analytical thinkers, we at least have to talk about counterfactuals.
- 8.100** Now, let's go back to—this is not really the way to phrase the question, but let's go back to what you said earlier about what we actually knew at the time. Now look, there's a lot of things. There was some poor intel, and that poor intel is now a case study in the intelligence community on confirmation bias. So there's some poor intel that suggested that there might definitely be weapons of mass destruction.
- 8.101** And as that made its way up to the President, it went from, "We're not so sure about this," to, "We're sure about this." There was some real problems with how that happened. Second, you just had 9/11 happen. You just got the biggest attack on your country since Pearl Harbor, and it was from jihadi groups. And we're not sure what the heck is going on in Iraq. They might have nuclear weapons. We don't know. We're unsure.
- 8.102** And again, like I said, we'd actually been at war with Iraq since the first Gulf War. I mean, they're shooting at our airplanes. They're doing all sorts of stuff. And again, Saddam Hussein was trying to make us think that he did have weapons of mass destruction because he wanted to deter the Iranians.
- 8.103** So you have to take all of that into account when you're assessing this particular decision. Now, you can still take all of that into account and still think it wasn't a good decision. That's perfectly fine. But at least you've gone through the proper analytical frameworks to get to that opinion. That's a valid opinion.
- 8.104** What's the counterfactual on Ukraine? What if the people, and there are people, obviously, who just think we should just totally pull support for Ukraine, never should have supported them in the first place, think Russia actually even has a right to invade Ukraine, given how mean NATO is. What about that? What's the counterfactual there?
- 8.105** I mean, here's the counterfactual. This one's way easier than Iraq. This one's really obvious. So, let's say President Trump, in his first term, never gave the Ukrainians any Stinger or Javelins. Let's say we had an alliance with them, but we didn't give them a whole lot of weapons until Trump showed up in that first term. Those weapons were instrumental in keeping Russian tanks on the outskirts of Kyiv. Absolutely instrumental.
- 8.106** We're making an assumption here that, since our position is abandoning Ukraine, that we truly abandon them, right? Russia would have plowed through that country. By the

way, if we just pull support at any point, Russia can eventually plow through the country. It's simply a matter of how many artillery shells they can produce. It really is that simple. It's a very interesting war. It's like World War I, but also modern warfare with drones.

- 8.107** So, what's the new reality? Now you have a Russia, with its army intact, by the way, hasn't lost hundreds of thousands of people via casualties and probably well over 100,000 deaths, on the border of four more NATO countries, which we are treaty-bound to defend if Russia invades. And by the way, a few of those have ethnic Russian-speaking populations. And what did we say about Putin before? He believes in a greater Russia, and he's talked about the Baltics as being part of greater Russia.
- 8.108** There's a Russian territory, Kaliningrad. It's on the Baltic Sea. Do you think he doesn't want a land bridge between those two places? Of course he does. And you have to think of this, too. So, if we had just never bothered to support Ukraine, you know what else Putin is thinking? We don't really care about our allies. And so, he's going to call our bluff, and you'd better bet that he's going to go right for it. And then we're going to have an Article 5 decision under NATO, and we're going to be in a real war.
- 8.109** So the people who say that the warmongers are the ones who want to support Ukraine, I say it's the opposite. The real warmongers want Russia to win. Now, they'll say, "Of course, we don't want Russia to win. We just want peace." But remember what I was telling you about the fight in the bar?
- 8.110** If you're the only guy who can help your friend—and, by the way, all he's asking for is a knife so he can jab the dude in the ribs while he's beating his ass—if you refuse to engage in that situation, you're making an active decision. So you do want Russia to win. I'm sorry, but it's true. So that's the counterfactual. And that's a really scary counterfactual because that's the one that actually gets us into a real war.
- 8.111** So, let's talk about interventionism versus isolationism. These are basically the dichotomies of our foreign policy debate. And America has long debated the question of how much foreign involvement is appropriate, since our founding. Needless to say, the initial thoughts back in the early days were pretty much, "Stay out of it." But that was a very different time. We were weak, for one thing. We didn't have a lot of muscle to flex. We were that guy at the dive bar that has to wear extra-small shirts just to make their muscles look bigger.
- 8.112** Our interests were mostly in staying neutral so that we could trade, so that we could grow, so that our new country would stay on track. We were still saving up to buy top-shelf liquor. Then we had a civil war and then reconstruction. Then we were busy settling the West and still busy wrestling with the morality of that settlement of the West. So it wasn't until the 20th century that we started to pick our heads up from the fog of war that we had self-imposed on ourselves and start to look around.

- 8.113** I want to make an observation here, though. Even back in the 1770s, when the world was much larger than it is now, and by that, I mean people were objectively further apart, global trade was nothing like today's complex interconnected global market. It's worth noting still that other great powers at the time, like France, still believed it was in their national interest to help Americans win our revolution against the British.
- 8.114** Why? Well, because Britain was their strategic competitor. Losing the American colonies, that would weaken the Crown and make France more powerful relative to their adversary, the British. But for many in France, it was also about these common values. It was about admiration for what the Americans had hoped to achieve, this idea of freedom, equality, of self-governance, and they got it totally wrong in their revolution just a few years later. But that's not the point. The point is, they helped us, and it was in their interest to help us, even in a large world.
- 8.115** If you come to the House of Representatives, remember I gave you the tour, you'll be able to see from the gallery two paintings on either side of the Speaker's chair. Looking at the Speaker's chair, on the left, George Washington. You've heard of that guy, all right? He's a big deal. The one on the right is of Marquis de Lafayette. He was the French general that sailed across the Atlantic with thousands of French soldiers in order to defeat the British in that decisive Battle of Yorktown in 1781, bringing an end to the Revolutionary War.
- 8.116** Now, you fast forward just over a century, and the West, it really starts to emerge as a coalition. America, Britain, France, we all start to become friends. Why? I think shared cultural norms, for one. And two, because our vision of the world began to converge. But three, out of necessity, to combat threats from belligerent countries and coalitions.
- 8.117** Enter World War II. And before long, we have the most important day in modern history. That day is D-Day, June 6th, 1944. This was the day that America made the decision to be the world's leader. This was the moment that we decided it was worth immense sacrifices on foreign soil in order to preserve freedom, to preserve the sovereignty of nations and basic human decency.
- 8.118** We decided at that moment that we had a moral obligation to fight evil, even if that evil had slim to no chance of actually conquering our own shores. Of course, that might be up for debate, but thankfully, we'll never know. We didn't come to that decision easily. Before the attacks on Pearl Harbor, about 80% of the public wanted to stay the hell out of conflicts in Europe and the Pacific.
- 8.119** It was not obvious to Americans, not yet, that chaos has a tendency to spread, whether you like it or not. We were still of the naive belief, a very Western belief, that if you leave them alone, they'll leave you alone. Hell, many in our country still completely believe this. I think it's wishful thinking. I also wish I was wrong. I wish I could live in a world where "live and let live" was the norm, and tyrants didn't have this

unquenchable appetite for power and resources and land and subjugation of people. I wish that.

- 8.120** Maybe we could all get together and maybe write a fiction novel about that world. But it would be that. It would be in the fiction section. In the real world, the power bloc of the East is rising quickly, and America's dominance is being challenged at every turn. Now, we can choose to rise to the moment, or we can allow ourselves to exist in a world that is run by the norms of the Chinese Communist Party. That's the choice, whether we like it or not.
- 8.121** The world used to be a large place. Life was simple. We made things out of wood, out of simple metals. We farmed, we raised livestock, and it took months to sail across oceans. It took maybe years to even get across our country. That's not the world today, and I thank God. We landed on the moon over 50 years ago with a really clunky spaceship that had the computing power of a calculator. Now, rockets land themselves, and we can talk to literally anyone in the world with crystal clear video calls. It's amazing.
- 8.122** We all have the information our feeble minds can possibly handle, and they're all on a supercomputer that we all carry around in our pocket. We can stream Wi-Fi while barreling through the sky at 30,000 feet on our way to a board meeting across the country. It's pretty fucking amazing. Everything we own is the result of thousands of complex supply chains that span across multiple countries and that developed over the course of many decades in a global market that is protected by the power of the United States, no one else.
- 8.123** The biggest land war since World War II, in Ukraine, it's about a 10-hour flight away. You think we live in a large world? We don't. It has become very small. And this observation is not about being an interventionist or an isolationist. These are labels we use to yell at each other about. It's about being a realist. And unfortunately, the topic of foreign policy has totally devolved into mindless sloganeering, and that's a consequence of a very emotionally driven populists taking over the social media narratives with their inch-deep analysis of pretty much everything.
- 8.124** Guys, if you haven't figured it out by now, I have near-zero respect for populists. Because the populists yell at me a lot. They'll say, "Get us out of these endless wars, Dan." They even accuse me of getting us into them in the first place, though I was a college student at the time, so not sure how that works. But I still ask, back to them, I say, "Us? What do you mean by us? Because I don't recall you being there by my side when I was in Iraq and Afghanistan."
- 8.125** Or maybe you're referring to Korea, Japan, Germany, all places that we've occupied and still occupy with tens of thousands of troops. Never left. Are these endless wars? And if so, what makes you upset about these situations exactly? That's worth some critical thinking. And they'll say, "Look, well, Dan, we didn't get anything from 20 years of war

in Afghanistan. It was a waste. Your sacrifice was a waste, and your dead friend's sacrifice was a waste." Now, they don't say it like that, but that's how I hear it. That's what the brain-dead populist screams at me.

- 8.126** Now, it turns out, I have a really easy answer for their question. Now, the unfortunate part, to be fair to a lot of people, to be fair, their leaders over the last 20 years have never given them this simple answer to that question. And it has destroyed our ability to have a logical public discussion about this stuff. So here's the answer. "You know what we got for 20 years of war in Afghanistan? No more 9/11s. That's what we got. That was the whole point, young, ungrateful, ignorant little populist."
- 8.127** Now, another term they like is neocon. I immediately think that someone is thinking irresponsibly when they employ terms like warmonger or neocon. It's shallow. It reveals a lack of critical thinking. It's just regurgitating the slogans that they saw from someone on TV or the Internet that they think deserve some respect.
- 8.128** Just recently, as we're giving this lecture, we're in the midst of watching President Trump, future President-elect Trump, make appointments to his cabinet. And one of those appointments is for Secretary of State, Senator Marco Rubio. And I'm hearing all this outcry over Marco Rubio being a neocon. What?
- 8.129** The same opposition appears to have tanked the reappointment of former Secretary of State, Mike Pompeo, to the administration, by the way, who served up some of President Trump's best foreign policy successes. Now, he's a neocon? According to who? What does it even mean? It means nothing. It means nothing. Now, the people who say it, they'll try to string together some kind of definition, but it's always this rambling word salad about endless wars and the corrupt military-industrial complex and the establishment. That's it.
- 8.130** Now, in the end, if you really want to dig and you're really trying to have a conversation with them, what they're really mad about is the decision to invade Iraq in 2003. That broke their brains. And ever since, I think, a lot of people have been incapable of assessing properly what new foreign policy interventions make sense and which ones don't.
- 8.131** Because in this broken worldview, there's no foreign policy intervention that can ever be good because they view Iraq, and possibly even Afghanistan, as just catastrophic foreign policy failures. But were they? Is it so easy to assess these complex actions in these simple binary terms? I mean, I hope you don't think it is. Not after some of the critical thinking lectures we just did.
- 8.132** Now, were mistakes made in the execution of both actions? Oh, yeah. Now, some of those mistakes were only obvious with the benefit of hindsight. I think some should have been obvious at the time. We mentioned one earlier, right? The dissolution of the entire Iraqi army and Ba'athist Party. There were people saying, "Don't do that," at the time.

- 8.133** Afghanistan, there's experts who probably know that no one in the entire history of the world, Alexander the Great, to the Russians, to us, has ever, ever settled rural Afghanistan. But the cities are different. The cities are an achievable goal. Like, these lessons, these lessons could have been maybe learned at the time, but a lot of them are just hindsight. A lot of them are just hindsight. And in the end, man, these things are complicated.
- 8.134** The world's a messy place. It's never obvious to any honest and decently what the right choice is at the time. And if they pretend it is, they're lying to you. And as we analyze these recent events, like the invasion of Iraq and Afghanistan, it's important to acknowledge what some might say, which is, OK, we get why we went there, but we should have left right away. Well, I mean, that begs another analytical question. I mean, does that make sense?
- 8.135** Especially with Afghanistan. I mean, the whole point was going there to prevent the ability of Al-Qaeda to have an operational space to plan another 9/11. The only way you can do that is by preventing them from having the space. The only way you can really do that is by having an Afghan government that can last. And hence, the term nation building. People don't like that term. People hate that term.
- 8.136** But what it really meant, it wasn't like we were trying to build a Jeffersonian democracy, and maybe we did too much on that. But what we really should have been trying to do was build capacity. You build capacity with an ally, so they can do the job instead of you.
- 8.137** I'm from special operations, so that's literally a huge part of what we do. It's called foreign internal defense, where we have special operators from Green Berets to Navy SEALs to Marine Special Operations located all over the world, all the time. And what do they do, every single day? They're just training with their partner force, whether in Colombia or Korea or the Philippines. They're everywhere. Why? Because we want them to be able to do the job instead of us. That's what we were doing there.
- 8.138** It's because you have a question to ask. OK, day one, yeah, Osama did that. We're going in. Screw the Taliban. They're hiding them. That's day one. And some might have said, "Let's go. We got them. Let's go." I don't know. Maybe they're right. I don't know. I don't have the timeline. I don't work for Marvel. But I do know this; it's a really hard decision to figure out what to do on day two, because if you decide to leave, guess what?
- 8.139** You just put Afghanistan in the exact same circumstances that it was in on September 10th, 2001. We weren't at war on September 10th, 2001, but they were. And you got to remember that. You're not the only one who gets a choice in war. The enemy has a say.
- 8.140** So, let's recap what foreign policy is fundamentally about. We're navigating a chaotic world, and we're trying to do a clear-eyed understanding of what actions must be taken

to further our own national interest, I guess, to a whole can of worms, like, what's in our national interest? Some things, I think, are obvious, largely agreed upon, like prosperity, economic stability, innovation, security. These are, of course, in our national interest, but the devil's in the details.

- 8.141** We may say that security and prosperity are in our national interest. But the debate is actually over whether or not a foreign policy action meets that interest. Is it in our national interest to have influence in every country? What about foreign aid? At what cost? Which countries do we prioritize? Is it in our interest to deploy our special operations around the world to partner with other nations and build those relationships and enhance their capabilities, like I talked about just a minute ago? Or is it just a waste of money?
- 8.142** Is it in our interest to project global power with the US Navy in order to achieve security? When I hear the very popular slogan, "Bring the boys home," I have a few thoughts, and I'll share them with you. First of all, it's insulting to me and my boys, many of which are still actively serving, as if we need you to protect us from the supposed elites in Washington, D.C. that just arbitrarily send us into harm's way. Yeah, news flash, we don't.
- 8.143** And while the critics may not be proud of our service and what we did, we are. And guess what? We weren't drafted. We volunteered. And guess what? The entire military is an all-volunteer force. So that's the personal side of it. Here's the civics side of that. What do you think real national security entails, in the real world? I mean, you want to bring all the boys home, huh? OK, so what does that look like? Navy SEALs on our shores, guns just waiting for that invasion? Of course not. That's dumb.
- 8.144** Real national security in this extremely small world means we have to project our power. Practically speaking, we also need eyes and ears on the ground, so we know what the hell is going on out there. That's intelligence collection. We need relationships with allies. We need to build capacity in those allies so that they can fight alongside us if the time comes. That's the reality of national security.
- 8.145** It doesn't mean me and my boys want to be sent to a stupid, useless war. Of course not. We still want smart decisions to be made, but we're also smart enough to know that letting the world catch on fire is going to cost us a lot more blood and treasure down the road, hence the projection of power. Hence this insurance policy that we create by projecting that power. We're effectively ensuring against more costly conflicts.
- 8.146** Recent example. Let's talk about the withdrawal from Iraq in 2011. I deployed there in 2010. So I had a pretty good idea of what Iraq was like at the time. It actually was stable. Believe it or not, we actually do a decent job of this so-called nation building, if we just stick to it. We actually know how to do it. It's just that politics makes the commitment to it ebb and flow, and so we always screw it up, just like we did here.

- 8.147** I knew something when I was deployed in 2010. We had a lot of bad guys to find. We worked with our Iraqi partner forces. We were at a very mature stage with Iraq at the time. We were helping them try and go through an actual judicial process to prosecute bad guys. We'd help them with intelligence, but we'd make them get a court order signed by a judge. We were trying to make this real.
- 8.148** And then we left. Why? Politics. Even though me and my boys knew that all the bad guys, the ones that we couldn't get, where were they? They were in Syria. We knew exactly where they were. And so politics happened. And the cries to "bring the boys home," they were loud and clear because the American public is not known for its patience, after all. And so we brought them home.
- 8.149** And then what happened? Well, exactly what people like me knew would happen. Another Sunni insurgency, this time called ISIS. And guess what? My friends had to go back. Had to reestablish bases, reestablish relationships with Iraqi allies. They had to take the fight to ISIS. Some of my friends died doing that.
- 8.150** And it begs the question, if we had never left, if we had listened to our better senses, instead of just random sloganeering from the internet, and instead stayed to make sure that the Iraqi forces that we trained for years were actually capable of fending off terrorism, just like we did in Germany, just like we did in Japan and Korea, many other places, I'm willing to bet that my friends would still be alive.
- 8.151** Mark my words. We may face a very similar situation, a hard decision again, in Afghanistan. It's a new hotbed of jihadi groups, just like it was pre-9/11. Why? Politics. Bring the boys home. What do we get out of that? A collapsed Afghan government that we spent years trying to build up. They told us they couldn't handle it on their own. We didn't listen to them.
- 8.152** The loss of a strategic air base, Bagram, with access all over the region. Let's not forget where that region is. It's near China, it's near Pakistan, it's near Iran, and it's near all of these jihadi groups. It's a pretty good air base, and it's defensible. You know what else we got? Thirteen dead Marines, thousands of dead Afghans, thousands of Afghan girls who are no longer going to school, who are probably living the most horrible lives you can imagine.
- 8.153** Hey, but you know what? We ended the endless war. Cool, right? So, by the way, who makes all these decisions? All right, back to civics. Because I've been giving you the Dan Crenshaw special for a while on the reality of it. But let's go back to some actual civics lessons. Let's talk about who makes these decisions.
- 8.154** Constitution gives the President the primary role in conducting foreign affairs and warfare. They are the commander-in-chief, after all. This is pretty logical. There has to be a single head of state to conduct diplomacy and war. I mean, you can just imagine the chaos of our Congress, trying to broker relations on a daily basis, make tactical decisions quickly. It would not work.

- 8.155** So the President mostly delegates the diplomatic side of that to the Secretary of State. It's one of the more important cabinet positions. It heads the State Department, of course. Now, to be a Foreign Service Officer in the State Department, that means a life lived mostly abroad. You're assigned to different embassies all over the world for two to three years. You're expected to learn languages.
- 8.156** These officers will specialize in things like defense, commerce, agriculture, just to name a few. They're expected to meet regularly with their counterparts in that host country and be a spokesperson for America's interests, from anything, from security cooperation to trade. That's what our ambassadors do. That's what our embassies do.
- 8.157** The President appoints an ambassador to each of these embassies. Now, how those ambassadors are chosen is not always clear to the public, so I'm going to give you some inside scoop here. In countries like the United Kingdom, like France, like Australia, you can usually bet on a political appointee. What does that mean? This means this person has a personal relationship with the President, most likely, and probably donated a lot of money to that campaign.
- 8.158** Now, I can see heads rolling as I reveal this truth. It's not as corrupt as it seems, because here's the thing about serving in these more developed countries. You're expected to socialize extensively with the host government and with all of the diplomats from all of the countries stationed there. So that means hosting big dinners, banquets, lavish cocktail hours, and parties. That costs a lot of money.
- 8.159** You know who's not paying for that? The taxpayer. See, now you're happy. See? All right. So you don't want to be paying for the fine wines at the Parisian cocktail hour. You don't want to do that. So you actually do need an ambassador who has considerable personal wealth because the State Department budget, it's just not going to cut it for the type of job that we expect them to do.
- 8.160** Now, other countries, take Kenya, take Iraq, Philippines. These are countries where the geopolitical situation is pretty complex and challenging. You need a seasoned diplomat there who has experience in the region, maybe speaks the language, maybe has done a bunch of tours there. In these cases, you're more likely to see a career Foreign Service officer appointed as ambassador, who has risen through the ranks of the State Department over time.
- 8.161** Now, what role does Congress play in all of this? OK, well, for starters, the Senate has to confirm all cabinet positions and ambassadors. So there's a strong check on the power of the President that forces some consensus. Second, Congress controls the purse strings. I mean, if we want to defund a foreign policy initiative, we can. We can also make a law that just prevents it entirely.
- 8.162** But keep in mind, that law would still have to be signed by the President. He would probably veto it if it's his policy, and then we would have to have a veto-proof majority, which is extremely unlikely. The Congress has tried to do this kind of thing all the time.

Even I've signed on to these things. There should be sunsets on the 2001 Iraq AUMF, sorry, 2002 Iraq AUMF, 2001 Afghanistan AUMF. We still can't get them through. So the Congress has tried, but there's just not enough congressmen that actually really want to do it.

- 8.163** And of course, as you know, it is up to the Congress to declare war. Now, let's open up a real can of worms. First, let's define legally what it means to actually declare war. We have to do this because I bet a lot of you are wondering, how have we managed to be in so many combat situations without Congress having officially declared war? The last time Congress declared war was 1942. Congress has actually only declared war 11 times. And yet, I think we have fought in a lot more than 11 wars, haven't we?
- 8.164** OK, so for one thing, a declaration of war must be targeted at a recognized country. So in 1942, we declared war against Hungary, Romania, and Bulgaria. That was because of their alliance with the Germans, of course. Now, we'd already declared war on the Nazis in 1941. That was the last time we did it. Since that time, Congress has instead opted to authorize the use of force for more specific national aims, usually like supporting a particular ally like Korea or Vietnam.
- 8.165** OK, because now, it wouldn't make sense to declare war against Vietnam. They're our ally. We were fighting alongside Vietnam to rid the country of the Viet Cong insurgency. You might say the same thing of Korea. You're not going to declare war on Korea. You're allied with the South Koreans. Now, Congress still thought that there was some overstepping of presidential powers, especially in the era of Vietnam.
- 8.166** So in response to that, we passed the War Powers Act. The War Powers Act, it somewhat limits the scope of what a President can do in regard to sending combat troops abroad into conflict. Now, Congress similarly authorized an AUMF or the authorized use of military force, in Iraq and in Afghanistan. There's plenty of legal debate over whether this is any different from a formal declaration of war.
- 8.167** I mean, in the end, the Congress is still acting within its Article I power to authorize combat operations, whether you call those operations war or not. In the simplest of terms, I mean, this is the difference. The declaration of war is considered a very full and open state of war with another nation. It gives the President the power to bring to bear all the resources necessary to win.
- 8.168** An AUMF is designed to be more targeted, targeted toward a specific enemy, and allows Congress to establish more guardrails on the authorities that the President actually has. That's been the preferred method. Now, needless to say, there's been a lot of debate over whether certain actions by different presidents have been properly authorized by the 2001 AUMF, which gave broad authority to target those responsible for 9/11. That's how that one's worded. And the 2002 AUMF against Iraq, very specific against Iraq.

- 8.169** Many, many operations since that time have been justified under these authorities, which, by the way, don't expire unless Congress acts to end them, which we have not. Here's a question for the class, if you guys know. Under what authority did President Trump kill Iranian general Qasem Soleimani? When was this? This was, like, 2019, whatever. You know what I'm talking about, right? Under what authority did he do that?
- 8.170** It's just a good example, right? We just killed an Iranian general while he was on a layover in Baghdad. It was kind of awesome. So here's how they justified it legally. And everybody, I think, pretty much accepts it, to be honest. So they reference the Iraq AUMF. Why? Because the strike took place in Iraq. And furthermore, you have to understand who Soleimani is. I mean, he was deeply involved throughout the two decades prior, targeting US troops inside of Iraq, arming Shia militia groups.
- 8.171** Soleimani was responsible for the development of EFPs, which means explosively formed penetrators. They're basically cone-shaped explosives, and they're very good at penetrating our armored vehicles, responsible for killing a lot of American soldiers. So that's some important context.
- 8.172** They also claimed constitutional authority because the President does have the authority to engage in self-defense of the nation against an enemy that is already at war with the US. This is long-standing precedent by the Supreme Court, by the way. So you could argue, and this is what they did argue, that Soleimani met that standard because he was deemed by the US as being responsible for very recent attacks on US bases in Iraq throughout 2019, and the attack on the US embassy in Baghdad in December of 2019.
- 8.173** Let's wrap up Foreign Policy 101. Foreign policy has been a key component of civics since civilization began. Tribes engage in foreign policy. They make deals with other tribes. They go to war with other tribes. Whether you're a feudal lord or a Caesar, you engaged heavily in foreign policy. And human nature hasn't really changed all that much since those times. Incentives that regarding national interest or what we consider national interest, they haven't really changed that much either.
- 8.174** What has changed? For starters, we have a much more complex, much more integrated, much smaller, and more civilized world than we used to. We even have agreed-upon laws that govern war between states. They're followed? Not by the Russians. Now, so far, this has been a good thing. It's allowed for a pretty remarkable jump in human prosperity over the last 100 years.
- 8.175** But we also have new technologies, like nuclear weapons, and enough of them to end human life as we know it with the press of a button. I guess the good news is that this concept of mutually assured destruction has arguably prevented the horrifically costly wars that were the norm before 1945. That's the modern world. That's the modern world we live in.

- 8.176** And as Americans, we're striving to navigate it as best we can. Every new decade, it seems to surprise us, doesn't it? But in the end, our nation is run by humans with human faults and incomplete information. It's not an easy job trying to navigate spaceship Earth. With all its rabble-rousers and tyrants packed into one tiny planet, barreling through space at 67,000 miles per hour—you can Google it. That's how fast we're going.
- 8.177** Here's the civics portion of what I want you to take away from this final lecture. Number one, don't do your own research. Do good research. Number two, think critically about foreign policy decisions. Follow the two rules. You judge decisions based on what they knew at the time and the circumstances that they lived in. Second, you think hard about counterfactuals.
- 8.178** It's easy to say you want peace in the Middle East or Ukraine, but I'm sorry, that's not an option. The aggressors have a say, whether they are Hamas or Putin. You don't get to live in a fiction novel. You only get to live in the real world. Number three, international relations is just human relations. Dive bar theory, remember? Peer-reviewed. It's not, but whatever.
- 8.179** Incentives matter in dive bar theory and in international relations. Deterrence matters a lot. Friendships matter a lot. Resources and geography matter a lot. That's what makes America so lucky, by the way. Power matters. These are all parts of the human condition, whether you're dealing at the micro level or the macro level. Number four, peace through strength. We all like that term. But peace through strength cannot be achieved without the strength part, and that's where people start to get uncomfortable.
- 8.180** Here's the thing. The bully will keep beating up your friends and stealing their lunch money if all you're doing is sending him a very strongly worded letter. You might have to punch him in the nose before he starts a brawl that just burns the whole place down. Number five, the world is small, very small, and we ignore it at our own peril. Power vacuums are always going to be filled very quickly, and especially quickly in modern times.
- 8.181** If America recedes from the international stage, well, the axis of miscreants that's led by China, Russia, they're going to fill it. And your grandkids are going to grow up in their world order, not the one you've been accustomed to for the last 80 years. That's the foreign policy civics 101 part. But here's what I really want you to take away from this lecture, and maybe this entire series.
- 8.182** The outside world matters. It's easy to forget that in our unbelievably insulated life that we have here in the United States of America. Because the truth is, look, we run the show. We don't have to learn their languages. They have to learn ours. They don't have to be concerned about their elections. They have to be concerned about ours. We don't have to convert our dollars to their currency. They have to convert to dollars.

- 8.183** I'll tell you what, being on top and the benefits, the massive benefits that come with it, are not guaranteed. They have to be fought for. And that fight will continue for literally ever. And at the risk of overusing this often used quote, I'm going to say it anyway, "Freedom is never more than one generation away from extinction." That was Ronald Reagan in 1967. And I want you to remember that every time you vote.
- 8.184** I want you to remember the boys on the Higgins boats that drove straight into German gunfire on June 6th, 1944, knowing full well that they were just bullet sponges, so that the guys behind them could make it just one more yard on that long, desperate beach that we know today as Omaha. They had to land at low tide, so their boats wouldn't hit the Germans' steel obstacles beneath the ocean's surface.
- 8.185** I want you to know that, if you ever visit Normandy, you'll notice something, that the tides are unlike anything you have ever seen on American shores. The difference between high tide and low tide is about 20 feet, which means these young men coming in at low tide had to brave about 300 meters of machine gunfire before they could even get to the fortified gun turrets on the steep hills above them. I want you to imagine those boys rushing through German gunfire and then attacking superior German fighting positions, not because they hated the men they were about to kill, but because they loved the people they left behind.
- 8.186** Russell Kirk, he's an American political philosopher. He has a lot of books. You should read all of them, honestly. He once wrote, "Whatever the failings of America, the American order has been a conspicuous success in the perspective of human history." I couldn't agree more.
- 8.187** We can tell the story of our sins, and we should. But we also must recognize that these sins do not render corrupt the foundational ideas of this country. Our imperfections don't define us. Our successes do. It was America that led to the defeat of Nazi Germany and imperial Japan. It was America that rebuilt a wartorn Europe and Asia. It was America that underwrote global security for free trade and commerce.
- 8.188** It's America that has led the world in innovation from medicine to space to advanced computing—and then shared it all with the rest of the world. It is America that has been by far the most generous country that the world has ever known, giving trillions in aid around the globe. And it is America that stands as the number-one destination by a long shot for all freedom-seeking people, because it is here where opportunity awaits for those who are willing to look for it.
- 8.189** This is our story. And like many stories, it's filled with villains, and it's filled with heroes, and dark times, and good times, and failures, and triumphs, and sadness, but ultimately, joy. It's a human story, after all. But our story doesn't end with suffering. It doesn't end with failings. People talk a lot about the American decline being imminent, but I call bullshit. There is no decline on our great horizon if we simply choose not to accept it.

- 8.190** We have to remember what we are. America is a product of history's best stories, best attributes, and its greatest ideas. The American spirit, I just want to be proud of. This is about self-sacrifice and courage and tolerance, love of country and grace and passion for human achievements.
- 8.191** And the American system of government, the first to enshrine natural rights and liberty and equality, it's a pinnacle of human enlightenment. Full stop. It's a damn good story. We should be grateful for it. I might even say it's the best story that's ever been told. But it's up to you to protect it. It's up to you to believe in it.
- 8.192** The world isn't going to get any easier for us, that's for sure. There's evil in this world, and they want us to doubt ourselves. They want us to give up. Never again do they want to see the bravery of those young men on the beaches of Normandy, because you know what? It terrifies them. The mere idea of America terrifies them because they know that America represents what is good. And evil is always terrified of good men willing to fight. Yeah.
- 8.193** So, I'll still bet on my country any day, as long as we believe in our own story, that we are indeed the shining city on the hill. We believe in that, we triumph. We believe in that, the next century will be the American century, if we're willing to fight for it, if we're willing to believe in this idea of American exceptionalism because it's true. I know I believe it, and I hope you do, too. Thank you.